

# COLONEL HENRY LUDINGTON

A Memoir

BY

WILLIS FLETCHER JOHNSON

A. M., L. H. D.

WITH PORTRAITS, VIEWS,  
FACSIMILES, ETC.



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Transcriber's Note: Period documents are given with their original—and imperfect—spelling, punctuation and grammar.



Grist mill at Fredericksburgh, now Kent, built by Colonel Henry Ludington about the time of the Revolution

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# CONTENTS

| CHAPTER                             | PAGE                |
|-------------------------------------|---------------------|
| PREFACE                             | <a href="#">vii</a> |
| I GENEALOGICAL                      | <a href="#">3</a>   |
| II BEFORE THE REVOLUTION            | <a href="#">24</a>  |
| III THE BEGINNING OF THE REVOLUTION | <a href="#">47</a>  |
| IV THE REVOLUTION                   | <a href="#">77</a>  |
| V SECRET SERVICE                    | <a href="#">114</a> |
| VI BETWEEN THE LINES                | <a href="#">133</a> |
| VII AFTER THE WAR                   | <a href="#">191</a> |
| VIII SOME LATER GENERATIONS         | <a href="#">215</a> |
| INDEX                               | <a href="#">230</a> |

---

## LIST OF ILLUSTRATIONS

|                                                                                                                                      |                                     |
|--------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------|
| Grist mill at Fredericksburgh, now Kent (Ludingtonville post-office), built by Col. Henry Ludington about the time of the Revolution | <a href="#"><i>Frontispiece</i></a> |
| Old gun used by Henry Ludington in the French and Indian War                                                                         | <a href="#">29</a>                  |
|                                                                                                                                      | FACING PAGE                         |
| Henry Ludington's commission, from Governor Tryon, as captain in Col. Beverly Robinson's regiment                                    | <a href="#">30</a>                  |
| Old Phillipse Manor House at Carmel, N. Y., in 1846                                                                                  | <a href="#">36</a>                  |
| View of Carmel, N. Y.                                                                                                                | <a href="#">38</a>                  |
| Map of Quaker Hill and vicinity, 1778-80, showing location of Colonel Ludington's place at Fredericksburgh                           | <a href="#">50</a>                  |
| Letter from Committee on Conspiracies to Colonel Ludington                                                                           | <a href="#">56</a>                  |
| Order of arrest from Committee on Conspiracies to Colonel Ludington                                                                  | <a href="#">58</a>                  |
| Maps of Phillipse patent, showing original divisions and territory covered by Colonel Ludington's regiment                           | <a href="#">60</a>                  |
| Henry Ludington's commission as colonel from Provincial Congress, 1776                                                               | <a href="#">70</a>                  |
| Henry Ludington's commission as colonel from State of New York, 1778                                                                 | <a href="#">72</a>                  |
| Letter from Abraham B. Bancker to Colonel Ludington about militia                                                                    | <a href="#">74</a>                  |
| View of highroad and plains from site of Colonel Ludington's house                                                                   | <a href="#">90</a>                  |
| Fac-simile of Colonel Ludington's signature                                                                                          | <a href="#">102</a>                 |
| Letter from Col. Nathaniel Sackett to Colonel Ludington on secret service                                                            | <a href="#">114</a>                 |

|                                                                                                                    |                            |
|--------------------------------------------------------------------------------------------------------------------|----------------------------|
| Home of the late George Ludington on site of Colonel Ludington's house                                             | <a href="#"><u>132</u></a> |
| Home of the late Frederick Ludington, son of Colonel Ludington, at Kent                                            | <a href="#"><u>134</u></a> |
| Mahogany table used by Colonel Ludington, at which, according to family tradition, Washington and Rochambeau dined | <a href="#"><u>165</u></a> |
| Letter from Governor Clinton to Colonel Ludington about militia                                                    | <a href="#"><u>170</u></a> |
| Pay certificate of a member of Colonel Ludington's regiment                                                        | <a href="#"><u>188</u></a> |
| Colonel Ludington's tombstone at Patterson, formerly part of Fredericksburgh, N. Y.                                | <a href="#"><u>208</u></a> |
| Portrait of Frederick Ludington, son of Colonel Ludington                                                          | <a href="#"><u>216</u></a> |
| Portrait of Gov. Harrison Ludington, grandson of Col. Ludington                                                    | <a href="#"><u>218</u></a> |
| Old store at Kent, built by Frederick and Lewis Ludington about 1808                                               | <a href="#"><u>220</u></a> |
| Home of the late Lewis Ludington, son of Colonel Ludington, at Carmel                                              | <a href="#"><u>222</u></a> |
| Portrait of Lewis Ludington, son of Colonel Ludington                                                              | <a href="#"><u>224</u></a> |
| Portrait of Charles Henry Ludington, grandson of Colonel Ludington                                                 | <a href="#"><u>226</u></a> |

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## PREFACE

The part performed by the militia and militia officers in the War of the Revolution does not seem always to have received the historical recognition which it deserves. It was really of great importance, especially in southern New England and the Middle States, at times actually rivaling and often indispensably supplementing that of the regular Continental Army. It will not be invidious to say that of all the militia none was of more importance or rendered more valuable services than those regiments which occupied the disputed border country between the American and British lines, and which guarded the bases of supplies and the routes of communication. There was probably no region in which borderland friction was more severe and intrigues more sinister than that which lay between the British in New York City and the Americans at the Highlands of the Hudson, nor was there a highway of travel and communication more important than that which led from Hartford in Connecticut to Fishkill and West Point in New York.

It is the purpose of the present volume to present the salient features of the public career of a militia colonel who was perhaps most of all concerned in holding that troublous territory for the American cause, in guarding that route of travel and supply, and in serving the government of the State of New York, to whose seat his territorial command was so immediately adjacent. It is intended to be merely a memoir of Henry Ludington, together with such a historical setting as may seem desirable for a just understanding of the circumstances of his life and its varied activities. It makes no pretense of giving a complete genealogy of the Ludington family in America, either before or after his time, but confines itself to his own direct descent and a few of his immediate descendants. The facts of his life, never before compiled, have been gleaned from many sources, including Colonial, Revolutionary and State records, newspaper files, histories and diaries, correspondence, various miscellaneous manuscript collections, and some oral traditions of whose authenticity there is substantial evidence. The most copious and important data have been secured from the manuscript collections of two of Henry Ludington's descendants, Mr. Lewis S. Patrick, of Marinette, Wisconsin, who has devoted much time and painstaking labor to the work of searching for and securing authentic information of his distinguished ancestor, and Mr. Charles Henry Ludington, of New York, who has received many valuable papers and original documents and

records from a descendant of Sibyl Ludington Ogden, Henry Ludington's first-born child. It is much regretted that among all these data, no portrait of Henry Ludington is in existence, and that therefore none can be given in this book. In addition, the old records of Charlestown and Malden, Massachusetts, and of Branford, East Haven and New Haven, Connecticut, the collections of the Connecticut Historical Society, the early annals of New York, especially in the French and Indian and the Revolutionary wars, and the publications of the New England Genealogical Society, have also been utilized, together with the Papers of Governor George Clinton, Lossing's "Field Book of the Revolution," Blake's and Pelletreau's histories of Putnam County, Smith's "History of Dutchess County," Bolton's "History of Westchester County," and other works, credit to which is given in the text of this volume. It is hoped that this brief and simple setting forth of the public services of Henry Ludington during the formative period of our country's history will prove of sufficient interest to the members of his family and to others to justify the printing of this memoir.

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# **HENRY LUDINGTON**

## **A Memoir**

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## CHAPTER I

### GENEALOGICAL

“This family of the Ludingtons,” says Gray in his genealogical work on the nobility and gentry of England, “were of a great estate, of whom there was one took a large travail to the seeing of many countries where Our Saviour wrought His miracles, as is declared by his monument in the College of Worcester, where he is interred.” The immediate reference of the quaint old chronicler was to the Ludingtons of Shrawley and Worcester, and the one member of that family whom he singled out for special mention was Robert Ludington, gentleman, a merchant in the Levantine trade. In the pursuit of business, and also probably for curiosity and pleasure, he traveled extensively in Italy, Greece, Turkey, Egypt and Syria, at a time when such journeyings were more arduous and even perilous than those of to-day in equatorial or polar wildernesses. In accord with the pious custom of the age he also made a pilgrimage to Palestine, and visited the chief places made memorable in Holy Writ. He died at Worcester at the age of 76 years, in 1625, a few years before the first colonists of his name appeared in North America. The exact degree of relationship between him and them is not now ascertainable, but it is supposable that it was close, while there is no reason whatever for doubting that the American Ludingtons were members of that same family “of a great estate,” whether or not they came from the particular branch of it which was identified with Shrawley and Worcester.

For the Ludington family in England antedated Robert Ludington of Worcester by many generations, and was established elsewhere in the Midlands than in Worcestershire. Its chief seat seems to have been in the Eastern Midlands, though its name has long been implanted on all the shires from Lincoln to Worcester, including Rutland, Leicester, Huntingdon, Northampton, and Warwick. There is a credible tradition that in the Third Crusade a Ludington was among the followers of Richard Cœur de Lion, and that afterward, when that adventurous monarch was a prisoner in Austria, he sought to visit him in the guise of a holy palmer, in order to devise with him some plan for his escape. Because of these loyal exploits, we are told, he was invested with a patent of nobility, and with the coat of arms thereafter borne by the Ludington family, to wit (according to Burke’s Heraldry): Pale of six argent and azure on a chief,

gules a lion passant and gardant. Crest, a palmer's staff, erect. Motto, *Probum non penitet*.

Authentic mention of other Ludingtons, honorable and often distinguished, may be found from time to time in English history, especially in the annals of Tudor and Stuart reigns. In the reign of Henry VIII a Sir John Ludington was a man of mark in the north of England, and his daughter, Elizabeth Ludington, married first an alderman of the City of London, and second, after his death, Sir John Chamberlain. In the sixteenth century, the Rev. Thomas Ludington, M.A., was a Fellow of Christ Church College, Oxford, where his will, dated May 28, 1593, is still preserved. In the next century another clergyman, the Rev. Stephen Ludington, D.D., was married about 1610 to Anne, daughter of Richard Streetfield, at Chiddingtong, Kent. Afterward he was made prebendary of Langford, Lincoln, on November 15, 1641, and in June, 1674, resigned that place to his son, the Rev. Stephen Ludington, M.A. He was also rector of Carlton Scrope, and archdeacon of Stow, filling the last-named place at the time of his death in 1677. His grave is to be seen in Lincoln Cathedral. His son, mentioned above, was married to Ann Dillingham in Westminster Abbey in 1675.

It will be hereafter observed in this narrative that the family name of Ludington has been variously spelled in this country, as Ludington, Luddington, Ludinton, Ludenton, etc. Some of these variations have appeared also in England, together with the form Lydington, which has not been used here. These same forms have also been applied to the several towns and parishes which bear or have borne the family name, and especially that one parish which is so ancient and which was formerly so closely identified with the Ludingtons that question has risen whether the parish was named for the family or the family derived its name from the parish. This place, at one time called Lydington, was first mentioned in the Domesday Book of William the Conqueror, where it was called Ludington—whence we may properly regard that as the original and correct form of the name. It was then a part of the Bishopric of Lincoln and of the county of Northampton; Rutlandshire, in which the place now is, not having been set off from Northampton until the time of King John. The Bishop of Lincoln had a residential palace there, which was afterward transformed into a charity hospital, and as such is still in existence. In the chapel of the hospital is an ancient folio Bible bearing the inscription "Ludington Hospital Bible," and containing in manuscript a special prayer for the hospital, which is regularly read as a part of the service. The name of Loddington is borne by parishes in Leicestershire and Northamptonshire, that of

Luddington by parishes in Lincolnshire and Warwickshire (the latter near Stratford-on-Avon and intimately associated with Shakespeare), and that of Luddington-in-the-Brook by one which is partly in Northamptonshire and partly in Huntingdonshire; all testifying to the early extent of the Ludington family throughout the Midland counties of England.

The earliest record of a Ludington in America occurs in 1635. On April 6 of that year the ship *Hopewell*, which had already made several voyages to these shores, sailed from London for Massachusetts Bay, under the command of William Bundock. Her Company of eleven passengers was notable for the youthfulness of all its members, the youngest being twelve and the oldest only twenty-two years of age. Seven of them were young men, or boys, and four were girls. One of the latter, whose age was given as eighteen years, was registered on the ship's list as "Christiom" Ludington, but other records, in London, show that the name, although very distinctly written in that form, should have been "Christian." Concerning her origin and her subsequent fate, all records are silent. In John Farmer's "List of Ancient Names in Boston and Vicinity, 1630-1644," however, appears the name of "Ch. Luddington"; presumably that of this same young woman. Again, in the Old Granary burying ground in Boston, on Tomb No. 108, there appear the names of Joseph Tilden and C. Ludington; and a plausible conjecture is that Christian Ludington became the wife of Joseph Tilden and that thus they were both buried in the same grave. But this is conjecture and nothing more. So far as ascertained facts are concerned, Christian Ludington makes both her first and her last recorded appearance in that passenger list of the *Hopewell*.

The next appearance of the name in American annals, however,—passing by the mere undated mention of one Christopher Ludington in connection with the Virginia colony,—places us upon assured ground and marks the foundation of the family in America. William Ludington was born in England—place not known—in 1608, and his wife Ellen—her family name not known—was also born there in 1617. They were married in 1636, and a few years later came to America and settled in the Massachusetts Bay colony, in that part of Charlestown which was afterward set off into the separate town of Malden. The date of their migration hither is not precisely known. Savage's "Genealogical Register" mentions William Ludington as living in Charlestown in 1642; which is quite correct, though, as Mr. Patrick aptly points out, the date is by no means conclusive as to the time of his first settlement in that place. Indeed, it is certain that he had settled in Charlestown some time before, for in the early records of the colony, under date of May 13, 1640, appears the repeal of a former order

forbidding the erection of houses at a distance of more than half a mile from the meeting house, and with the repeal is an order remitting to William Ludington the penalty for having disobeyed the original decree. That restriction of building was, of course, a prudent and probably a necessary one, in the early days of the colony, for keeping the town compact and thus affording to all its inhabitants greater security against Indian attacks. It seems to have been disregarded, however, by the actual building of some houses outside of the prescribed line, and in such violation a heavy penalty was incurred. By 1640 the law became obsolete. Boston had then been founded ten years. The colonies of New Hampshire, Rhode Island, and Connecticut had been settled and organized. And three years before the Pequods had been vanquished. It was therefore fitting to rescind the order, and to let the borders of Charlestown be enlarged. We may assume that it was with a realization that this would speedily be done that William Ludington, either at the very beginning of 1640 or previous to that year, built his house on the forbidden ground, and thus incurred the penalty, which, however, was not imposed upon him; and we may further assume that it was this act of his which finally called official attention to the obsolete character of the law and thus brought about its repeal. In the light thus thrown upon him, William Ludington appears as probably a man of considerable standing in the community, and of high general esteem, else his disregard of the law would scarcely have been thus condoned.

Reckoning, then, that William Ludington was settled in his house in the outskirts of Charlestown—on the north side of the Mystic River, in what was later called Malden—before May 13, 1640, the date of his arrival in America must probably be placed as early as 1639, if not even earlier. He remained at Charlestown for a little more than twenty years, and was a considerable landowner and an important member of the community. Many references to him appear in the old colonial records, with some apparent conflicts of date, which are doubtless due to the transition stage through which the calendar was then passing. Most of the civilized world adopted the present Gregorian calendar in the sixteenth century, but it was not until 1751 that Great Britain and the British colonies did so. Consequently during most of our colonial history, including the times of William Ludington, the year began on March 25 instead of January 1, and all dates in the three months of January, February and March (down to the 24th) were credited to a different year from that to which we should now credit them. In many cases historians have endeavored to indicate such dates with accuracy by giving the numbers of both years, thus: March 1, 1660-61. But in many cases this has not been done and only a single year number is given, thus causing much uncertainty and doubt as to which year is meant. There were also

other disturbances of chronology, and other differences in the statement of dates, involving other months of the year; especially that of two months' difference at what is now the end of the year. Thus the birth of William Ludington's daughter Mary is variously stated to have occurred on December 6, 1642, December 6, 1642-43, February 6, 1643, and February 6, 1642-43. Also the birth and death of his son Matthew are credited, respectively, to October 16, 1657, and November 12, 1657, and to December 16, 1657, and January 12, 1658. There is record of the purchase, on October 10, 1649, of a tract of twenty acres of land at Malden, by William Ludington, described in the deed as a weaver, from Ralph Hall, a pipe-stave maker, and also of the sale of five acres by William Ludington to Joseph Carter, a currier. The deed given by Ralph Hall is entitled "A Sale of Land by Ralph Hall unto William Luddington, both of Charlestowne, the 10th day of the 10th moneth, 1649," and runs as follows:

Know all men by these presents, That I, Ralph Hall, of Charletowne in New England, Pipe stave maker, for a certaine valluable consideration by mee in hand Received, by which I doe acknowledge myselfe to be fully satisfied, and payed, and contented; Have bargained, sould, given, and granted, and doe by these presents Bargaine, sell, give, and grant unto william Luddington of Charletowne aforesayd, Weaver, Twenty Achors of Land, more or less, scituate, Lying, and Beeing in Maulden, That is to say, fifteen Acres of Land, more or less which I, the sayd Ralph formerly purchased at the hand of Thomas Peirce, of Charltowne, senior, Bounded on the Northwest by the land of Mr. Palgrave, Phisition, on the Northeast by the Lands of John Sybly, on the South Easte by the Lands of James Hubbert, and on the South west by the Land of widdow Coale, And the other five Acres herein mencioned sould to the sayd William, Are five Acres, more, or less, bounded on the southeast by the Land of Widdow Coale aforesaid, on the southwest by Thomas Grover and Thomas Osborne, Northeast by the Ground of Thomas Molton, and Northwest by the forsayde fifeteen Acres: which five acres I formerly purchased of Mr. John Hodges, of Charltowne. To Have and to hould the sayd fifeteen acres, and five Acres of Lands, with all the Appurtenances and priviledges thereof To Him, the sayd William Luddington his heigres and Assignees for ever: And by mee, the sayd Ralph Hall, and Mary my wife, to bee bargained sould, given, and confirmed unto him, the sayd william, and his heigres and assignes for him, and them peasable and quietly to possess, inioy, and improve to his and their owne proper use and usses for ever, and the same by us by vertue hereoff to bee warranted (sic) mayntained, and defended from any other person or persons hereafter Laying clayme to the same by any former contract or agreement

concerning the same: In witness whereof, I, the sayd Ralph Hall with Mary my wife, for our selves, our heires, executors and Administrators, have hereunto sett our hands and seales.

Dated this Tenth day of December 1649.

This is testified before the worshipfull Mr. Richard Bellingham.

On November 30, 1651, William Ludington was mentioned in the will of Henry Sandyes, of Charlestown, as one of the creditors of his estate, and in 1660 he was enrolled as a juror in Malden. Early in the latter year, however, he removed from Malden or Charlestown to the New Haven, Connecticut, colony, and there settled at East Haven, adjoining Branford, on the east side of the Quinnipiac River. Five years before there had been established at that place the first iron works in Connecticut. The raw material used was the rich bog ore which was then found in large quantities in the swamps of North Haven and elsewhere, precisely like that which at a still later date was abundantly found and worked in the swamps of southern New Jersey, where the name of "Furnace" is still borne by more than one village on the site of a long-abandoned foundry. This industry flourished at East Haven until about 1680, when the supply of bog ore was exhausted and the works were closed. Although William Ludington had been a weaver at Malden, he appears to have been interested in these iron works, and indeed probably removed to East Haven for the sake of connecting and identifying himself with them. But his career there was short. On March 27, 1660, evidently soon after his arrival there, he was complainant in a slander suit, and in either the same year or the next year he died, at the East Haven iron works. The manner of his death, whether from sickness or from accident, is unknown. But it evidently produced some impression in the community, since it is the only death specially recorded in the early annals of the place.

The precise date of his death, even the year in which it occurred, is a matter of uncertainty. Mr. Patrick quotes a passage from the East Haven records which says: "In 1662 John Porter obtained a piece of land to set his blacksmith shop upon ... and about the same time William Ludington died." Therefore he concludes that William Ludington died in 1662. But was it 1662 according to the chronology of those times or according to that of our time? Wyman's records of Charlestown and Malden, which mention William Ludington's departure thence for East Haven, relate that on October 1, 1661, John White made petition for the appointment of an administrator of William Ludington's



estate in Middlesex County, Massachusetts, and Pope's "Pioneers of Massachusetts" confirms that record, giving the name of the petitioner as Wayte or Waite, and adding that the inventory of the estate was filed by James Barrat, or Barret, on April 1, 1662. Mr. Patrick has the name Bariat and the date February 1, 1662. Here we have, then, the same discrepancy of exactly two months in statement of date which was noticed in the case of Matthew Ludington's birth and death. Of course, if the petition for administration of William Ludington's estate was made on October 1, 1661, his death must have occurred before that date, instead of in 1662 as the East Haven records suggest. The explanation of the apparent conflict of dates is doubtless to be found in the changes of calendar to which reference has been made, one historian giving the date according to the chronology then prevailing and another according to that of the present day. Concerning the date of the probating of his estate at East Haven, however, there is apparently no doubt, since in the records of it the dual year-dates are given. That estate was inventoried and appraised by John Cooper and Matthew Moulthrop, and their inventory, according to Hoadly's "New Haven Colonial Records," was filed in court at New Haven on March 3, 1662, according to the chronology of that time, or 1663 according to ours. This interesting document was entitled "An Inventory of ye Estate of William Ludington, late of New Haven, deceased, amounting to £183 and 10s., upon Oath attested yt ye Aprizents was just to the best of their light, by John Cooper, Sen., and Matthew Moulthrop in Court at New Haven, 1662-63." It ran in detail as follows:

|        |                                                           | lbs | sh | d. |
|--------|-----------------------------------------------------------|-----|----|----|
| Inv'ty | bd's, bouldsters pillows, coverlits, rugs, curtains—value | 20  | 07 | 02 |
| "      | sheets, pillow covers, table clothes and a blanket        | 05  | 16 | 00 |
| "      | five yards $\frac{3}{4}$ of krosin                        | 02  | 00 | 00 |
| "      | four yards of red kersey                                  | 01  | 00 | 00 |
| "      | six yards of kersey                                       | 02  | 14 | 00 |
| "      | five yards of serze at 7s                                 | 01  | 15 | 00 |
| "      | eight yards blew kersey at 7s                             | 02  | 16 | 00 |
| "      | twelve yards of serge at 6s                               | 00  | 18 | 00 |
| "      | 1 $\frac{3}{4}$ th of wosted yarns                        | 00  | 12 | 00 |
| "      | 1 $\frac{1}{4}$ th of woolen yarns                        | 00  | 05 | 00 |
| "      | 4 guns, 2 swords and a piece of a sword                   | 05  | 16 | 00 |
| "      | 3 chests and three boxes                                  | 02  | 00 | 00 |
| "      | pewter, chamber pots, spoons and 2 sauce pans             | 02  | 13 | 02 |

|                                    |                                                                       |     |    |    |
|------------------------------------|-----------------------------------------------------------------------|-----|----|----|
| ”                                  | 2 dripping pans, 1 cup, 4 cream pots, some eartyn ware                | 00  | 08 | 02 |
| ”                                  | 3 bottles and a tu mill                                               | 00  | 02 | 06 |
| ”                                  | warming pan, 2 iron pots, kettle, brass pot 2 skillets,<br>frying pan | 03  | 15 | 00 |
| ”                                  | iron dogs, tramell, share and coulter and an iron square              | 01  | 01 | 06 |
| ”                                  | toolles, wedges, sithes & a payre of still yards & a 7lb<br>waight    | 05  | 04 | 00 |
| ”                                  | a smoothing iron, a parcell of wayles, a hogshead & 2<br>chests       | 01  | 08 | 06 |
| ”                                  | sheeps wooll and cotton wooll                                         | 02  | 10 | 09 |
| ”                                  | Indyan corne, 7lb 10s; 10 bush turnips, 18s                           | 08  | 08 | 00 |
| ”                                  | 2 loomes and furniture, 3 chayres                                     | 05  | 09 | 00 |
| ”                                  | wooden ware, a table & forme, a sieve, some trenches<br>& bagges      | 01  | 09 | 04 |
| ”                                  | house and land 60lbs                                                  | 60  | 00 | 00 |
| ”                                  | 3 coves & two calves, 2 sowes & 3 shoates                             | 16  | 06 | 08 |
| ”                                  | 6 loads of hay, 50s, and some other thinges in all                    | 30  | 07 | 00 |
|                                    |                                                                       | 185 | 02 | 09 |
| The Estate Cr.                     |                                                                       | 00  | 15 | 00 |
| The Estate Dr.                     |                                                                       | 02  | 07 | 09 |
| Which being deducted there remains |                                                                       | 183 | 10 | 00 |

The marke, i. e. of

John Cooper,  
Mathew Moulthrop, } Apprisers.

Again, in the “Records of the Proprietors of New Haven” we find that “At a Court held at New Haven March 3, 1662-3 ... an inventory of the Estate of Willm. Luddington deceased whas presented.... The widdow upon oath attested to the fulness of it to the best of her knowledge.... The widdow being asked if her husband made noe will answered that she knew of none for she was not at home when he died.... The matter respecting the childrens portions was deferred till next court & the ... widdow with him that shee was to marry & all her children above fourteen years of age was ordered then to appear....” At this date, therefore, William Ludington’s widow was engaged to be married again, and that engagement was publicly announced. Moreover, she was actually

married to her second husband, John Rose, a few weeks later, for on May 5 following, in 1662-63, according to the "Proprietors' Records," the court was again in session, and "John Rose who married widdow Ludington was called to know what security he would give for the childrens portions that was not yet of age to receive them." It is true that in those days the period of mourning before remarriage was sometimes abbreviated, but it is scarcely conceivable that this widow's marriage took place within a few months of her husband's death, or sooner than a year thereafter. It may therefore be assumed that William Ludington's death, at the East Haven iron works, occurred at least as early as March or April, 1661-62.

There is reason to believe that William Ludington was not only a man of note in the East Haven community but that also he was a man of considerable property—more than would be suggested by the item of "house and land 60 lbs." in the inventory. For the New Haven Land Records show that in 1723 his son, William Ludington, 2nd, sold to Thomas Robinson "part of that tract of land set out to my father, William Luddington, which tract contains 100 acres." This property was in East Haven, just across the river from Branford.

The children of William and Ellen Ludington were seven in number. The first was Thomas, who was born (probably in England) in 1637. He removed to Newark, New Jersey, in 1666, and became a farmer—since when in 1689 he sold some land with a house and barn at New Haven he described himself in the deed as a husbandman. He was an assessor and a surveyor of highways at Newark, and left children whose descendants are now to be found in the northern part of New Jersey. His oldest child, John, remained at New Haven, married, and had issue, his first-born, James, being a soldier in the French and Indian war and being killed in battle on September 8, 1756. The second child of William and Ellen Ludington was John Ludington, who was born (probably at Charlestown, Massachusetts) in 1640. He was living at East Haven in 1664, and afterward, Mr. Patrick thinks, removed to Vermont. The third child was Mary, of whose birth various dates are given, as already noted. The fourth was Henry Ludington, the date of whose birth is not known, but who was killed in the war with King Philip, at the end of 1675 or beginning of 1676, as appears in the "New Haven Probate Records," where is found an inventory of the estate of "Henry Luddington late of N. haven slayne in the warre taken & appraised by Mathew Moulthrop & John Potter Janry. 3, 1676." The fifth child was Hannah, the dates of whose birth and death are unknown. The sixth child was William Ludington, 2nd, who was born about 1655 and died in February, 1737. His first wife was Martha Rose, daughter of his stepfather, John Rose, and his second

was Mercy Whitehead. According to Dodd's "East Haven Register" he was a man of means, of intelligence, of ability, and of important standing in the community. He had two sons and one daughter by his first wife, and two sons and six daughters by his second. His first-born, the son of Martha Rose, was Henry Ludington, who was born in 1679, was a carpenter, married Sarah, daughter of William Collins, on August 20, 1700, had eight sons and four daughters, and died in the summer of 1727—of whom, or of his descendants, we shall presently hear much more. Finally, the seventh child of William and Ellen Ludington was Matthew, who as already related was born at Malden and died in infancy. Despite the removal of Thomas Ludington to Newark, and that of John Ludington (probably) to Vermont, they appear to have retained much interest in the New Haven colony, since in the "Colony Record of Deeds" of Connecticut we find Thomas, John, and William Ludington enumerated among the proprietors of New Haven in 1685, who were, presumably, the above mentioned first, second, and sixth children of William and Ellen Ludington.

Recurring for a moment to the family of William Ludington, 2nd, and passing by for the time his first-born, Henry Ludington, it is to be observed that his second child, Eleanor, married Nathaniel Bailey, of Guilford, Connecticut, and had issue; his third, William Ludington, 3rd, married Anna Hodge, lived at Waterbury and Plymouth, Connecticut, and had issue, his sixth son, Samuel, serving in the French and Indian war, and his grandson, Timothy, son of William 3rd's first-born, Matthew, also serving in that war and being killed in battle at East Haven in the War of the Revolution; the fourth, Mercy, married Ebenezer Deanes or Dains, of Norwich, Connecticut, and had issue; the fifth, Mary, married John Dawson, of East Haven, and had issue; the sixth, Hannah, married Isaac Penfield, of New Haven, and had issue; the seventh, John, married Elizabeth Potter, and had issue, his son Jude serving in the French and Indian war; the eighth, Eliphalet, married Abigail Collins, and had issue, his third son, Amos, serving in the French and Indian war; the ninth, Elizabeth, died in childhood; the tenth, Dorothy, married Benjamin Mallory and had issue; and the eleventh, Dorcas, married James Way and had issue.

Returning now to Henry Ludington, eldest son of William Ludington, 2nd, who was the sixth child of the original William Ludington, it is to be observed that his first child, Daniel, married first Hannah Payne, and second Susannah Clark, and had issue, his second child, Ezra, serving in the French and Indian war, and his ninth, Collins, in the War of the Revolution; his second, William Ludington, married first Mary Knowles, of Branford, and second Mary Wilkinson, of Branford, and had issue—of whom we shall hereafter hear much

more; his third, Sarah, died in childhood; his fourth, Dinah, married Isaac Thorpe; his fifth, Lydia, married Moses Thorpe; his sixth, Nathaniel, married first Mary Chidsey, and second Eunice (Russell) Smith, and had issue; his seventh, Moses, married Eunice Chidsey; his eighth, Aaron, died at sea; his ninth, Elisha, died in infancy; his tenth, also named Elisha, settled in Phillipse Precinct, Dutchess County, New York, married, and had a daughter, Abigail, of whom more hereafter; his eleventh, Sarah, probably died unmarried, though Dodd's "East Haven Register" says she married Daniel Mead; and his twelfth, Thomas, was drowned, unmarried.

Turning back, once more, to the William Ludington last mentioned, who was the second son of Henry Ludington, we find that he was born at Branford, Connecticut, on September 6, 1702. He married Mary Knowles, of Branford, on November 5, 1730. She died on April 16, 1759, and on April 17, 1760,—just a day after the year of mourning had elapsed!—he married for his second wife Mary Wilkinson, also of Branford. His eight children, all of his first wife, were as follows: First, Submit, who married Stephen Johnson, of Branford; second, Mary; third, Henry, of whom we shall hear more, since he forms the chief subject of this book; fourth, Lydia, who married William (or, according to Dodd, Aaron) Buckley, of Branford; fifth, Samuel; sixth, Rebecca; seventh, Anne; and eighth, Stephen. On the night of Monday, May 20, 1754, part of William Ludington's house at Branford was destroyed by fire, and his sixth and seventh children, Rebecca and Anne, aged seven and four years, respectively, perished in the flames.

Attention is thus finally centered upon the second Henry Ludington, who was the third child of William Ludington, who was the second child of the first Henry Ludington, who was the first child of the second William Ludington, who was the sixth child of the first William Ludington, who was the founder of the Ludington family in America. The sources of information concerning him and his career, which have been mentioned in the preface to this volume, are varied and numerous rather than copious or comprehensive; but they are sufficient to indicate that he was a man of more than ordinary force of character and of more than average importance and influence in his time and place, and that he is entitled to remembrance and to enrolment among those who contributed materially, and with no little sacrifice of self, to the making of the State of New York and of the United States of America.

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## **CHAPTER II**

### **BEFORE THE REVOLUTION**

Henry Ludington, the third child of William and Mary (Knowles) Ludington, was born at Branford, Connecticut, on May 25, 1739. Some records give the date as 1738, but the weight of authority indicates the later year. Branford, originally called Totoket, was a part of the second purchase at New Haven in 1638, but was not successfully settled until two years later, when a dissatisfied company from Wethersfield, headed by William Swayne, secured a grant of it. Together with Milford, Guilford, Stamford, Southold (Long Island), and New Haven, it made up the separate jurisdiction of New Haven, under an ecclesiastical government, until 1665, when all were merged into the greater Colony of Connecticut, Branford being erected into an organized town with representation in the General Court, in 1651. The place won lasting distinction in 1700, when it was the scene of the practical founding of Yale College; ten ministers, who had been named as trustees of "The School of the Church," each laying upon the table in their meeting-room a number of books, with the words, "I give these books for the founding of a college in this colony." The next year the college was chartered and was formally opened at Saybrook, and in 1716-17 it was permanently removed to New Haven. At the time of Henry Ludington's birth, therefore, New Haven had become fully established as the metropolis of that part of the colony, and Branford, which had at first been its peer and rival, had become reconciled to the status of a suburban town. The educational facilities of Branford were similar to those of other colonial towns; to wit, primitive in character and chiefly under church control. To what extent young Ludington availed himself of them does not appear, but so far as may be judged from his letters and other papers in after years he was an indifferent scholar, probably thinking more of action than of study.

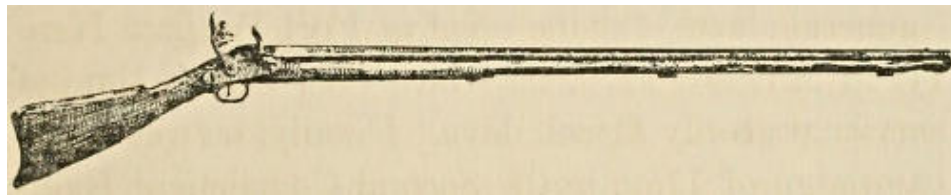
Such as his schooling was, however, it was ended at an early date and the school-boy became a man of action when only half-way through his teens. The epoch-making struggle commonly known as the French and Indian War, which was really a part of the Seven Years' War in Europe, and which secured for the English absolute dominance in North America and transformed the maps of two continents, began when he was fifteen years old, and made a strong appeal to his adventurous and daring disposition; and at an early date, probably in 1755,

though the meager records now in existence are not conclusive on that point, he enlisted in those Colonial levies which formed so invaluable an adjunct to the regular British Army in all the campaigns of that war. No complete roster of the Connecticut troops is now in existence, but the “East Haven Register” tells us that many men from East Haven and Branford were enlisted for service with the British Army near the Great Lakes, of whom the greater part were lost through sickness and in battle. In these levies were several members of the Ludington family, beside Henry Ludington. Our genealogical review has already indicated the service in that war of James, Ezra, Timothy, Samuel, Jude, and Amos Ludington, uncles and cousins of Henry Ludington. As some of the Ludingtons had, years before the war, removed from Connecticut to Dutchess County, New York, some members of the family were also among the troops from the latter region. Old records tell that in Captain Richard Rea’s Dutchess County regiment were two young farmers, Comfort Loudinton and Asa Loudinton—obviously meaning Ludington—respectively 19 and 17 years old; the former with brown eyes and dark complexion, the latter with brown eyes and fresh complexion.

Henry Ludington enlisted in Captain Foote’s company of the Second Connecticut Regiment, a notable body of troops which was put forward to bear much of the brunt of the campaign. The regiment was at first commanded by Colonel Elizur Goodrich, and later by Colonel Nathan Whiting, one of the most distinguished Colonial officers of that war. The regiment was assigned to duty under Major-General (afterward Sir) William Johnson, who, with a Colonial army and numerous Indian allies under the famous Mohawk chieftain Hendrick, was moving to meet the French at Lake George. The march from New Haven was made by way of Amenia and Dover, in Dutchess County, New York, to the Hudson River, and thence northward to the “dark and bloody ground” of the North Woods. Young Ludington was of a lively and venturesome disposition and, as family traditions show, had a propensity to practical joking which more than once put him in peril of not undeserved punishment, which, however, he managed to avoid.

It was early in September, 1755, when he was in only his seventeenth year, that the young soldier received his “baptism of fire” in the desperate battle of Lake George, near the little sheet of water afterward known as Bloody Pond because of the hue its water took from the gory drainage of the battlefield. General Johnson, with his Colonial troops and Indian allies, was moving northward. Baron Dieskau, with a French and Indian army, moving southward, embarked at Fort Frederick, Crown Point, came down the lake in a fleet of

small boats, and landed at Skenesborough, now Whitehall. On the night of Sunday, September 7, word came to Johnson that the enemy was marching down from Fort Edward to Lake George, and early the next morning plans were made to meet them. It was at first suggested that only a few hundred men be sent forward to hold the enemy in check until the main army could dispose and fortify itself, but Hendrick, the shrewd Mohawk warrior, objected to sending so small a force. "If they are to fight," he said, "they are too few; if they are to be killed, they are too many." Accordingly the number was increased to 1,200, comprising and, indeed, led by the Connecticut troops. Colonel Ephraim Williams, a brave and skilful officer, was in command, with Colonel Nathan Whiting, of New Haven, as his chief lieutenant. They came upon the enemy at Rocky Brook, about four miles from Lake George, and found the French and Indians arrayed in the form of a crescent, the horns of which extended for some distance on both sides of the road which there led through a dense forest. The devoted Colonial detachment marched straight at the center of the crescent, and was quickly attacked in front and on both flanks at the same time. Williams and Hendrick were among the first to fall, and their followers were cut down in great numbers. Thereupon Colonel Whiting succeeded to the general command, and perceiving that the Colonials were outnumbered and outflanked, ordered a retreat, which was skilfully conducted, with little further loss. When the army was thus reunited, hasty preparations were made to meet the onslaught of the foe, and at noon the conflict began in deadly earnest. The forces were commanded, respectively, by Johnson and Dieskau in person, until the former was disabled by a wound, when his place was taken by General Lyman, who fulfilled his duties with singular ability and success. After four hours of fighting on the defensive, the English and Colonials leaped over their breastworks and charged the foe with irresistible fury. The French and Indians were routed with great slaughter, and Baron Dieskau himself, badly wounded, was taken prisoner.



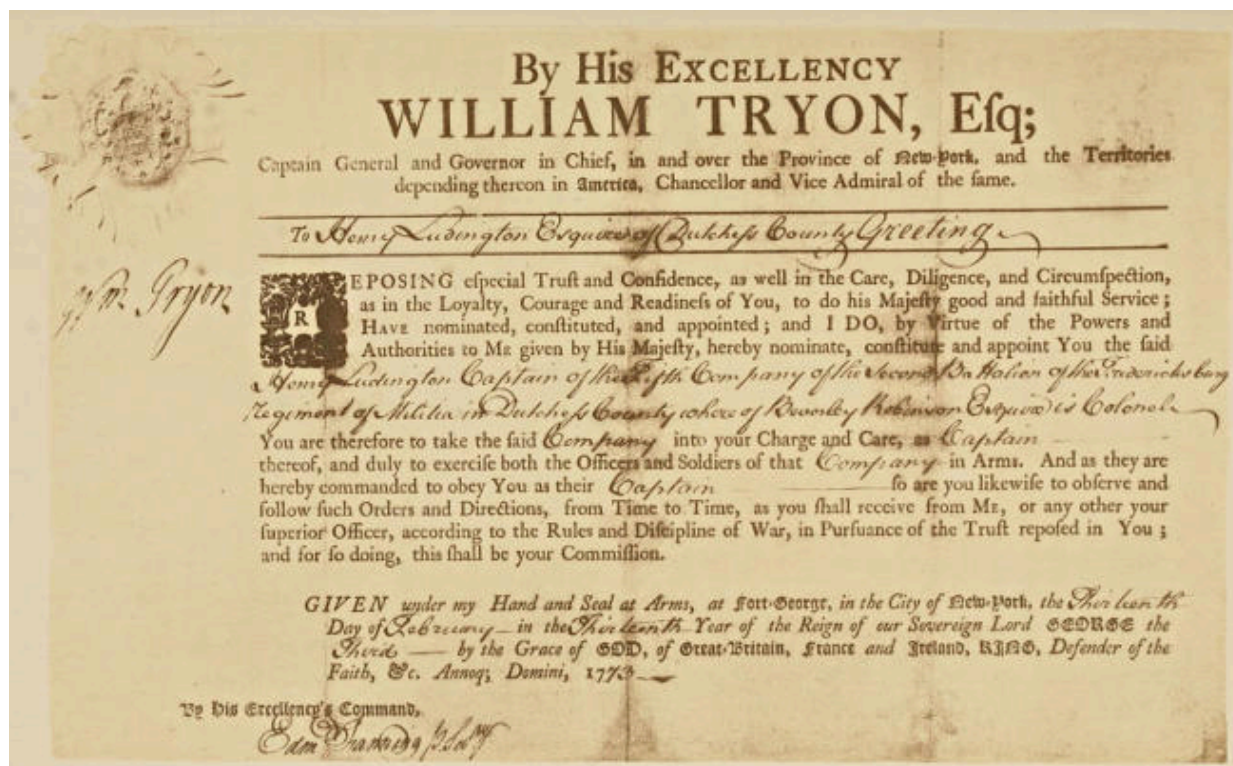
Old gun used by Henry Ludington in the French and Indian War. Now owned by Frederick Ludington, son of the late Governor Harrison Ludington, of Wisconsin.

(From sketch made by Miss Alice Ludington, great-great-granddaughter of Henry Ludington.)



Henry Ludington was in the thickest of both parts of this battle, having been in the detachment which was sent forward in advance. He came off unscathed, but he had the heartrending experience of seeing both his uncle and his cousin shot dead at his side. These were probably his uncle Amos Ludington (called Asa in the "East Haven Register," as already noted), son of Eliphalet Ludington, and his cousin Ezra, son of Daniel Ludington. The uncle fell first, pierced by a French bullet. The cousin sprang to his side and stooped to lift him, and in the act was himself shot, and a few moments later both died. Soon after this battle the term of enlistment of the Connecticut militia expired, but reënlistments were general. According to the French and Indian War Rolls, and the Connecticut Historical Collections as searched by Mr. Patrick, Henry Ludington again enlisted on April 19, 1756, served under Colonel Andrew Ward at Crown Point, and was discharged at the expiration of his term on November 13, 1756. Again, he was in Lieutenant Maltbie's company, under Colonel Newton, at the time of the "general alarm" for the relief of Fort William Henry, in August, 1757, on which occasion his time of service was only fifteen days. Finally, he was in the campaign of 1759, in the Second Connecticut Regiment, under Colonel Nathan Whiting, being a member of David Baldwin's Third Company. In this year he enlisted on April 14, and was duly discharged on December 21, 1759. During this memorable period of service the young soldier marched with the British and American troops to Canada, and participated in the crowning triumph at Quebec, on September 13, 1759, and a little later was intrusted with the charge of a company of sixty wounded or invalid soldiers, who were to return to New England. The march was made across country, from Quebec to Boston, in the dead of the very severe winter of 1759-60, and the labors and perils of the journey were sufficient to tax to the utmost the skill and resourcefulness of the youth of only twenty years. For many nights their camp consisted of caves or burrows in the snowdrifts, where they slept on beds of spruce boughs, wrapped in their blankets. Provisions failed, too, and some meals were made of the bark and twigs of birch trees and the berries of the juniper. Through all these hardships young Ludington led his comrades safely to their destination. Then, in the spring of 1760, he proceeded from Boston to Branford, and thus terminated for the time his active military career. In recognition of his services he received from King George II the commission of a lieutenant in the British Colonial Army, which he held until, in the succeeding reign, news came of the enactment of the Stamp Act, when he resigned it. Later, on February 13, 1773, he accepted a captain's commission from William Tryon, the last British governor of New York, which he held until the beginning of the Revolution. This commission was in the regiment commanded by Beverly Robinson, that eminent British

Loyalist who was the intermediary between Sir Henry Clinton and Benedict Arnold. It was at Robinson's country mansion that much of Arnold's plotting was done, and it was there, while at dinner, that the traitor received the news of the failure of his treason through the capture of his agent, Major André.



Reduced Fac-simile of the Commission of Henry Ludington as Captain in Col. Beverly Robinson's Regiment.

From William Tryon last British Governor of the Province of New York.

(Original in possession of Charles H. Ludington, New York City.)

One other incident of Henry Ludington's service demands passing attention. In one of the returns of his regiment, in connection with the fifteen days' service in August, 1757, he is recorded as "Deserted." Generally speaking, no worse blot than that can well be put upon a soldier's record. But it is quite obvious that in this case it is devoid of its usual serious significance. It is certain that he did not actually desert in the ordinary present meaning of that term. This we know, because there is no record nor intimation of any steps ever being taken to punish him for what would have been regarded as a heinous crime; because soon after that entry against him he was serving with credit in the army and continued so to do; because thereafter he was intrusted with the important march to Boston which has been described; and because, after having honorably completed his service in the army, he received a royal commission as an officer. In those early

days, when an army was campaigning in an almost trackless wilderness and warfare was largely of the most irregular description, it was not difficult for a soldier to become detached and practically lost from the rest of his army, and perhaps not be able to rejoin it for some time. Such a mishap might the more easily have befallen an impetuous and adventurous youth such as Henry Ludington was. And of course the record “Deserted” might naturally enough have been put against his name when he failed to respond to roll-call and no explanation of his absence was forthcoming.

In the French and Indian War the Colonial troops were paid for their services by the various Colonial governments, which latter were afterward reimbursed for such expenditures by the British Government. It was, however, with a view to compelling the Colonies to bear the cost of the war, by levying taxes upon them at the will of Parliament, that the British Government entered upon the fatal policy which a few years later cost it the major part of its American possessions. Because of that change of government, no pension system was ever created for the veterans of that war. In 1815, however, near the close of Henry Ludington’s life, such pensions were proposed, and with a view to establishing his eligibility to receive one, in the absence of the authoritative records of the Connecticut troops, he secured from two of his former comrades in arms the following affidavits—here reproduced *verbatim et literatim*:

State of New York  
Putnam County

Jehoidah Wheton, of the town of Carmell in said county, being duly sworn doth depose and say that he is now personally acquainted with Henry Ludington, who lives in the Town of Fredericks in said county and that the deponent has known him for many years past. The deponent knows that the above named Henry Ludington was in the service in the years 1756 and 1757 under the King’s pay, and belonged to the State troops of Connecticut, and that the deponent was personally acquainted with the said Henry Ludington during the service above stated, and the deponent was with him the two campaigns, and further the deponent saith that from certain information which he the deponent knows to be true from the above named Henry Ludington of certain transactions which took place in the year 1759 to me the deponent now told he verily believes that the said Henry Ludington was in the service that year, and that the deponent places confidence in the truth and veracity of the said Henry Ludington, and the deponent saith that he together with the above named Henry

Ludington was under Capt. Foot in Colonel Nathan Whiting's Ridgement in the service aforesaid; and further this deponent saith not.

X

JEHOIDAH WHEATON

his mark

Sworn and subscribed the 14th day of September 1815 before me John Phillips, one of the masters in the cort of Chy. in and for sd. State.

I, John Byington, of Redding in Fairfield County and State Connecticut, of lawful age depose and say

that I am well acquainted with Henry Ludington of Fredericks, state of New York, that he enlisted under the King's proclamation and served with the Connecticut troops in the war with France, three campaigns, in the company of Capt. Foot, under whom I also served; that he rendered the above service between the year 1756 & 1764, and further say not.

John Byington.

State Connecticut, County Fairfield, Ss. Redding the 15th day of September 1815 personally apperd John Byington the above deponent & made oath to the truth of the above deposition.

LEMUEL SANFORD, *Justice Peace.*

Both of the foregoing affidavits or depositions are taken from copies of the originals, made by Lewis Ludington, son of Henry Ludington, on September 19, 1815, and now in possession of Lewis Ludington's son.

We have seen that Henry Ludington, at the age of twenty-one, escorted a company of invalided soldiers from Quebec to Boston in the winter of 1759-60, and thereafter returned to civil life. One of his first acts was to get married, his bride being his cousin, Abigail Ludington, daughter of his father's younger brother, Elisha Ludington. As already noted, Elisha Ludington upon his marriage had removed from Connecticut to Dutchess County, New York, and had settled in what was known as the Phillipse Patent. The exact date of that migration is not recorded, but it was probably some years before the French and Indian war. As the Connecticut troops on their way to that war marched across Dutchess County, through Dover and Amenia, it is to be presumed that Henry Ludington on that momentous journey called at his uncle's home, and saw his

cousin, afterward to be his wife, who had been born on May 8, 1745, and was at that time consequently a child of about ten years. Whether they met again until his return from Quebec is not surely known, but we may easily imagine the boy soldier's carrying with him into the northern wilderness an affectionate memory of his little cousin, perhaps the last of his kin to bid him good-by, and also her cherishing a romantic regard for the lad whom she had seen march away with his comrades. At any rate, their marriage followed close upon his return, taking place on May 1, 1760, when he was not yet quite twenty-one and she just under fifteen. Soon afterward the young couple, apparently accompanied by the rest of Henry Ludington's immediate family, removed to Dutchess County, New York, to be thereafter identified with that historic region.



Old Phillipse Manor House at Carmel, N. Y.

(From sketch made in 1846 by Charles Henry Ludington)

Dutchess County was one of the twelve counties into which the Province of New York was divided on November 1, 1683, the others being Albany, Cornwall (now a part of the State of Maine), Duke's (now a part of

Massachusetts), King's, New York, Orange, Queen's, Richmond, Suffolk, Ulster, and Westchester. Dutchess then comprised what is now Putnam County, which was set off as a separate county in 1812 and was named for General Israel Putnam, who was in command of the forces there during much of the Revolutionary War. In 1719 Dutchess County was divided into three wards, known as Northern, Middle, and Southern, each extending from the Hudson River to the Connecticut line. Again, in 1737, these wards were subdivided into seven precincts, called Beekman, Charlotte, Crom Elbow, North, Poughkeepsie, Rhinebeck, and Southeast; and at later dates other precincts, or towns, were formed, to wit: North East in 1746; Amenia in 1762; Pawlings in 1768; and Frederickstown in 1772. Fishkill and Rombout were also constituted in colonial times. Frederickstown, where the Ludingtons settled and with which we have most to do, was a part of the Phillipse Patent, in the Southern Ward of Dutchess County, now Putnam County. It derived its name from Frederick Phillipse, a kinsman of Adolphe Phillipse, the patentee of Phillipse Manor or Patent. It has now been divided and renamed, its old boundaries comprising the present towns of Kent, Carmel, and Patterson, and a part of Southeast, the present village of Patterson occupying the site of the former Fredericksburgh. The name of Kent was taken from the family of that name, of which James Kent, the illustrious jurist and chancellor of the State of New York, was a member. It may be of interest to recall at this point, also, that a certain strip of land at the eastern side of Dutchess County was in dispute between New York and Connecticut. This was known as The Oblong, or the Oblong Patent, from its configuration, and comprised 61,440 acres, in a strip about two miles wide, now forming parts of Dutchess, Putnam, and Westchester counties and including part of the Westchester town of Bedford, and also Quaker Hill, near Pawling, in Dutchess County, which was once suggested as the capital of the State, and which gets its name from having been first settled by Quakers. The dispute over the New York-Connecticut boundary and the consequent ownership of this land arose before 1650, when the Dutch were still owners of New York, or New Netherlands as the latter was then called, and it was continued between the two Colonies when they were both under British rule. The settlement was effected by confirming New York in possession of The Oblong, and granting to Connecticut in return a tract of land on Long Island Sound, eight miles by twelve in extent, which was long called the "Equivalent Land," and which is now occupied by Greenwich, Stamford, and other towns. The final demarcation of the boundary was not, however, effected until as late as 1880.





CARMEL, PUTNAM COUNTY, NEW YORK.

From a Painting by Jamee M. Hart, 1858.

(In possession of Charles H. Ludington, New York City.)

The precise date of Henry Ludington's settlement in Dutchess County is not now known. Neither his nor his father's name appears in the 1762 survey of Lot No. 6 of the Phillipse Patent, and it has been assumed that therefore his arrival there must have been at a later date than that. This reasoning must, however, be challenged on the ground that—as we shall presently see—on March 12, 1763, he was officially recorded as a sub-sheriff of Dutchess County. It is scarcely likely that he would have been appointed to that office immediately upon his arrival in the county, and we must therefore conclude that he settled there at least early in 1762, if not before that year. He made his home on a tract of 229 acres of land in Frederickstown, at the north end of Lot No. 6 of the Phillipse Patent, on the site of what was afterward appropriately, though with awkward etymology, called Ludingtonville. This land he was not able to purchase outright, but leased for many years from owners who clung to the old feudal notions of tenure; but at last, on July 15, 1812, he effected actual purchase and received title deeds from Samuel Gouverneur and his wife. On that property he built the first grist- and saw-mills in that region, there being no others nearer than the “Red Mills” at Lake Mahopac and those built by John Jay on the Cross

River, in the town of Bedford, Westchester County—which latter, by the way, remained in continuous operation, with much of the original framework and sheathing, until 1906, when they were destroyed to make room for one of the Croton reservoirs. Ludington's mills were of course operated by water power, generated by a huge "overshot" wheel, supplied with water conveyed from a neighboring stream in a channel or mill-race made of timber.

Near-by stood the house, which was several times enlarged. The main building was two stories in height, with an attic above. Through the center ran a broad hall, with a stairway broken with a landing and turn. At one side was a parlor and at the other a sitting or living room, and back of each of these was a bedroom. The parlor was wainscoted and ceiled with planks of the fragrant and beautiful red cedar. Beyond the sitting room, at the side of this main building, was the "weaving room," an apartment unknown to our modern domestic economy, but essential in colonial days. It was a large room, fitted with a hand-loom, and a number of spinning wheels, reels, swifts, and the other paraphernalia for the manufacture of homespun fabrics of different kinds. This room also contained a huge stone fireplace. Beyond it, at the extreme east of the house, was the kitchen, with its great fireplace and brick or stone oven. The house fronted toward the south, and commanded a fine outlook over one of the picturesque landscapes for which that region is famed. Years ago the original house was demolished, and a new one was built on the same site by a grandson, George Ludington. The location was a somewhat isolated one, neighbors being few and not near, and the nearest village, Fredericksburgh, on the present site of Patterson, being some miles distant. The location was, however, important, being on the principal route from Northern Connecticut to the lower Hudson Valley, the road leading from Hartford and New Milford, Connecticut, through Fredericksburgh, past Colonel Ludington's, to Fishkill and West Point—a circumstance which was of much interest and importance to Colonel Ludington in the Revolution, as we shall see. The population of the county at that time was small and scattered. In 1746, or about the time when Elisha Ludington went thither and Abigail Ludington was born, the census showed a population of 8,806, including 500 negro slaves. By 1749 the numbers had actually diminished to 7,912, of whom only 421 were negroes. In 1756, however, there were 14,148 inhabitants, including 859 negroes, and Dutchess was the most populous county in the colony, excepting Albany, which had 17,424 inhabitants. The county was at that time able to contribute to the army about 2,500 men. It had enjoyed exemption from the Indian wars which had ravaged other parts of the colony, and its situation and natural resources gave it the advantages of varied industries. It had the Hudson River at one side for commerce, it was well



watered and wooded, its open fields were exceptionally fertile, it had abundant water-power for mills, and it had—though this was not realized until after the colonial period—much mineral wealth.

Such was the community in which Henry Ludington established himself at the beginning of his manhood and married life, and in which he quickly rose to prominence. The extent of his holdings of land, and the fact of his proprietorship of important mills, made him a leading factor in business affairs, while his bent for public business soon led him into both the civil and the military service. At that time, from 1761 to 1769, James Livingston was sheriff of Dutchess County, and early in 1763 Henry Ludington became one of his lieutenants, as sub-sheriff. The Protestant dynasty in England was so newly established that elaborate oaths of abjuration and fealty were still required of all office-holders, of whatever rank or capacity, and on March 12, 1763, Henry Ludington, as sub-sheriff, took and subscribed to them, as follows:

I, Henry Ludington, Do Solemnly and Sincerely, in the Presence of God, Profess, Testify, and Declare, That I do Believe, that in the Sacrament of the Lord's Supper, there is not any Transubstantiation, of the Elements of Bread and Wine, in the Body and Blood of Christ at or after the Consecration Thereof, by any Person whatsoever. And that the Invocation, or Adoration, of the Virgin Mary, or Any other Saint, and the Sacrifice of the Mass, as they are now Used in the Church of Rome, are Superstitious and Idolatrous, and I do Solemnly in the presence of God, Profess, Testify, and Declare, that I make this Declaration, and Every Part thereof, in the plain and Ordinary Sence of the Words read to me, as they are Commonly Understood by English Protestants, Without any Evasion, Equivocation, or Mental Reservation whatsoever, and Without any Dispensation Already Granted to me for this purpose by the Pope, or any other Authority Whatsoever, or Without Thinking that I am Acquitted, before God or Man, or Absolved of this Declaration, or any Part thereof, Although the Pope, or any Person or Persons, or Power Whatsoever, Should Dispencc with or Annul the same and Declare that it was Null or Void, from the Beginning.

I, Henry Ludington, do Sincerely Promise & Swear, that I will be faithful and bear true Allegiance to his Majesty King George the Third, and I do Swear that I do from my heart Abhor, Detest, and Abjure, as Impious and Heretical, that Damnable Doctrine and Position, that Princes Excommunicated and Deprived by the Pope, or Any Authority of the See of Rome, May Be Deposed by Their Subjects or any other Whatsoever, and I do Declare that no Foreign Prince,

Person, Prelate, State or Potentate hath or ought to have, any Jurisdiction, Power, Superiority, Pre-eminence, or Authority Ecclesiastical or Spiritual, Within this Realm, and I do Truly and Sincerely acknowledge and profess, Testify and Declare, in my conscience before God and the World, That Our Sovereign Lord King George the Third of this Realm, and all other Dominions and Countrys Thereunto Belonging, and I do Solemnly and Sincerely Declare, that I do believe in my conscience that the person pretended to be Prince of Wales During the Life of the Late King James the Second, and since his Decease, Pretending to be and Taking upon himself the Stile and Title of King of England, by the Name of James the Third, or of Scotland by the name of James the Eighth, or Stile and Title of the King of Great Britain, hath not any right or Title whatsoever, to the Crown of this Realm, or any other Dominions Thereunto Belonging, and I do Renounce, Refuse, and Abjure, any Allegiance or Obedience to him, and I do Swear, that I will bear Faith, and True Allegiance to his Majesty King George the Third and him will defend, to the utmost of my Power, against all Traiterous Conspiracies and Attempts Whatsoever, which shall be made Against his Person, Crown or Dignity, and I will do my Utmost Endeavors to Disclose and Make Known to his Majesty and his Successors all Treasons and Traiterous Conspiracies which I shall know to be against him, or any of them, and I faithfully promise to the Utmost of my Power to Support, Maintain and Defend the Successors of the Crown against him the said James and all other Persons Whatsoever, Which Succession by an Act entitled An Act for the further Limitation of the Crown Limited to the Late Princess Sophia, Electress and Dowager of Hanover, and the Heirs of Her Body, being Protestants, and all these things I do plainly and Sincerely Acknowledge and Swear according to the Express words by me spoken and according to the Plain and Common Sence and Understanding of the same Words Without any Equivocation, Mental Evasion, or Sinister Reservation Whatsoever, and I do make this Recognition, Acknowledgement, Abjuration, Renunciation and Promise heartily, Willingly and Truly, upon the True Faith of a Christian. So help me, God!

Thus qualified by the taking of these oaths, Henry Ludington began public services which lasted, in one capacity and another, for more than a generation in the Colony and State of New York. The first entry in his ledger bears date of "May, A.D. 1763," and runs as follows: "James Livingston Sheriff Dr to Serving county writs (seven in number) the price for serving each writ being from 11s. 9d. to £1—10—9." There follow, under dates of October, 1763, and May, 1764, entries for serving other writs. Among the names of attorneys in the

suits appear those of Cromwell, Livingston, Jones, Snedeker, Ludlow, Snook, and Kent; and among those of parties to suits, etc., are those of Joseph Weeks, Jacob Ellis, Uriah Hill, Jacob Griffen, George Hughson, Ebenezer Bennett, and Joseph Crane. In 1764 first appears the name of Beverly Robinson, as the plaintiff in a suit against one Nathan Birdsall. There is also mention of a suit brought in the name of the “Earl of Starling” as plaintiff before the Supreme Court of the colony—probably William Alexander, or Lord Stirling, the patriot soldier of the Revolution.

At this home in Frederickstown the children of Henry and Abigail Ludington, or all of them but the eldest, were born. These children, with the dates of their births, were as follows, as recorded by Henry Ludington in his Family Register, which was inscribed on a fly-leaf of the ledger already quoted:

Sibyl, April 5, 1761.

Rebecca, January 24, 1763.

Mary, July 31, 1765.

Archibald, July 5, 1767.

Henry, March 28, 1769.

Derick, February 17, 1771.

Tertullus, Monday night, April 19, 1773.

Abigail, Monday morning, February 26, 1776.

Anne, at sunset, March 14, 1778.

Frederick, June 10, 1782.

Sophia, May 16, 1784.

Lewis, June 25, 1786.

Of these it is further recorded in the same register that Sibyl was married to Edward Ogden (the name is elsewhere given as Edmund or Henry Ogden) on October 21, 1784; that Mary was married to David Travis on September 12, 1785; that Archibald was married to Elizabeth on September 23, 1790; and that Rebecca was married to Harry Pratt on May 7, 1794.

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## **CHAPTER III**

### **THE BEGINNING OF THE REVOLUTION**

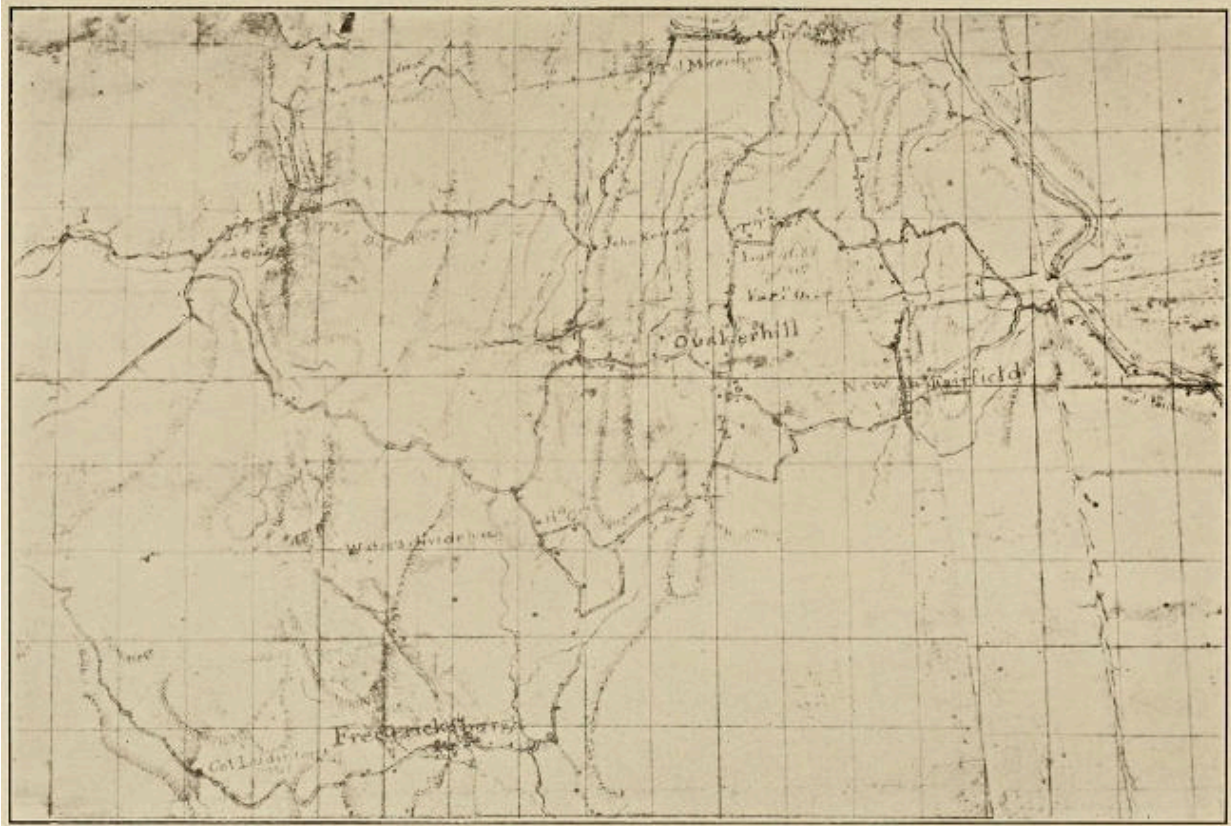
In order justly to appreciate the circumstances in which Henry Ludington and his young family found themselves about fifteen years after his return from the French and Indian war, it will be desirable to recall briefly the political and social conditions generally prevailing throughout the Colonies at that time, which were nowhere more marked than in New York City and the rural counties lying just north of it. During the two or three years before the actual declaration of American independence, or secession from England, the people of the Colonies were divided into two parties, the Patriots and the Loyalists or Tories. The latter maintained the right of England to govern the Colonies as she pleased, and regarded even a protest against the maladministration of George III's ministers as little short of sacrilege. The former were by no means as yet committed to the idea of American separation from the mother country, but they were most resolute in their demand for local self-government, and for government according to the needs of the Colonies rather than the caprices of English ministers. When they first placed the legend "Liberty and Union" upon their colonial flag, and called it the "Grand Union Flag," they had in mind liberty under the British constitution and continued union with England. Nevertheless, antagonism between the two parties became as bitter as ever it was between Roundhead and Cavalier in Stuart days; and while in some respects Boston and Philadelphia figured more conspicuously in the pre-revolutionary agitation and operations than did New York, there was probably no place in all the Colonies where the people were more evenly and generally divided between the two parties, or where passions rose higher or were more strongly maintained, than in and about the last-named city. No ties of neighborliness, friendship, or even family relationship sufficed to prevent or to quell the animosities which arose over the political interests of the Colonies. Nowhere had the Patriots a more ardent or persuasive leader than young Alexander Hamilton, or the Tories a more uncompromising champion than Rivington, the printer, whose office was at last sacked and gutted by wrathful Patriots. An illuminating side-light is thrown upon the New York state of mind by an item in the New York "Journal" of February 9, 1775, as follows:

A company of gentlemen were dining at a house in New York. One of them used the word Tory several times. His host asked him, "Pray, Mr. , what is a Tory?" He replied, "A Tory is a thing whose head is in England, and its body in America, and its neck ought to be stretched!"

Nor were these passions by any means confined to the urban but not always urbane community on Manhattan Island. They prevailed with equal force in the rural regions of Westchester and Dutchess counties. During the Revolutionary War that border region, between the British garrison on Manhattan Island and the American strongholds in the Highlands of the Hudson, was the fighting ground of the belligerents, and was also unmercifully harried and ravaged by the irregular succors of both sides, the "Cow Boys" and "Skinners," and others, celebrated in the unhappy André's whimsical ballad of "The Cow Chase." Patriots from Westchester County were foremost among those who wrecked Rivington's Tory printing shop, and an aggravated sequel to the item just cited from the New York "Journal" is provided in the annals of Dutchess County a little later in the same year. At that time a County Committee, or Committee of Safety—of which we shall presently hear much more—had been formed in that county, for the purpose of holding the Tories in check, and it had forcibly deprived some men of their arms and ammunition. The despoiled Tories made appeal to the Court of Common Pleas for redress, and James Smith, a justice of that court, according to a contemporary narrative, "undertook to sue for and recover the arms taken from the Tories by order of said committee, and actually committed one of the committee who assisted at disarming the Tories; which enraged the people so much that they rose and rescued the prisoner, and poured out their resentment on this villanous retailer of the law." The "resentment" seems to have been poured out of buckets and pillows, for we are told that Justice Smith and his relative, Coen Smith, were "very handsomely tarred and feathered, for acting in open contempt of the resolves of the County Committee!"

In or near that part of Dutchess County in which Henry Ludington lived a third small but not insignificant factor was involved in the problem. This was provided by the members of the Society of Friends, who were settled at Quaker Hill, near Pawling, in The Oblong. This was the first community in America to abolish negro slavery, in 1775, and on that account it was probably regarded with some suspicion. But worse still was the regard given to it in the strife between Patriots and Tories. There can be little doubt that the sentiments and wishes of the Quakers were largely with the Patriots. Yet their religious

principle of non-resistance forbade them to take up arms or to engage in forcible conflict of any kind. They were therefore generally looked upon by the Patriots as Tories, and were on that account sometimes fined and otherwise punished, while on the other hand, the Tories made themselves free to quarter troops upon them and to demand aid of them at will. On the whole, however, they appear to have commanded the respect of the Patriots, for their sincerity, and thus to have been far more leniently dealt with than were the more militant Tories outside the Society of Friends.



Map of Quaker Hill and Vicinity, 1778-80, showing location of Colonel Ludington's place at Fredericksburgh

The earliest organization of the Patriots in and about New York was a Committee of Vigilance, the chief functions of which were to watch for oppressive acts of the British Government and incite colonial protests against them. This was in 1774 superseded by a Committee of Fifty-One, and it in turn in the same year gave place to a Committee of Inspection, of sixty members. In both of these latter John Jay, who was a neighbor and friend of Henry Ludington, was conspicuous, and it is to be presumed that Henry Ludington himself was either a member of the committees or at least was in active sympathy with their work. In April, 1775, came a crisis and the turning point in

the movement for independence. The old Colonial Assembly of New York went out of existence on April 3. Then came the news of the first clash of arms at Lexington and Concord, acting as a spark in a powder-magazine. "Astonished by accounts of acts of hostility in the moment of expectation of terms of reconciliation," said the lieutenant-governor of New York in his account of the occurrence, "and now filled with distrust, the inhabitants of the city burst through all restraint on the arrival of the intelligence from Boston, and instantly emptied the vessels laden with provisions for that place, and then seized the city arms and in the course of a few days distributed them among the multitude, formed themselves into companies and trained openly in the streets; increased the number and power of the committee before appointed to execute the association of the Continental Congress, convened themselves by beat of the drum for popular resolutions, have taken the keys of the custom house by military force; shut up the port, drawn a small number of cannon into the country; called all parts of the country to a Provincial Convention; chosen twenty delegates for this city, formed an association now signing by all ranks, engaging submission to committees and congresses, in firm union with the rest of the continent, and openly avow a resolution not only to resist the acts of Parliament complained as grievances, but to withhold succors of all kinds from the troops and to repel every species of force, wherever it may be exerted, for enforcing the taxing claims of Parliament at the risk of their lives and fortunes." This only half coherent but wholly intelligible and graphic narrative tells admirably how the Patriot sentiment of New York startled into life and action. A year later it was forcibly repressed by the British garrison on Manhattan Island, but in the counties at the north it continued dominant and triumphant.

The "association now signing by all ranks" was promptly entered into by Henry Ludington and his neighbors in Dutchess County, as the following transcript, from the MS. collection of Mr. Patrick, shows, the date of the original being April 29, 1775:

A General Association agreed to and subscribed by the Freeholders and Inhabitants of the County of Dutchess:

Persuaded: That the Salvation of the Rights & Liberties of America depends, under God, on the firm Union of its Inhabitants in a Vigorous Prosecution of the Measures necessary for its Safety; and Convinced of the Necessity of preventing the Anarchy & Confusion which attend the Dissolution of the Powers of Government, We, the Freeholders and Inhabitants of the County of Dutchess, being greatly alarmed at the avowed Design of the Ministry to raise a

Revenue in America, and shocked by the bloody Scene now acting in the Massachusetts Bay, Do, in the most solemn Manner, Resolve, never to become Slaves; and do associate under all the Ties of Religion, Honour and Love to our Country, to adopt and endeavor to carry into execution, whatever Measures may be recommended by the Continental Congress, or resolved upon by our Provincial Conventions, for the Purpose of preserving our Constitution and opposing the execution of the several arbitrary and oppressive Acts of the British Parliament, until a Reconciliation between Great Britain and America, on Constitutional Principles (which we most ardently desire) can be obtained: And that we will in all things, follow the Advice of our General Committee, respecting the Purposes aforesaid: the Preservation of peace and good Order and the Safety of Individuals, and private property.

Mathew Paterson  
Joseph Chandler  
Comfort Ludinton  
Ruben Miers  
James Dickinson Junr.  
Isaiah Bennett  
Malcolm Morison  
Alexr. Kidd  
Henry Ludinton  
Elijah Oakley  
William Alkin.  
David Atkins  
Stephen Baxter.

One other signature is illegible. Those of the two Ludingtons are clear and firm.

The new Provincial Congress of New York met in the New York City Hall on May 22, 1775, and remained in session until May 29, its most important act being the adoption of the following resolution:

Resolved, That it be and hereby is recommended to all counties in this colony (who have not already done it) to appoint County Committees and also sub-



committees for their respective townships and districts without delay, in order to carry into execution the resolutions of the Continental and this Provincial Congress; And that it is also recommended to every inhabitant of this colony who has neglected to sign the general association to do it with all convenient speed, and for this purpose that the committees in the respective counties do tender the said association to every inhabitant within the several districts in each county; And that the said committees and persons respectfully do return the said associations and the names of those who shall refuse to sign the same to this Congress by the 15th day of June next, or sooner if possible.

This obviously “meant business.” It compelled every inhabitant of the colony to align himself, either with the Patriots or with the Loyalists; with a certainty that if he chose the former, he would be held as a traitor by the British Government, and if he chose the latter, he would be subject to whatever pains and penalties his incensed Patriot neighbors might see fit to impose upon him. Into the work thus recommended by the Congress, Henry Ludington entered with zeal and ardor. He was at the head of the local committee, in Fredericksburgh Precinct, and also a member of the Dutchess County Committee, among his colleagues being John Jay, William Duer, Jacobus Swartwout, and other eminent Patriots.

How vigorously and unsparingly these committees went to work will appear if we anticipate for a moment the chronological record by a year. On a motion offered by John Jay on June 16, 1776, the Provincial Congress of New York declared guilty of treason, with the penalty of death, all persons inhabiting or passing through the colony, or state, as it then began to be called, who should give aid or comfort to the enemy. A week later the Continental Congress adopted a similar resolution. It does not appear that this penalty was ever actually imposed, but the terror of it was held as a powerful measure of restraint over the Tories. Again, at Conner’s tavern, at Fishkill, Dutchess County, on October 8, 1776, there was organized a secret committee “for inquiring into, detecting and defeating conspiracies ... against the liberties of America,” with full power to send for persons and papers, call out the militia, and arrest or expel persons regarded as dangerous to the state, apparently without any judicial process. Thereafter numerous parties of suspects were sent in by the various local committees, including men, women, and children. All who consented to sign an oath of allegiance to Congress were dismissed. The others were variously dealt with. Some were exiled from the State, some were imprisoned, and some released on parole, to remain near Fishkill within call and

surveillance of the committee. The chairman of this committee was William Duer, and if Henry Ludington was not actually among its members he was certainly one of its most trusted and efficient agents. It continued in existence and action until February 27, 1777, when it was dissolved by the State Convention and was replaced by a Board of Commissioners. Two minutes of the proceedings of this committee will serve the double purpose of showing the character of its activities and the part which Henry Ludington played in executing its decrees. The first is dated only four days after the organization of the committee:

In Committee appointed by a Resolution of the Convention of the State of New York for enquiring into, detecting and defeating all Conspiracies which may be form'd in the said State against the Liberties of America. Fish Kill Octr. 12. 1776.

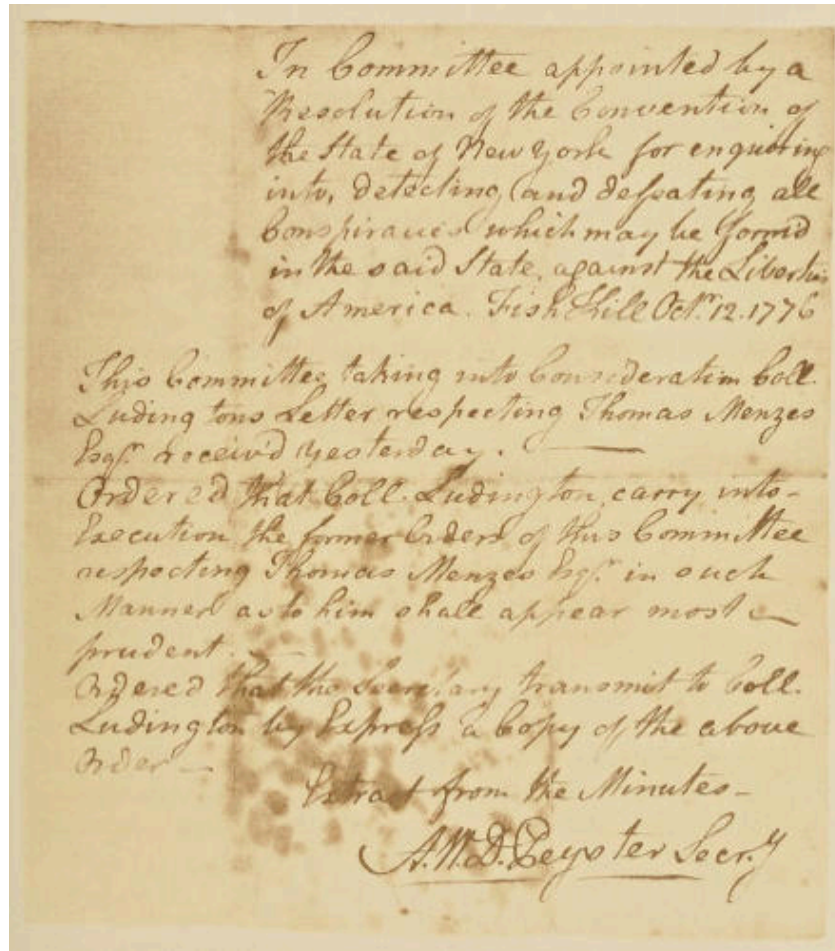
This Committee taking into Consideration Coll. Ludington's Letter respecting Thomas Menzes Esqr. received yesterday—

Ordered that Coll. Ludington carry into Execution the former Orders of this Committee respecting Thomas Menzes Esqr. in such manner as to him shall appear most prudent.—

Ordered that the Secretary transmit to Coll. Ludington by Express a Copy of the above Order.

Extract from the Minutes,

A. W. D. PEYSTER *Secry.*



Reduced Fac-simile of Letter, from Committee on Conspiracies, to Col.  
Henry Ludington.

(Original in possession of Charles H. Ludington, New York City)

The second is dated eight days later:

warrant from committee to apprehend sundry persons

In Committee of the Convention of the State of New York appointed for enquiring into, detecting and defeating all Conspiracies which may be form'd in the said State against the Liberties of America. Fish Kill Oct. 20, 1776.

Whereas this Committee did on the 17th inst. resolve that the following persons, Inhabitants of South East and Frederick Precincts in the County of Dutchess, should forthwith be disarm'd apprehended and secured, to witt, Uriah Townsend, Ebenezer Rider, Charles Cullen\*, Barns Hatfield, Uriah Wright, Joseph Hitchcock, Eli Crosby, Dr. Daniel Bull\*, Charles Theal, and Gilbert Dickeson—

Ordered that Coll. Luddington do forthwith apprehend and bring before this Committee the above mentioned Persons and that he secure the Papers of such whose Names are mark'd with an Asterisk in order that the same be examined by this Committee.—

Ordered that Capt. Clarke detach Leut. Haight with a Party of 15 Men, to repair to Coll. Luddington and to follow such orders as they may receive from him.

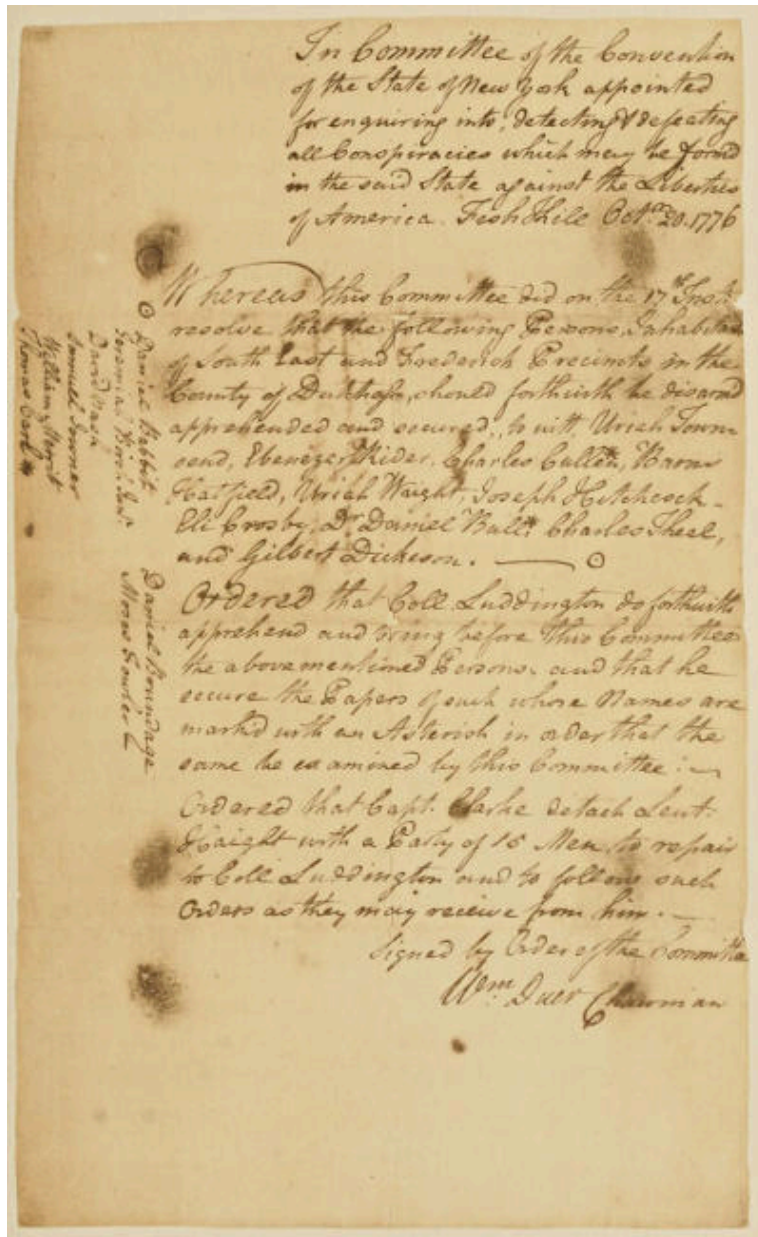
Signed by Order of the Committee,

WM. DUER *Chairman.*

In the margin of this warrant, which is here copied from the original in the possession of Charles H. Ludington, are these additional names:

Daniel Babbit Jeremiah Birch Junr. David Nash Samuel Towner William Merrit Thomas Carl\* Daniel Brundage Moses Fowler.

The Charles Cullen mentioned in the warrant was a brother-in-law of the distinguished jurist, Chancellor Kent.



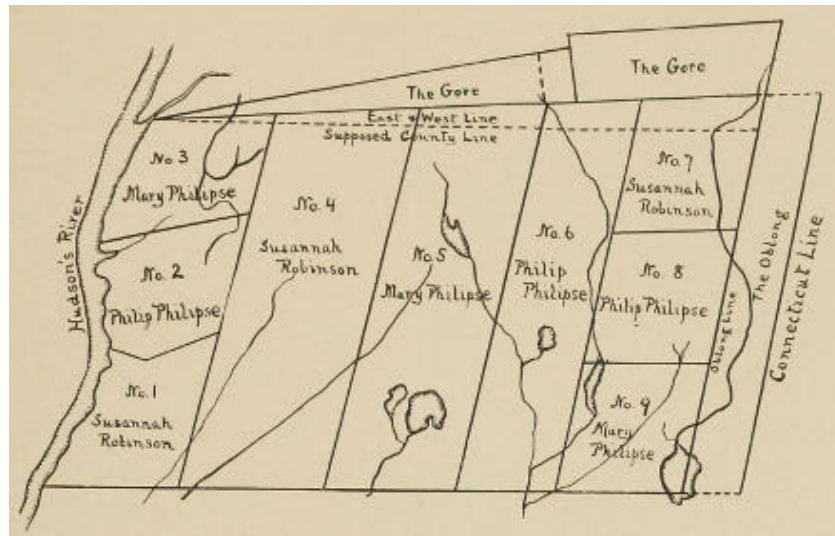
Reduced Fac-simile of Order of arrest issued, by Wm. Duer, Chairman of Committee on Conspiracies, of the "Provincial Congress of the State of New York" to Col. Henry Ludington.

(Original paper in possession of Charles H. Ludington, New York City.)

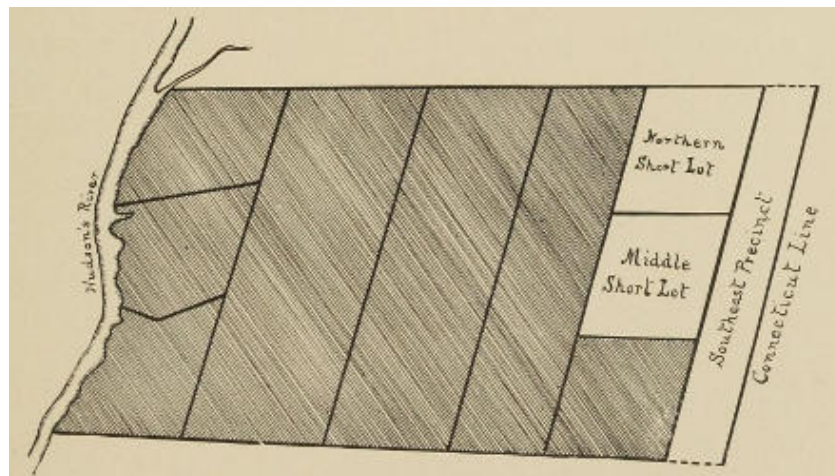
In order to understand clearly the geographical scope of the operations already and hereafter credited to Henry Ludington, the division of that part of Dutchess County into precincts should here be explained, with the aid of a map. The reference is to that southern part of Dutchess County which was afterward set off, as at present, into Putnam County. From 1737 down to March 24, 1772,

it was known as the South Precinct. On the latter date it was divided into three longitudinal strips, that along the Hudson being called Phillipse, or Philipsburgh Precinct; that in the central and east central part being called Fredericksburgh Precinct; and the smallest strip at the extreme east, consisting of part of The Oblong hitherto mentioned, being known as South East Precinct. It may be added, in anticipation of the narrative, that on March 17, 1788, these names were changed to Philipstown, Frederickstown, and South East, respectively; that on March 17, 1795, the towns of Carmel and Franklin were formed from Frederickstown, and the remainder of the last named was called Fredericks; that on April 6, 1808, Franklin was changed to Patterson, and on April 15, 1817, Fredericks was changed to Kent. It may further be explained that the Philipsburgh Precinct was subdivided into two nearly equal longitudinal strips, and the one along the Hudson River was again divided laterally into three parts, making four lots in all, which were numbered from 1 to 4, and which in the partition of the original Phillipse Patent were apportioned as follows: No. 1, at the extreme southwest, Susannah Robinson; No. 2, next at the west center, Philip Phillipse; No. 3, at the northwest, Mary Phillipse; and No. 4, the long strip inland from the river, Susannah Robinson. The Fredericksburgh Precinct was likewise divided into three longitudinal strips, and the easternmost of them into three laterally, making five lots in all, numbered from 5 to 9, and these were apportioned as follows: No. 5, the long strip next to No. 4 of Philipsburg, to Mary Phillipse; No. 6, a long strip next to No. 5, to Philip Phillipse; No. 7, a "short lot" at the northeast, to Susannah Robinson; No. 8, a short lot at the east center, to Philip Phillipse; and No. 9, a short lot at the southeast, to Mary Phillipse. When, as we shall presently see, Henry Ludington became colonel commanding a militia regiment, his territorial command included all of these nine lots excepting Nos. 7 and 8. He was thus of all the militia commanders nearest to the seat of government when it was at Fishkill, and was brought much into contact with state officials there.





Map of Philipse patent, showing original divisions



Map showing territory (shaded portion) covered by Colonel Ludington's regiment

Appreciating the important part which the militia would play in the conflict which was then seen to be impending and inevitable, the Provincial Congress of New York, in session at New York City on August 22, 1775, adopted an elaborate measure for the enlistment, organization and equipment of such troops. Every county, city, manor, town, precinct, and district within the colony was to be divided by a local committee into districts or beats, in such a manner that in each beat might be formed one military company, ordinarily to consist of eighty-three able-bodied men and officers, between the ages of sixteen and fifty—afterward sixty—years. Not less than five nor more than ten such companies were to form a regiment, and the regiments were to be organized into brigades.

One brigade was to be formed of the militia of Dutchess and Westchester counties, commanded by a brigadier-general. It was also ordered—

That every man between the ages of 16 and 50 do with all convenient speed furnish himself with a good Musket or firelock & Bayonet Sword or Tomahawk, a Steel Ramrod, Worm, Priming Wire and Brush fitted thereto, a Cartouch Box to contain 23 rounds of cartridges, 12 flints and a knapsack agreeable to the directions of the Continental Congress under forfeiture of five shillings for the want of a musket or firelock and of one shilling for want of a bayonet, sword or tomahawk, cartridgebox, cartridge or bullet. That every man shall at his place of abode be also provided with one pound of powder and three pounds of bullets of proper size to his musket or firelock.

There were numerous additional prescriptions, concerning discipline and drill, the duties and responsibilities of officers, and the penalties to be imposed for non-compliance. In case of any alarm, invasion or insurrection, every man thus enrolled was immediately to repair to headquarters, to wit, the home of his captain, and the captain was to march the company straight to the scene of invasion or insurrection “to oppose the enemy,” at the same time sending word to the regimental or brigade commander. A little later, to wit, on December 20, the Provincial Congress ordered that the militia of Dutchess and Westchester counties should form two separate brigades; whence we may assume that a larger enrolment of militia men was secured in those counties than had at first been expected.

The militia were called out whenever needed, and were kept out as long as they were needed, but they could be taken outside of the colony or state for no more than three months at a time. Sometimes, as Mr. James A. Roberts explains in his work on “New York in the Revolution,” a regiment or half of a regiment would be called out half a dozen times in the course of a year, perhaps for half a dozen days at a time; and again might not be called out once for a whole year. The regiments were commonly designated first by their colonels’ names and next by their counties. Officers and men seem to have served, says Mr. Roberts, in different organizations almost indiscriminately. At one call they were in one and at another they were in another regiment or company. Each colonel had almost unlimited powers in the district to which his regiment belonged, and he was specially required to see that every able-bodied male inhabitant between the ages of sixteen and sixty years was enrolled. Moreover, every such person must serve whenever called upon to do so, under penalty of fine and imprisonment;



and if incapacitated, he must contribute toward the cost of securing and equipping another man. Among the rations served to all were tobacco, sugar, and tea, and in addition the colonels and chaplains received liberal allowances of rum. A colonel's pay was \$75 a month, and a private soldier's pay \$6.66 a month; not always in money, but sometimes in state scrip and sometimes in authority to "impress" cattle and goods; for all which things taken receipts were to be given to the owners in the name of the state, so that payment could afterward be made.

This enactment by New York was made in pursuance of an act of the Continental Congress, on July 18, 1775, which "recommended to the inhabitants of all the united English Colonies in North America that all able-bodied, effective men between sixteen and fifty years of age, in each Colony, might form themselves into regular companies of Militia, to consist of one captain, two lieutenants, one ensign, four sergeants, four corporals, one clerk, one drummer, one fifer, and about sixty-eight privates."

Each company was permitted to elect its own officers; the companies were to be formed into regiments or battalions, officered with a colonel, lieutenant-colonel, two majors, an adjutant or quartermaster. All officers above the rank of captain were to be appointed by the respective Provincial Assemblies, or Conventions, or by the Committees of Safety.

One fourth part of the militia in every county was to consist of minute men, who were ordered "to be ready on the shortest Notice to march to any Place where their Assistance may be required for the Defence of their own or a neighboring Colony." As the minute men were expected to be called into action before the body of the militia were sufficiently trained, it was recommended "that a more particular and diligent attention be paid to their instruction in military discipline."

The equipment of these militia companies was at first painfully meager, and their muster-rolls, "spelled by the unlettered Muse," were such as would drive the modern officer to despair. As an example, the muster-roll of Captain Nathaniel Scribner's company may be cited, copied *verbatim et literatim* from an original MS. in the possession of Mr. Charles H. Ludington:

Capt. Scribner's muster role.

|                         |     |       |            |
|-------------------------|-----|-------|------------|
| Capt Nathaniel Scribner | gun | sword | o          |
| Ltn Daniel martine      | o   | o     | catrig box |

|                      |         |       |            |
|----------------------|---------|-------|------------|
| In David merrick     | o       | sword | o          |
| St. Thomas grigrory  | o       | o     | o          |
| St. Caleb hazen      | o       | o     | o          |
| St makis Brundige    | o       | o     | o          |
| Cl Thomas willson    | gun     | o     | catrig box |
| Cl Isaac Evritt      | gun     | sword | o          |
| Benianan hamblon     | fiffer  |       |            |
| Stephen Hyatt        | Drummer |       |            |
| Joshua grigrory      | o       | o     | o          |
| gilbirt ganung       | gun     | o     | o          |
| Samuel Pears         | o       | o     | o          |
| Caleb Pears          | gun     | o     | o          |
| Rusel grigrory       | gun     | sword | o          |
| freman hopkins       | o       | o     | o          |
| Samuel horton        | o       | o     | o          |
| Joseph hopkins       | o       | o     | o          |
| alexander pears      | o       | o     | o          |
| henery Bolding       | gun     | sword | o          |
| John ferguson        | gun     | o     | o          |
| Noah robinson        | o       | o     | o          |
| Joseph ganung        | gun     | o     | o          |
| Jesse ganung         | gun     | o     | o          |
| Elezur hazen         | gun     | o     | o          |
| william haighson     | o       | o     | o          |
| Lewis Furguson       | o       | o     | o          |
| abiiag Barker        | o       | o     | o          |
| Samuel Jinkins       | gun     | o     | o          |
| Jacob mead           | gun     | o     | o          |
| John mcLean          | gun     | o     | o          |
| John Lounsbury       | o       | o     | o          |
| John thrustin        | o       | o     | o          |
| Nathanel finch       | o       | o     | o          |
| Jona Carle           | o       | o     | o          |
| Thomas Furguson      | o       | o     | o          |
| Richard p e grigrory | o       | o     | o          |
| James Carle          | o       | o     | o          |

|                   |     |       |   |
|-------------------|-----|-------|---|
| Nathaniel Jinkins | o   | o     | o |
| David Storms      | gun | sword | o |
| John Slood        | o   | o     | o |
| John frost        | o   | o     | o |
| gorge Evritt      | gun | sword | o |
| Edward Vermilyea  | o   | o     | o |
| John Stedel       | o   | o     | o |
| Jonathan hustice  | gun | o     | o |
| Thomas Hall       | gun | sword | o |
| James Barker      | o   | o     | o |
| John wright       | o   | o     | o |
| Thadeus Ramond    | gun | o     | o |
| robint wright     | o   | o     | o |
| Beniaman Birdsel  | o   | o     | o |
| Isaac ganung      | gun | o     | o |
| Job Veail         | o   | o     | o |
| Isaac Slood       | o   | o     | o |
| adonija carle     | o   | o     | o |
| Samuel Conkling   | o   | o     | o |
| Elisha Bolding    | o   | o     | o |
| Jeremiah hughson  | o   | o     | o |
| Jerediah davis    | gun | o     | o |
| alaxander Brown   | o   | o     | o |
| gedien Simkins    | o   | o     | o |
| David Fowler      | o   | o     | o |
| Daniel worden     | o   | o     | o |
| abraham Furguson  | o   | o     | o |
| Jones Semans      | o   | o     | o |
| Nathanel Robinson | o   | o     | o |
| John Slood        | o   | o     | o |

Annexed to the muster roll was the following addendum:

These air men What is gon into the servis

Leftenant John munrow  
St. Josiah grigrory  
Jacob birdsel  
Jacob ganung  
john Shaw  
Solomon hustice  
parce bolding  
John Vermilya  
Richard Barker  
Daniel grigrory  
Zebulon wright  
Isaac merick  
Eli hopkins  
James mcfarling  
Rhubin finch  
Timothy wood  
Jonathan Semans  
william Virmilya  
Thomas hagson  
Jonathan hopkins  
moses hazen  
Samuel bouton  
Isaac Lounsbury.

In the work of enlisting and organizing these militia levies the most efficient men were naturally those who had already had military experience and command as officers in some of the colonial wars. Henry Ludington was among these. He had had such experience in a noteworthy degree, and to it he added both physical and temperamental aptitude for military labors, and an ardent spirit of patriotism. Leaving the service in 1759 as a lieutenant, he had, as already related, resigned his commission in indignation at the Stamp Act. On February 13, 1773, however, he accepted a commission as captain in Colonel Beverly Robinson's Dutchess County regiment, and this commission, which

was signed by William Tryon, the last British governor of New York, he held until 1775, or possibly 1776, when he cast it aside and entered the “Rebel” or Patriotic service. The militia of Dutchess County was organized, under the law already cited, in the fall of 1775, and on October 17 Petrus Ten Broeck, the colonel of the First or Rhinebeck and Northwest regiment, was commissioned brigadier-general commanding. Of the Second regiment of Dutchess County, Jacobus Swartwout was colonel, and when in time the militia of the county was so increased as to form two brigades, he was, on March 3, 1780, appointed brigadier-general commanding one of them. Swartwout’s commission as colonel was also issued on October 17, 1775, and at the same time Malcolm Morrison was commissioned first major and Henry Ludington was commissioned second major of his regiment. Ludington seems also to have served as captain of the company raised in his home district, and to have been prompt and energetic in his service; for on February 20, 1776, we find Colonel Swartwout in a letter to the Provincial Congress reporting that he was in hourly expectation of Captain Ludington’s appearance at regimental headquarters, together with Captains Woodford from Pawling’s, Clearck from Beekman’s, and Durling from Rombout Precinct. The Congress the next day ordered that all the men thus reported should serve until May 1 of that year, unless sooner discharged.

Soon afterward came Ludington’s first promotion. On March 8, 1776, Malcolm Morrison, the first major of Swartwout’s regiment, addressed to the Provincial Congress of New York this letter:

Gentlemen: Whereas the gentlemen of the Provincial Congress has been pleased to appoint me First Major in Colo. Swartwout’s regiment, and as my situation and business is such, that it is not within my power to serve without doing injustice to myself and creditors, having a considerable interest in my hands to settle, and having a large family to take care of without any person to assist me in settling my affairs, and whereas Major Henry Ludington, appointed in the militia, is prevailed upon to accept the commission sent me, and if agreeable to you, do resign in his favor. He can be recommended by Colo. Swartwout or the Committee of Dutchess County, and I hope you will be prevailed upon to appoint him in my stead, he being a person that has served in the last war and well acquainted in the military service, and, Gentlemen, your compliance will greatly oblige,

Your Very Humble Servant,

MALCOLM MORRISON.

Mr. Ludington waits for an answer.

N.B. Gentlemen, enclosed you have the commission.

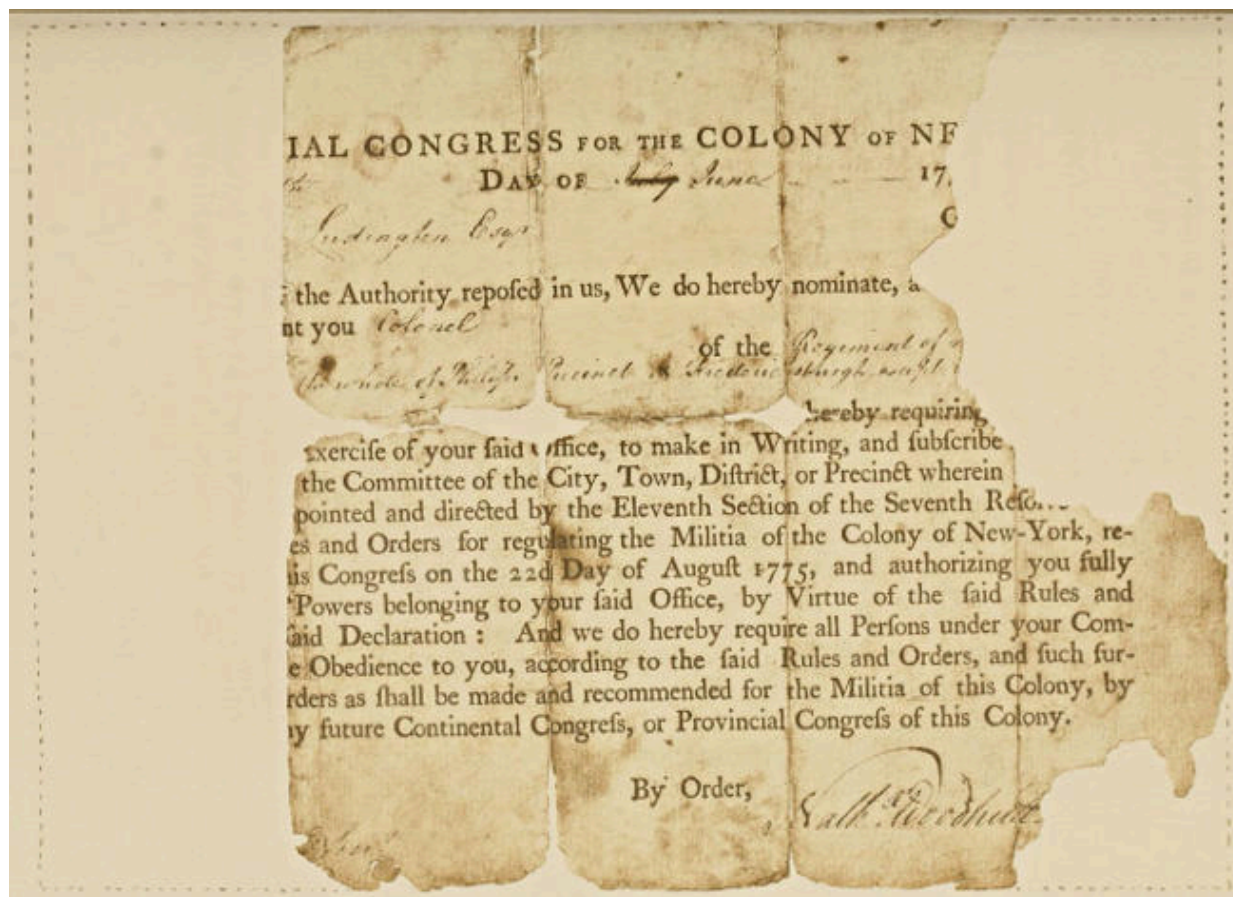
This extraordinarily naïve and unconventional letter was received on March 9, apparently being borne by Major Ludington himself as messenger. It was favorably acted upon, and the next day, March 10, Ludington was made first major of the regiment in Morrison's place. At this time the companies were not yet filled, and the regiment was small. But recruiting went on rapidly, so that by the first of May, 1776, the regiment was actually too large. Accordingly on May 6 the Committee of Dutchess County took action for the formation of another regiment in that part of the county, as reported in the following letter to the Provincial Congress:

Sir:—It having been represented to the General Committee of this County, that the Southern Regiment of Militia was too large and extensive, containing 12 companies and covering a space of country upwards of 30 miles in length, we have, therefore, not only because in other respects it was expedient, but also in compliance with the Resolution of Congress prohibiting a Regiment to consist of more than 10 Companies, divided it, and instead of one have formed the Militia in that quarter into 2 regiments, together with a list of persons nominated for Field Officers. As this part of our Militia will remain unregimented till the Officers receive their Commissions, we must request that the Commissions be made out as soon as possible and sent to the Committee in Rombout's Precinct with directions to forward them to the Officers immediately.

I remain, by order of the Committee,

Your very humble servant,

EGBERT BENSON *Chairman.*



Reduced Fac-simile of the Commission of Henry Ludington as Colonel.

From the "Provincial Congress for the Colony of New York," June 1776.

The new regiment, as described in an enclosure in Mr. Benson's letter, was to consist of all the militia in Phillipse Precinct, and in all of Fredericksburgh Precinct "except the Northern and Middle Short Lots"—at the northeast, as hitherto explained. The field officers nominated were as follows: Colonel, Moses Dusenbury; lieutenant-colonel, Henry Ludington; first major, Reuben Ferris; second major, Joshua Nelson; adjutant, Joshua Myrick; quartermaster, Solomon Hopkins. These nominations were promptly confirmed. A little later Henry Ludington was commissioned colonel of this regiment, to succeed Colonel Dusenbury. The exact date is not now ascertainable, but according to the mutilated remains of the commission, a facsimile of which is given in this volume, it was some time in June, 1776. The commission—his first as colonel—was issued by the Provincial Congress of the Colony of New York, and was one of the last acts of that body, which in that month of June, 1776, went out of existence, and on July 9 following was succeeded by a new Provincial Congress, meeting at White Plains, which the next day, July 10, changed its

name to the Convention of the Representatives of the State of New York. With this change of government new commissions were issued to officers, Henry Ludington receiving one as colonel, which is now in the possession of his grandson, Charles H. Ludington. His regiment, the seventh of the Dutchess County militia, was thereafter popularly known and indeed often officially designated as Colonel Ludington's regiment. Unfortunately its earliest muster-rolls and record of organization have not been preserved, or cannot now be found, but it is known to have consisted of six companies. The minutes of the Council of Appointment do not mention it until May 28, 1778, when it is called Colonel Henry Ludington's regiment. At this latter date Stephen Ludington was a second lieutenant in Captain Joel Mead's (1st) company. We may here add that in various rosters of New York troops the following names of members of the Ludington family appear, in addition to Colonel Ludington:

Stephen Ludington, and also Stephen Ludenton (doubtless the same person), private, in Brinckerhoff's company of Brinckerhoff's regiment—the second regiment of Dutchess County, Rombout Precinct.

Elisha Luddington, private, of Livingston's company of Malcolm's regiment—the first regiment of New York levies in the United States Army. Also, Elisha Luddington, private, in Barnum's company of Hopkins's regiment—the sixth regiment of Dutchess County.

William Luddington, private, in Westfall's company of Wessenfels's regiment.

Comfort Ludington, private, in Hecock's company of Field's regiment—the third regiment of Dutchess County. Also, Comfort Ludington, private, in Mead's company of Ludington's regiment—the seventh regiment of Dutchess County. Also, Comfort Luddington, captain of a company of the second regiment of minute men of Dutchess County, commissioned on February 26, 1776.

Early in June, 1776, probably at about the time of Colonel Ludington's appointment, and a month before the formal declaration of American independence, the Continental Congress called for 13,800 militia from the Colonies, to reënforce the army at New York, in addition to other levies for the army which was to invade Canada. New York's share of this levy was 3,750, of whom 3,000 were for service at New York and 750 for the expedition to Canada. The latter were naturally selected from the northern counties, while the 3,000 for local service were taken from the counties along the Hudson and around the city of New York. Among the latter were 335 men from Dutchess



County, a larger number than was contributed by any other county excepting New York and Albany. The Dutchess County contingent was ordered to be ready to march on June 21.



Reduced Fac-simile of the Commission of Henry Ludington as Colonel.

From the State of New York. May 28, 1778.

(Original in possession of Charles H. Ludington, New York City.)

The local needs of Dutchess County were not, however, to be overlooked. A committee of the New York Congress on June 20 reported that there were many disaffected and dangerous persons in Dutchess and Westchester counties, who greatly disturbed the peace, and who would probably take up arms whenever the enemy should make a descent upon that region, and that the requisitions of troops made by the Continental Congress had left the militia incapable of keeping peace and order “without great inconvenience to themselves and much injury to and neglect of their private property.” It was therefore recommended, and ordered, that 100 men and officers in Dutchess County and 50 in Westchester County be taken into the service of the Provincial Congress “and confined to the Service of those Counties.” The 100 men in Dutchess County were organized in two companies. On July 16 the Provincial Congress, or Convention, was in session at White Plains, and it there ordered that one fourth of the militia of those two counties should be summoned into active service,

until the end of the year; each man receiving \$20 bounty, and the same pay and subsistence as the Continental soldiers. Among those thus drawn into the service was Colonel Ludington.

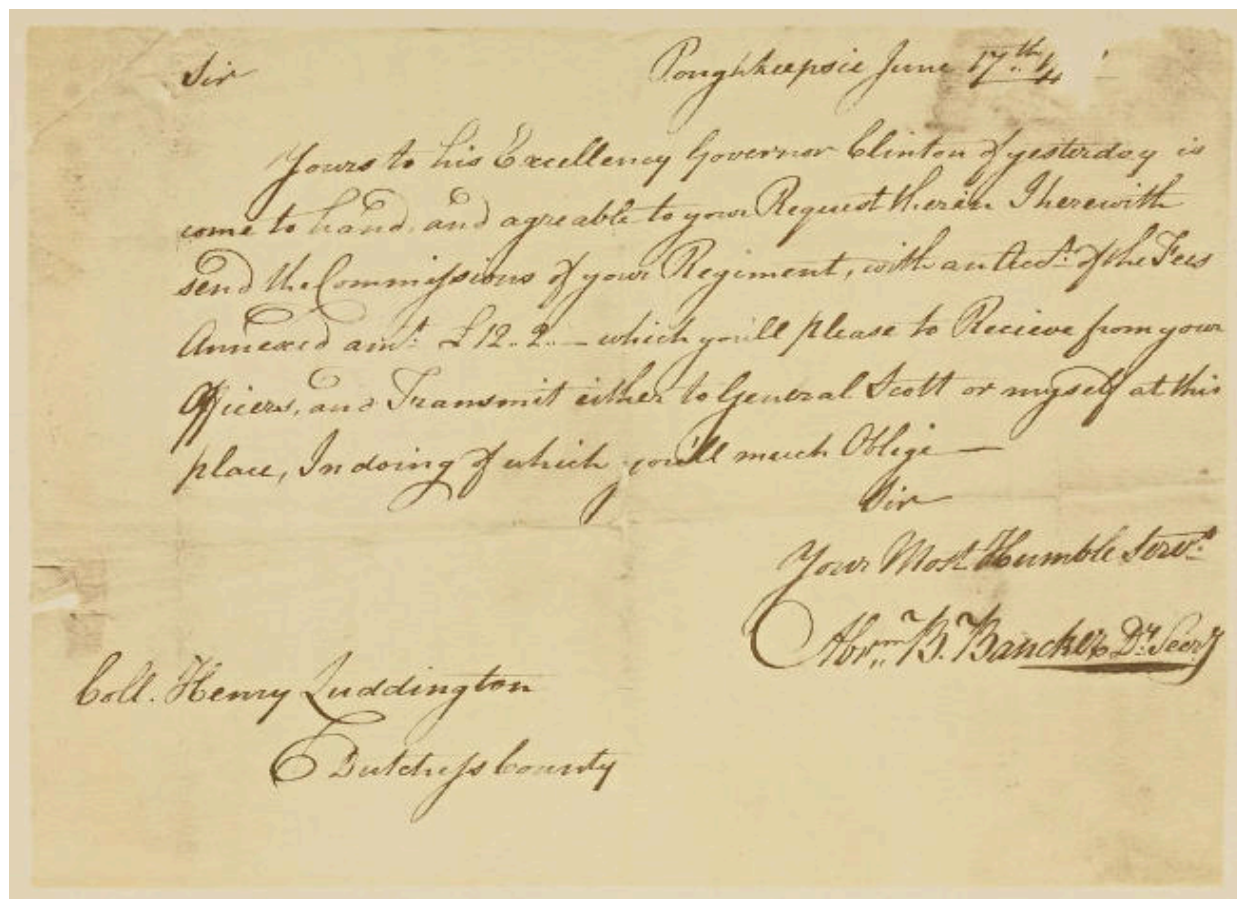
The first care of Colonel Ludington on assuming command of his regiment was to fill up its ranks and organize a complete staff of officers. In reporting to the Convention—or Provincial Congress, as he still called it—upon this work, he wrote under date of July 19, 1776, from Fredericksburgh, as follows, this letter being transformed into modern and corrected orthography, and others which follow being thus edited only enough to insure intelligibility:

These may inform Your Honors that I meet with some difficulty in furnishing my quota of men for the present emergency, for want of commissions in the regiment which I have the honor to command. We have a number of officers chosen already that have no commissions, and several more must be chosen in order to have the regiment properly officered. And whereas I have applied to the County Committee for blanks to be filled up, and there are none to be had, therefore I, in conjunction with the committee of this Precinct, would desire that there might be about twenty blank commissions sent up by Mr. Myrick, the bearer hereof. I would further acquaint Your Honors that the regiment is destitute of Majors, and would be glad if Your Honors would appoint two gentlemen to that office and fill up commissions for them. There are two gentlemen that I do, with the advice of the Committee, nominate, viz., Mr. Gee—his Christian name I am not able to tell—of Phillipse Precinct, and Captain Ebenezer Robinson of this Precinct. These gentlemen are doubtless known by several of the members of the honorable House.

From Your Humble Servant,

HENRY LUDENTON, *Colonel*.

To the Honorable Provincial Congress.



Reduced Fac-simile of Letter from Abraham Bancker to Col. Henry Luddington.

(Original in possession of Charles H. Luddington, New York City.)

The annals of the New York Convention, under date of July 20, 1776, relate that this letter was received, read, and filed, and that—

On reading the said letter from Colonel Ludenton, of Dutchess County, and considering the state of his Regiment at this critical time,

Resolved, That Commissions be issued to the two gentlemen therein named in said letter, and that 20 other Commissions be signed by the President and countersigned by one of the Secretaries and transmitted to Colonel Ludenton, to be filled up for the Captains and Subalterns of his Regiment when necessary, by the Precinct Committee and himself; that said Precinct Committee and Colonel Ludenton return to this Convention an exact list of the names, rank and dates of the Officers commissioned, which they shall fill up and deliver.

And Resolved, That the sending blank commissions to a Precinct Committee shall not from this instance be drawn into precedent.

In this fashion Colonel Ludington prepared for the stern activities before him. The “critical time” referred to in the resolutions of the Convention was indeed critical. New York was in imminent danger of being occupied by the British, and British warships were likely soon to ascend the Hudson River. John Jay was intrusted with the making of plans for the defense of the Hudson Highlands. On August 1, Jay, Duer, and others, were made a committee to draft a plan for a new government for the State of New York. The battle of Long Island was fought on August 27, and a little later the British were in full possession of New York and its environs. The Convention was driven to Harlem, to Kingsbridge, to Odell’s in Phillipse Manor, to Fishkill, to Poughkeepsie, and to Kingston. On October 20 the battle of Chatterton Hill was fought, at White Plains, in which Colonel Ludington’s regiment was engaged, and in which he himself served as one of Washington’s aides, and thus began his acquaintance with the commander-in-chief. When Washington’s army crossed the Hudson River, however, for the “devil’s dance across the Jerseys,” and the superb turning at bay at Trenton, the New York militia levies remained at home, where indeed they were sorely needed. The Tory element in Westchester and Dutchess counties had from the first been ominously strong. With the British victories in and around New York, and with the American Army in apparently hopeless rout and flight, they were emboldened to open hostility to the Patriot cause. A report to the Convention, or to the Committee of Safety, on September 4, made it appear that in the four counties of Dutchess, Westchester, Orange and Ulster there were only 3,100 armed and trustworthy militia, while there were 2,300 disaffected Tories and 2,300 slaves to be held in order. A month later the situation was much worse, and it was then that there was formed the committee already mentioned, “for inquiring into, detecting and defeating conspiracies against the liberties of America.” The war was now on, in earnest, and “malice domestic, foreign levy,” were both at once to be grappled with by the Patriot soldiers.

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## **CHAPTER IV**

### **THE REVOLUTION**

The public services of Henry Ludington during the war for independence were threefold in character. Each of the three parts was of much importance, each was marked with arduous toil and frequent perils, and each was performed to the full extent of his ability. Nor was the sacrifice of personal welfare inconsiderable. We have seen that he was the father of a large family, eight children having been born to him prior to the signing of the Declaration of Independence, and was the leasehold occupant of extensive lands. It was no light thing to absent himself from these. There was before him, moreover, the example of another and senior officer, who, because of family interests and engagements, had resigned his commission. That same commission had been passed on to Henry Ludington, who might with equal grace and reason have declined it or presently resigned it. There is, however, no indication that he ever contemplated such a step. Leaving his lands and home in the charge of his wife and children, the eldest of whom in 1776 was only fifteen, while the youngest was a babe in arms, he gave himself with whole-hearted devotion to whatever tasks his country might require of him.

The distinctively military services of Henry Ludington began at an early date. The first clash of arms after the Declaration of Independence occurred on the shores of New York Bay. The retirement of the American Army, after unsuccessful engagements, from Long Island, and then from Manhattan Island, brought the theater of war closer and closer to Dutchess County, and made the active participation of the militia more imminent. Indeed, even before those operations, the militia was called out to assist in securing the passes of the Hudson Highlands, and thus preventing any communication between the British at New York and those in Canada and the North Woods. The Convention or Legislature of the State, in session at Harlem, on August 8, 1776, adopted the following war measure:

RESOLVED unanimously that Brigadier General Clinton be, and he hereby is, appointed to the Command of all the Levies raised, and to be raised in the Counties of Ulster, Orange and West Chester, agreeable to the Resolutions of this Convention of the sixteenth day of July last.

RESOLVED that General Clinton be informed of this Appointment and directed immediately to send Expresses to the Counties of Ulster, Dutchess, Orange and West Chester, and order them to hasten their Levies and to march them down to the Fort now erected on the North side of Kings Bridge, leaving two hundred men under the Command of a Brave & alert Officer to take possession of and throw up works at the pass of Anthonys Nose.

RESOLVED that General Clinton be requested to order the Troops of Horse belonging to the Counties of Ulster, Orange and West Chester immediately to march to such posts as he may think proper that they should Occupy, in order to watch the motions of the Enemies Ships of war now in Hudsons River.

Extracts from the Minutes.

JOHN MCKESSON Secry.

When the ships of war had landed an army, and this was moving irresistibly northward, a committee of the Convention, meeting at Fishkill as a Committee of Safety, on October 10, further ordered:

RESOLVED, that the Commanding officer of the militia of Ulster County, do immediately send down 300 men of the Militia of the County of Ulster, to Peekskill well armed and accoutred with three days provisions.

RESOLVED, that the Commanding Officer on the south side of the Mountains or High-Lands in the County of Orange, be directed to order such a number of the militia from that part of the said County which lays on the south side of the High Lands as will be sufficient to Guard their shores, and to appoint a commissioner to supply them with provisions.

And that the Commanding Officer on the north side of the Highlands, in the said County, Order one hundred of the Militia from the north side of the High Lands of the said County to march without Delay to Peekskill taking with them three days provisions.

RESOLVED that Benjamin Haight and Mathew Harper be commissioners to supply them with provisions, and that this Convention will provide means for defraying the Expense.

ORDERED, that the Brigadier Generals of the Counties of Albany, Dutchess, Ulster and Orange, give orders to the several Colonels in their Brigades to hold

the one half of their several Regiments in Readiness to march at an hour's notice with five days provisions.

RESOLVED, that all Ranges raised in the County of Ulster repair immediately to Fishkill and be subject to the direction of the Committee for enquiring into, detecting, and defeating all conspiracies formed in this State against the Liberties of America.

Extract from the Minutes of this Afternoon.

JOHN MCKESSON, *Secr'y*.

The turning-point in the campaign which began at Brooklyn occurred on October 28, at White Plains. There, at Chatterton Hill, Washington once more engaged the British, and once more was compelled to retire before them. With the masterly strategy in which he was unrivaled by any soldier of his time, however, instead of falling back upon the defenses of the Hudson Highlands and thus inviting a conflict which might have cost him the possession of that crucial point, he retreated in another direction, south and west, thus drawing the British away from the Highlands and leaving the latter secure. Had the British, instead of pursuing him in that fruitless chase across the Jerseys, only to meet with disaster at Trenton, hurled themselves against the forts at West Point and elsewhere along the Hudson, they might easily have gained control of the Hudson, and thus have effected a junction with their northern forces and have altered the whole story of the war. We may suppose that that is what Washington would have done had he been in Clinton's place. The British did not do so, but fell into the trap which the wily American had set for them. In the battle at White Plains, however,—which is more to our purpose than the subsequent campaign,—the militia was largely used, and acquitted itself with credit. In an application for a pension made by Joshua Baker of Dutchess County, it was set forth that “On or about the 1st day of August, 1776, he enlisted at a place called Fredericksburgh in the County of Dutchess and State of New York at which place he was residing. That he entered the company commanded by Captain Luddenton in the regiment commanded by Col. Swartwout. That from Fredericksburgh aforesaid he marched with the said company to Peekskill and after a short time from thence to Kingsbridge in the county of Westchester, that he remained at Kingsbridge until the month of October, when they were ordered to White Plains, where he was in the engagement generally known as the battle of White Plains. In this engagement one of the Chaplains named Van Wyck was killed. Soon after the battle of White



Plains he marched with the said regiment to New Windsor where he was discharged.” The “Captain Luddenton” mentioned was presumably Comfort Ludington, who, as we have already seen, was an officer of the Dutchess County militia, and the statement of Baker is clear indication that that militia was engaged in the battle of White Plains.

Further evidence to the same effect, directly connecting Henry Ludington with that battle, is found in the affidavit of Elisha Turner, who declared “That in the fall of 1776 he was drafted for three months in Captain Joel Mead’s Company, Lieut. Porter, and Seargents Fisher and Brewsters in Colonel Ludington’s Reg’t New York State troops. That he joined his company and marched to White Plains and then joined his regiment and the Army, that he was present at the battle of White Plains and afterward retired with the army up the river. That he remained with his Regiment and company until his term of three months expired, when he received a verbal discharge from his Colonel and Captain and returned home.” Much other evidence to the same effect might be cited, were it needed, which it is not. There can be no doubt that Henry Ludington with his regiment was engaged at White Plains, and that he, himself, as a representative officer of the Dutchess County levies, was chosen to serve as an aide on the staff of Washington. The commander-in-chief appears to have recognized in Colonel Ludington a man upon whose brain and arm he might with confidence depend. It is a credible tradition that during that battle Washington complimented him upon his soldier-like bearing, and indirectly paid a tribute to his vigilance. A family tradition tells that as the two stood side by side, with the rest of the staff about them, Colonel Ludington noticed the British taking up a new position and placing their artillery, screened behind shrubs and trees, and directed Washington’s attention to the fact, which had been entirely unperceived by the others. “Yes,” said Washington, approvingly, “I have been watching them this long time.”

On November 6, the British began their fatuous movement toward New Jersey, imagining that the American Congress at Philadelphia, rather than the American Army and fortresses along the Hudson, was the strategical objective. The American Council of War unanimously agreed that Washington’s army should thereupon cross into New Jersey, anticipating the British advance, while three thousand troops, including Colonel Ludington’s Dutchess County militia, should be sent to reinforce the defenses of the Highlands. Washington left White Plains on the morning of November 10, and reached Peekskill at sunset of the same day, Colonel Ludington’s regiment presumably accompanying him. After a careful inspection of the works as far up the river as West Point, and after



giving directions for the disposition of the troops, on November 12 he passed over into New Jersey, and went his way to the disaster of Fort Washington, and the more than redeeming victory of Trenton. Meanwhile, Colonel Ludington remained at Peekskill, where there presently was a prospect of strenuous work. For having, as they imagined, put Washington to hopeless flight in New Jersey, the British turned a part of their attention to the very thing to which their chief attention should at the outset have been given. Plans were made for an advance up the Hudson, by land and water. West Point was to be avoided by marching up the east shore, where the defenses were not so strong. Such a movement must, of course, be resisted at all hazards. Washington, from his camp on the Delaware, in what Thomas Paine described as “the times that try men’s souls,” was able to spare enough attention from his own pressing extremities to write words of warning and exhortation to Governor Clinton, and in pursuance of his wise counsels the New York Convention, at Fishkill, on December 21, adopted the following resolutions:

WHEREAS, from various Intelligence received of the motions and Designs of the Enemy's Army, it appears highly probable that they meditate an attack upon the Passes in the Highlands on the East side of Hudson's River,

AND WHEREAS, the Term of the Enlistment of the militia under the command of Brigadier General George Clinton which is at present stationed to defend the Pass at Peek's Kill expires on the last of this month, and that a great part of the Division commanded by Major General Spencer, which is stationed at North Castle on the 29th inst.

AND WHEREAS, his Excellency Genl. Washington by his Letter of the 15th instant has warmly recommended to this state to exert themselves in procuring temporary supplies of militia 'till the new Levies of the continental army can be brought into the Field,

RESOLVED, that the whole militia of the Counties of Westchester, Dutchess and that part of the County of Albany which lies to the southward of Beeren Island be forthwith marched to North Castle in Westchester County, well equipped with arms and ammunition and furnished with Blankets & six days Provisions & a Pot or Camp Kettle to every six men, except such Persons as the field Officers of the Respective Regiments shall judge cannot be called into service without greatly distressing their families, or who may be actually engaged in the manufacturing of salt Petre, or of shoes and Cloathing for the use of the army.

RESOLVED, that the said militia be allowed continental Pay and Rations, and that such men as cannot furnish themselves with arms shall be supplied from the continental store.

Colonel Ludington and his regiment therefore remained on duty at North Castle until word came of the rout of the British at Trenton and Princeton, and Washington's triumphant return to the hills of Morristown for the winter. All imminent danger of a British attack upon the Highlands was then past, and the militia was permitted to return home for a time. The respite was brief, however. On January 3, 1777, Nathaniel Sackett was authorized by the Committee of Safety "to employ such detachments of the militia of Dutchess County as are not in actual service, as he may deem expedient, for inquiring into, detecting and defeating all conspiracies which may be found against the liberties of America." Also, on March 25, the Convention took further action, resulting in the issuance of this order by Governor Clinton:

To Colonel Morris Graham,

Pursuant to a Resolve of the Honorable the Convention of the State of New York, dated the 25th day of March last, empowering & requiring me until the first of August next to call into actual Service all or any Part or proportion of the Militia as well Horse as Foot of the Counties of Ulster, West Chester, Dutchess and Orange, for the Defence of the Posts and Passes of the Highlands, & frustrating the Attempts of the Enemy to make Incursions into this State you are for these Purposes forthwith, to draft by Ballot or other equitable Manner, one hundred & thirty three Men of your Regiment & them compleatly armed & equiped, cause to march, properly Officered, to Fort Independence near Peek's Kill there to join the Field Officers who shall be appointed to command them. The Companies to consist as nearly as may be of Sixty two Privates & to have a Captain & two Lieutenants.

Given under my Hand at Poughkeepsie this 3d Day of April 1777.

GEO. CLINTON, *B. Gen.*

Colonel Ludington appears at this time not to have been among those called to duty at Peekskill, but to have been left for a few weeks among those "not in actual service" who were to act under Nathaniel Sackett, as already related, for the suppression of conspiracies. The call to duty was not very well responded to by the other officers and men. The militia had been in the field in the early part of the winter longer than they had expected to be, and now, in the spring, they were desirous of remaining at home as much as possible to attend to the season's work on their farms. This reluctance to respond to the call provoked this action of the Convention, taken at Kingston on April 24:

WHEREAS it appears that a great Part of the militia of Dutchess County have neglected to obey the orders of General Clinton issued in consequence of a resolve of this House, for calling out a part of the militia of the Counties of Ulster, Orange and Dutchess to Garrison the forts and Guard the passes in the Highlands.

RESOLVED that Major Lawrence and Mr. Zephaniah Platt be & they are hereby appointed a Committee to repair forthwith to Dutchess County to enquire into the reasons of such neglect, that they use their utmost endeavours to convince the People of the necessity of exerting themselves at this critical Juncture, and that they make report to this Convention with all convenient Dispatch in order that the most effectual measures may be taken to induce a compliance with the aforesaid Resolve.

RESOLVED that General Clinton be & he hereby is empowered to make such disposition with respect to the officers of the militia under his Command as he shall judge most advansive of the Public Service and where any extra expense shall

accrue in consequence of this Resolve which cannot be considered as a Continental Charge this Convention will pay the same.

Extract from the Minutes.

ROBT. BENSON, *Secry.*

There was, however, no question concerning the activity and zeal of Colonel Ludington at this time. On April 25, the very day after the adoption of the foregoing resolution by the Convention, a force of two thousand British troops landed at Compo, near Fairfield, Connecticut, under command of General Tryon, the former British governor of New York, under whom Henry Ludington had once held a commission. It marched hastily inland, and on the afternoon of the next day reached Danbury, Connecticut, where there were large stores of provisions, tents, etc., for the American Army, many of which had been sent thither from Peekskill for—as was supposed—greater security. Not only these, but also most of the private houses in the town, were at once set afire, while the soldiers made themselves drunk with looted spirits, and gave themselves up to an unrestrained orgy. It was one of the most brutal and disgraceful performances of British arms in all the war, and was unhesitatingly denounced as such by self-respecting British officers. It does not appear that the raid had any other object than the destruction of Danbury, or the stores at that place, for as soon as the soldiers could be sufficiently sobered up thereafter, a retreat toward the British shipping on the Sound was begun. But on the American side the incident gave occasion for one of the most thrilling and gallant exploits of the war.

It was on Friday afternoon that the landing was made at Compo, and it was on Saturday afternoon that Danbury was burned. Patriot messengers rode at top speed in three directions—toward New Haven to hasten Generals Arnold and Wooster, who were already on their way; to meet General Silliman, to expedite his juncture with the others; and to Fredericksburgh to tell the news to Colonel Ludington, that he might furnish the troops which the generals would need. Railroads, telegraphs and other annihilators of time and space were unknown in those days. But the personal factor, which after all dominates all the problems of this world, was active and effective. At four o'clock Danbury was fired. At eight or nine o'clock that evening a jaded horseman reached Colonel Ludington's home with the news. We may imagine the fire that flashed through the veteran's veins at the report of the dastardly act of his former chief. But what to do? His regiment was disbanded, its members scattered at their homes, many at considerable distances. He must stay there, to muster all who came in. The messenger from Danbury could ride no more, and there was no neighbor within call. In this emergency he turned to his daughter Sibyl, who, a few days before, had passed her sixteenth birthday, and bade her to

take a horse, ride for the men, and tell them to be at his house by daybreak. One who even now rides from Carmel to Cold Spring will find rugged and dangerous roads, with lonely stretches. Imagination only can picture what it was a century and a quarter ago, on a dark night, with reckless bands of “Cowboys” and “Skinners” abroad in the land. But the child performed her task, clinging to a man’s saddle, and guiding her steed with only a hempen halter, as she rode through the night, bearing the news of the sack of Danbury. There is no extravagance in comparing her ride with that of Paul Revere and its midnight message. Nor was her errand less efficient than his. By daybreak, thanks to her daring, nearly the whole regiment was mustered before her father’s house at Fredericksburgh, and an hour or two later was on the march for vengeance on the raiders. They were a motley company, some without arms, some half dressed, but all filled with a certain berserk rage. That night they reached Redding, and joined Arnold, Wooster and Silliman. The next morning they encountered the British at Ridgefield. They were short of ammunition and were outnumbered by the British three to one. But they practised the same tactics that Paul Revere’s levies at Lexington and Concord found so effective. Their scattering sharpshooter fire from behind trees and fences and stone walls, harassed the British sorely, and made their retreat to their ships at Compo resemble a rout. Nor were instances of individual heroism in conflict lacking. Arnold had his horse shot under him as, almost alone, he furiously charged the enemy, and the gallant Wooster received a wound from which he died a few days later. There were far greater operations in the war than this, but there was scarcely one more expeditious, intrepid and successful. Writing of it to Gouverneur Morris, Alexander Hamilton said: “I congratulate you on the Danbury expedition. The stores destroyed there have been purchased at a pretty high price to the enemy. The spirit of the people on the occasion does them great honor—is a pleasing proof that they have lost nothing of that primitive zeal with which they began the contest, and will be a galling discouragement to the enemy from repeating attempts of the kind.... The people of New York considered the affair in the light of a defeat to the British troops.”



View of highroad and plains from site of Colonel Ludington's house

It was not long before there was a still more serious menace than the Danbury raid. In June, 1777, there were indications that the British were planning anew to gain possession of the Hudson River, and thus unite their own northern and southern forces while dividing the eastern from the middle and southern colonies. Colonel Ludington and his regiment were therefore summoned to Peekskill, to strengthen the defenses of the Highlands, and it was not without some difficulty that he was enabled to respond to the call. Some of his men had become half mutinous. They had been willing enough to rush to Danbury, but now, in the busy time of the early summer, they objected to leaving their farms when there was no enemy actually in sight. The same trouble was experienced by the other militia commanders. On this occasion the period of service at Peekskill was short. But on July 1, Washington wrote to Clinton that the British were believed to be operating against Ticonderoga and its dependencies; that Howe was preparing to evacuate the Jerseys to coöperate with the northern army, and that there was danger of a sudden attack upon the Highlands and the passes of the Hudson. He urged therefore, in the strongest manner, that all available militia should be called out to strengthen the garrisons at Peekskill and other places on the river. The next day Governor Clinton reported the gist of this letter to the Committee of Safety, adding that in consequence thereof he had "issued Orders to Colonels Brinckerhoff, Ludington, Umphrey & Freeze of Dutchess County to march their Regiments to Peek's Kill."

But the result was not altogether satisfactory. The men were ready enough for active service; but they demurred at waiting idly in the camp while their farms at home were suffering. On July 9, Clinton, in a quandary, wrote from Fort Montgomery to the president of the Convention:

The Militia which I ordered to this Post & who came in with great Expedition almost to a Man according to Custom begin to be extreemly uneasy. They want to go Home, their Corn is suffering, their Harvest coming on, and they cant see that it is likely there will be any Thing for them to do here suddenly. They have been frequently on the Dunderbergh to look down the River & cant see a single Vessel in it; What shall I do with them?

If I consent to their going Home they will Return when ordered again with great Chearfulness. If I dont, they will go (many of them at least) without Leave. I dont know what to do with them &, therefore, shall not do any Thing, without your Honor's Directions which I should be glad to have this afternoon.

As a result of this appeal, General Putnam on July 11 issued an order to the effect that, "considering the Busy Season of the Year, & how important it is to the public as well as to themselves that the Militia be at home in their Business at this Time, and not being wanted, Altho' he cannot say how soon they may be," the three regiments which first responded to the call, to wit, Ludington's, Humphrey's and Brinckerhoff's, were "dismissed with the General's thanks for their Alertness and for their good Services, relying upon it that the Zeal & Ardor they have shewn in the great Cause we are engaged in will prompt them to turn out without (*sic*) the utmost Alacrity on all future Occasions."

Another occasion was quickly supplied by the British, with their activities at the north and their renewed menace against the Highlands. On June 30, General Howe evacuated New Jersey, moved into Staten Island, and prepared to advance up the Hudson. On July 1, Burgoyne with his army appeared before Ticonderoga, and on July 6, the Americans evacuated that fortress. Washington, then at Morristown, wrote on July 10 to the president of the Continental Congress: "In consequence of the probability that General Howe will push against the Highland passes to cooperate with General Burgoyne, I shall, by the advice of my officers, move the army from hence to-morrow morning towards the North River." Though delayed somewhat by bad weather, he proceeded to Sufferns, and thence to Galloway's, in Orange County, New York, where he remained until he ascertained that Howe was not going up the river, but was really making a feint to cover a swift dash upon Philadelphia. Accordingly, on July 23, Washington's army was set in motion toward the Delaware, leaving the Highlands to their local defenders. The inefficient

and half treacherous Gates presently superseded Schuyler in command of the American Army at the north after the disastrous affair at Ticonderoga, and it is probable that Washington doubted his ability to cope with Burgoyne. At any rate, despite what he regarded as Howe's "unaccountable abandonment" of Burgoyne, Washington regarded the latter's movements with much apprehension, and frequently warned Clinton at the Highlands to be on his guard against him. On July 31, he urged Clinton to call out the militia to reinforce the garrisons, and Clinton wrote as follows to the Committee of Safety, a letter which throws much light upon the embarrassments from which he suffered:

The Proportion to be furnished by this State is 500 and it shall be my first Business to issue the necessary Orders for march'g them to the respective stations for which they are intended.

I am nevertheless apprehensive that I shall find it extremely difficult to compleat even this small Number. The Continental Pay and Rations being far below the wages given for ordinary Labor the Difference becomes a Tax rendered by personal Service and as the Train Band List from the Exemptions arising from Age Office & other Causes consists chiefly of the Middling & lower Class of People this extraordinary Tax is altogether paid by them.

Add to this that unless a proportionate Number is called out of each County which in most Cases is inexpedient the County affording the most Men is upon the same Principle charged with a Tax to which the other Parts of the Community do not contribute.

These Reasons are so clear as to be generally understood and complained of by the Militia and unless those exercising the Legislative Power of the State shall in their Wisdom devise some Plan in which those Inconveniences will be obviated and the Militia Duty become more equal I am extremely apprehensive that any Orders for calling Detachments to the Field for a limited Time will not hereafter be so duly obeyed as the Nature of Military Command and the good of the service absolutely requires. It wo'd be needless to observe to you, Gentlemen, that tho my Office as Governor gives me the Command of the Militia I am not vested with authority to promise even the ordinary Continental Pay and subsistence to any greater Number of Men than those required of me by his Excellency the Commander in Chief, whose Requisition entitles those who are called into actual Service in Consequence thereof to a Compensation from the Continent at large.

In consequence of this letter of Clinton's the Committee of Safety the same day ordered that "Continental pay and rations be advanced on behalf of the Continent, to all such Militia as his Excellency the Governor shall think proper to call out."



Colonel Ludington was not included in the summons to the Highlands, but was selected by Clinton for other and, as it proved, actually more active service, in the borderland of Westchester County. Clinton wrote to him as follows, from Kingston, on August 1, 1777:

The Operations of the Enemy ag't the State to the Northward as well as the exposed Situation of some of the Southern Counties to the Incursions of the Enemy from that Quarter, render it expedient to call into actual Service, a very considerable Proportion of the Militia in the Classing of the different Regiments for these Services your Regiment & Colo. Fields' with the other Regiments of W. Chester County are to furnish 310 Men, including Non Commissioned Officers & Privates properly officered armed & accoutred, as you'l see by the inclosed Order; and, as you are appointed to take the command of this Detachment, I desire that you will, immediately upon the Receipt hereof, direct and forward to the Commanding Officers of the other Regiments who are to furnish Men towards this Detachm't, one of the inclosed Resolutions & Orders, and exert yourself in having them raised with all possible Expedition and march them to such Stations in W. Chester County as will tend most to the Protection of the Inhabitants and best conduce to the Public Safety. Taking your Directions occasionally from the Command'g Officer at Peek's Kill.

The Inclosed Resolutions of the Council of Safety subjecting Exempts to a Proportion of the Common Burthen will, I hope, enable you to carry these Orders into Execution with greater Ease, especially as every Other Regt. in the State will furnish an equal if not a greater Number of Men for the Service.

I am &c.

(G. C.)

Colo. Ludington.

The Troops will be allowed Continental Pay & Rations & a Bounty to be raised agreeable to the within Resolve from the Fines levied on the Exempts refusing Service.

A few days later another alarm was caused by the uncertainty which attended the movements of the British fleet, which, after sailing from New York to the capes of the Delaware as if to attack Philadelphia, suddenly put to sea again and disappeared for a time. Washington communicated his observations and suspicions to Clinton, and Clinton, on August 5, countermanded his orders to Ludington in the following letter:

By Dispatches just Rec'd from his Excellency Genl. Washington dated at Chester in Pennsylvania 1st Aug't, I am informed that the Enemy's Fleet have left the Capes of Delaware & are steering Eastward & his Excellency is fully of Opinion they intend (proceeding) up Hudson's River. From this Intelligence & the great Preparations making by the Enemy at Kings Bridge for an Expedition, I have not the least Doubt but that their Designs are against this Quarter & by vigorous Exertion they hope to join their two Armies before ours can arrive to oppose them. His Excellency is apprehensive of this also & has requested me to call out all the Militia of this State to oppose the Enemy till he can arrive with his Army. You will, therefore, on receipt hereof with the utmost Expedition march your Regt. to Fort Montgomery compleatly armed and accoutred, leaving the frontier Companies at Home embodied & on Duty to guard ag't any small Parties of Tories or Indians. I mean to repair to the Fort with all Expedition & take the Command.

Clinton then notified Putnam at Peekskill that he had ordered Ludington's and also Field's and Brinckerhoff's regiments to join him forthwith, and on August 9 reported this action to Washington. But it was one thing to order and another thing to have the order fulfilled. The militia exhibited their former reluctance to go into camp unless the enemy were actually in sight. This applies, however, to the other regiments rather than to Colonel Ludington's. No complaint of his inactivity or his inability to furnish his quota of men appears. But on August 20, Colonel Humphrey reported that his regiment was unwilling to march northward, meaning, no doubt, to go up the river beyond the Highlands to the aid of Gates against Burgoyne, as there was some desperate talk of doing; and John Jay and Gouverneur Morris reported that Gates's army could hope for no militia reinforcements excepting from Albany County, and that garrisons should be provided for the Highland forts when the terms of enlistment of the militia should expire. This was the more essential as the regular garrisons had largely been sent north to aid Gates. A little later, on September 4, Colonel Dirck Brinckerhoff wrote from Fishkill to Clinton in answer to some strictures as follows:

Sir,

You Blame me in Your Letter for Disobeying the Orders I first Receiv'd for all the Militia to go to Peekskill, but it was by Consent of General Putnam, that Only part should go, and be Reliev'd by the Same number from time to time in Such Manner as I thought proper, which has Strictly been done.

Agreeable to your Last I have Order'd half the Militia out, but it is allmost impossible to get them to go, on account of the Exempts not going, Aledging this is

not a General Alarm; therefore, should be Glad of Some further Regulation in that Respect, and Possitive Orders from you how to act in that affair, I am Sir,

Your Ob't. Hble. Serv't

DIRCK BRINCKERHOFF.

To His Excellency George Clinton Esq.

Colonel Ludington, meanwhile, was busy elsewhere, in another department of his public duties, of which we shall speak hereafter. At first commissioned to serve in Westchester County, then ordered to the Highlands, he seems to have been permitted to remain in Westchester and lower Dutchess counties, where some strong hand was sorely needed. But on September 15 came news of the battle of the Brandywine, in which the Stars and Stripes was first unfurled in battle, but in which the Americans were defeated. The news was ominous of the fall of Philadelphia and of the martyrdom of Valley Forge, and it caused some consternation along the Hudson. Clinton at once ordered eleven New York militia regiments to reinforce the Highlands, among them Colonel Ludington's, which was to proceed at once to Peekskill to serve under General Putnam. For the first time Ludington seems to have had some difficulty in complying with orders, for, on September 29, we find Clinton writing to him, as well as to the other colonels of militia, expressing surprise at the circumstance that, although he had ordered the whole of the regiments to reinforce the garrisons, not more than 300 men of six regiments had responded; and adding a peremptory command that one half of each regiment should go into service immediately for one month, and then be relieved by the other half.

There was indeed cause for these preparations, for the British were at last actually beginning their advance up the Hudson in aid of the hard-pressed Burgoyne, though all too late to save him. At the beginning of October the British fleet appeared in the Hudson, and on October 4 a landing was made at Tarrytown. Of what occurred there, we have two contemporary accounts. One was given in the New York "Journal" of May 11, 1778, by one of the garrison of Fort Montgomery, which, as we shall see, was presently captured by the British. "On Saturday night," says that narrator, "we had advice that a large number of ships, brigs, armed vessels, &c., had arrived at Tarrytown, where they had landed a considerable body of men, supposed to be about one thousand, and had advanced toward the plains. Colonel Lutlington being posted there with about five hundred militia, they sent in a flag to him requiring him to lay down his arms and surrender himself and men prisoners of war. Whilst he was parleying with the flag they endeavored to surround him, which he perceiving ordered his men to retreat. The British then returned to their shipping, and the next morning we had advice of their being under

sail, and coming up as far as King's Ferry." The "Colonel Lutlington" referred to was, of course, Henry Ludington. By "the plains" it is to be supposed White Plains was meant, that village being distant from Tarrytown about seven miles.

The second account, much more circumstantial and authoritative, is that of Colonel Ludington himself in his report to General Putnam. He was at that time stationed at Wright's Mills, between Tarrytown and White Plains, guarding the inhabitants from the depredations of Tory and Indian marauders. He wrote to General Putnam as follows:

Sir. I must acquaint you of my yousage in this place. I find the militia was to join and I have not had the assistance of one man. you must well Remember you ordered Capt Dean and Capt Stephens. Stephens I never have seen. Dean I showed your order and Rote a few days ago Begging him to assist me scouting. I have inclosed his answer to me. You must not depend too much upon my little party, if I am to gard the inhabitants I must be Reinforced speedily or shall be obliged to post my men in some Better place of Security

and am Sir Your obedient Humble Servant

HENRY LUDINGTON

3 oclock october 4th 1777  
at Rites mills

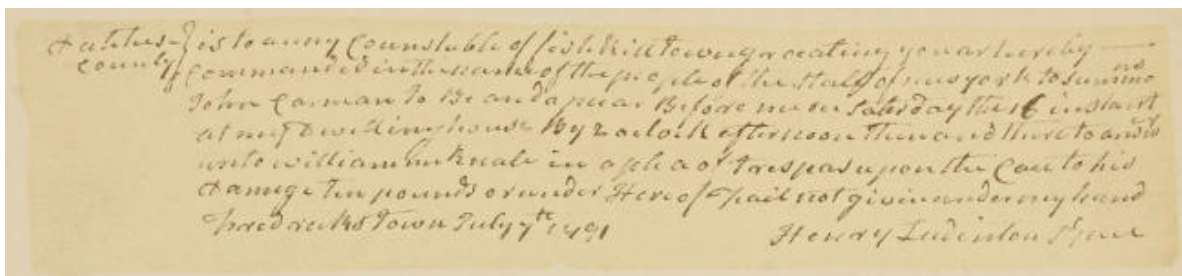
P. S. I beleive the inhabitants are entirely stript where they go.

Honoured Sir: in haste I am to acquaint you that they came up Last night with 2 frigets and five or six Royale and tenders and about 40 flat Bottommed boats and landed about 3 thousand men under the command of governor Tryon. They immediately took the heights above Tarrytown and from thence kept the Heights until they thought they had got above our party. But Luckily we had got above them and paused at mr Youngses where we thought Best to move towards them where we were in open view of them and found them vastly superior to us in numbers and moved off to Rights mills, Having no asistance more than our Little party belonging to our Regiment. I found on our Retreat before we got back to Youngses they had sent forward a flag, But found that was in view of trapping us as they had flanking parties who we discovered in order to surround us. But after clearing the Regiment I rode Back and met the flag within a quarter of a mile of their main body. The purport of his errand was that governor Tryon Had sent him to acquaint me that if we would give up our arms and submit they would show us mersy or otherways they were determined to take us and strip the contre (country). Sent in answer that as Long as we had a man alive I was determined to oppose

them and they might come on as soon as they pleased. We have not lost a man and the last move of the enemy was from Youngses towards the plains.

N. B. the maj. is Gone home on furlow

HENRY LUDINGTON.

A fac-simile of a handwritten note in cursive script. The text is written on a single sheet of paper and appears to be a postscript or a separate note. The handwriting is fluid and characteristic of the late 18th century. The note mentions a 'County' and 'John Carman' and ends with the signature 'Henry Ludington'.

Fac-simile of Col. Henry Ludington's signature.

This report is unquestionably authentic, although the "P. S." has no address, date nor signature, and is on a separate sheet of paper from the letter and the "N. B." But it is in Henry Ludington's handwriting, precisely the same as the signed letter, and is on precisely the same kind of paper. Doubtless, then, the "P. S." was hurriedly written after the letter, the British attack having occurred between the two writings, and was enclosed with the letter without taking time to sign it in any way. The MSS. were in the possession of the late Douglas Putnam, of Harmar, Ohio, a great-grandson of General Putnam, and were left by him to his daughter, Mrs. Francke H. Bosworth, of New York. It is interesting to observe that it was with his old chief, Tryon, that Ludington had on this occasion to deal again. He estimates the number of the British three times as high as does the other and less authoritative chronicler, and is probably more nearly correct. It may be assumed that the former statement that he had "about five hundred militia" was much exaggerated. His own official report of the day before shows his entire force at Wright's Mills to have comprised "One Colonel, 1 Lt. Colonel, 5 Captains, 10 Leutenants, no Ensign, no Chaplain, 1 Adjutant, 1 Quartermaster, 1 Surgeon, no Surgeons mate, 19 Sergeants, 9 Drummers and Fifers, 182 present fit for duty, 19 sick present, 3 Sick Absent, 19 on command, 10 on Furlough, Total 233." With such a mere handful, he certainly acquitted himself most creditably against the vastly superior force of Tryon.

Putnam was at Peekskill for the express purpose of guarding the passage up the river. He had there about 600 regulars and a much larger number of militia. Governor George Clinton was at Fort Montgomery, and his brother James Clinton at Fort Clinton, with combined forces variously reported at from 600 to 1200 men, mostly militia. Putnam had scout boats along the river, and an elaborate system of scouts on land. Yet, says General De Peyster, "the British Clinton ... took advantage of a fog, transferred his troops over to the western side of the river, to

Stony Point, made a wonderful march across or rather around the Dunderberg Mountain, and carried Forts Clinton and Montgomery by assault, performing the most brilliant British operation during the seven years' war." George Clinton suffered heavy losses in troops, and narrowly escaped capture; the State capital, Kingston, was exposed to the enemy's advance; and Putnam retired to the mountains, sending word to Gates that he must prepare for the worst as he could not prevent the enemy from advancing up the river to the aid of Burgoyne. "The enemy can go to Albany with great expedition and without any opposition." In the presence of this disaster two things were uncommonly fortunate for the American cause. One was that Gates was not alone in the north, but had Arnold, Schuyler, and Morgan with him to brace him up. The other was that the British did not attempt to go on up to Albany. After garrisoning Fort Montgomery, Sir Henry Clinton returned to New York. On October 15, he sent an expedition, under General Vaughan, up to Kingston, and the next day burned that village, the State government having previously fled to Poughkeepsie. Other ravages, of looting and burning, were committed along the river, to the disgrace of the British arms. But there was some consolation to the stricken patriots in the news that the very day after the burning of Kingston, Burgoyne, beaten by Arnold, Schuyler, and Morgan, surrendered to Gates with all his army.

During the winter of 1777-78 Colonel Ludington was chiefly busied with other features of his public duties, and appeared little in the field. He was a valuable adviser to the State government on military affairs, and, realizing from experience the great difficulty of maintaining a satisfactory militia service in time of actual warfare, urged the formation of another regiment of regulars. On December 18, Governor Clinton referred to this project in a letter to General Putnam. He urged the necessity of strengthening the defenses of the Hudson River, and said that he expected the Committee of Safety at Poughkeepsie in a few days. He would then lay before them the proposal for a new regiment of regulars and added, "I should be glad to have Colo. Ludington's Plan." That winter, the winter of Valley Forge, was a hard one in which to raise recruits of any kind, especially in view of the fact that the troops had received no pay for their services for a long time past. Colonel Ludington felt this keenly, and on being asked by Clinton to furnish a certain number of men from his regiment for the new regiment of regulars, he wrote very frankly on the subject:

Honoured Sir, I am under the Disagreeable Necessity of acquainting you, that I find it to Be out of my power to Comply with your Orders in Regard of Raising the Coto (Quota) of men aloted me to Raise out of my Regiment, and that for Sundry Reasons. In the first place, the money Raised in the other Regments By their asesments amounts to one Hundread pounds Bounty to Each Soldier By Reason of

the Exempts Being able and among whom are a number of Quakers. But it is not the Case in my Regiment, For, By the Best Computation we Can make, we Cannot Raise more than 30 Dolars a man, though I would not Be understood that we have gone through with the asesments and that for this Reason: the act for asesing the Exempts Expresly says that the officers who aseses the Exempts Shall Be Freeholders, and I have not Such an officer in my Regiment. We have met Sundry times in order to try to Raise the men and I yoused my Best Endeavours that they Should Be Raised, But I have not an officer that will asist the Exempts. The officers tell me they posatively will not Call their Companies out until they get pay for their Past Servises in order to avoid Service; on that account I have had their pay roles maid up in time and Signed By the general, and Have weighted on the pay master for the money Every few Days, and yesterday for the Last time, and He then told He had no prospect in geting the money in Sum months. That Being the Case I am Sory I must Tell your Honour that I know not what further measures to take until I have Sum further instructions in Regard of the matter. It is my opinion that we Shall never Raise the men, unles the State asists us in Raising a part of the Bounty and the Soldiers gets their wages for their past Servises. Sir, a few lines from your Honour in Regard of the above, By way of instructions, will mutch oblige your Humble Servant,

HENRY LUDINTON.

Fredricksburgh February 20th 1778.

To His Excelency George Clinton Esqr. Governor.

P. S. Sir, if there Be a late act past in Regard of Raising the men and a Bounty for them, please to Convey the Same as I have Had no opportunity of acquainting my Self with it. The Returns of the Regment you Shall Have next week, which Should Have Had Before now, Had it not Been for the neglect of sum of the Captains not sending in their Returns.

Colonel Ludington had, however, rather better success in holding his own regiment together than did some other colonels of militia, as the following return shows:

Return of the Regiment of Militia of the County of Dutchess and State of New York. Command'd by Collonel Henry Ludinton.

Fredricksburgh Precinct March 23rd 1778.

|                 |                  |
|-----------------|------------------|
| Field Officers. | Comm'd Officers. |
|-----------------|------------------|

| COMPANIES                         | Collonel. | Lieut't<br>Coll'l. | Major. | Capt'ns. | Lieut's. | Ensigns. |
|-----------------------------------|-----------|--------------------|--------|----------|----------|----------|
| John Crane's                      |           |                    |        | 1        | 2        | —        |
| David Waterbury's                 |           |                    |        | 1        | 2        | 1        |
| John Haight's                     |           |                    |        | 1        | 2        | 1        |
| Hezekiah Meed's                   |           |                    |        | 1        | 2        | 1        |
| George Lane's                     |           |                    |        | 1        | —        | 1        |
| Nathaniel Scribner's              |           |                    |        | 1        | 2        | 1        |
| Joel Meed's                       |           |                    |        | 1        | 2        | 1        |
| Total Strength of<br>the Regiment |           |                    |        | 7        | 12       | 6        |

| COMPANIES                         | Staff Officers. |          |                    | Non Comm'd. |          |                      |
|-----------------------------------|-----------------|----------|--------------------|-------------|----------|----------------------|
|                                   | Adjutant.       | Surgeon. | Quart'r<br>Master. | Serg'ts.    | Drum'rs. | Rank<br>and<br>File. |
| John Crane's                      |                 |          |                    | 4           | 1        | 60                   |
| David Waterbury's                 |                 |          |                    | 4           | 1        | 57                   |
| John Haight's                     |                 |          |                    | 4           | 0        | 51                   |
| Hezekiah Meed's                   |                 |          |                    | 4           | 1        | 74                   |
| George Lane's                     |                 |          |                    | 4           | 0        | 49                   |
| Nathaniel Scribner's              |                 |          |                    | 4           | 2        | 58                   |
| Joel Meed's                       |                 |          |                    | 3           | 1        | 72                   |
| Total Strength of<br>the Regiment |                 |          |                    | 26          | 6        | 421                  |

Colonel Ludington and his regiment were again called to the defense of the Hudson at Fishkill in June, 1779, on the alarm caused by the British seizure of Verplanck's Point, and a few days later returned to the vicinity of Crom Pond to resume the local police work which formed so large a part of their duties. There, before daylight of June 24, they were surprised by an attack of about two hundred British cavalry, which had made a dash all the way up from New York. Nearly thirty of the militia were killed and wounded in the sharp skirmish which ensued. At the same time 130 British light infantry came across from Verplanck's Point and made a demonstration in aid of the cavalry. On another occasion a similar attack was made while the Americans were at breakfast, close by the church, which at the time was used as an arsenal.



After these services the regiment was marched home to Fredericksburgh and for a time disbanded. On this occasion Colonel Ludington wrote to Clinton as follows:

Honoured Sir, I embrace this opportunity of acquainting you that according to Colo. Swartwout's orders to me of Yesterday I thought Proper to discharge my Regt who I must beg leave to acquaint you have acted with the greatest Spirit since they have been hear and have gon home with a full determination to turn out at a minute's warning. In my last I wrote you to know the mode adopted for Punishing those who have not turned out according to their being Warned, for I am highly sensible that if they are not brought to a sevear Punishment it will give offence to those Who have dun their Dutey. I must allso Return your Excellency thanks for Recommending to me Mr. McClennen who has truley answered the Character I have had of him as I have Experienced his services in Spiriting the Militia in these Parts and my Regt in Particular. I remain in the mean time

with Respect your Excellencys most obedient Humble Servt

HENRY LUDINTON.

Fredh Burgh Juley 11, 1779.

To Governor Clinton.

Later in the same year a radical reorganization of the militia forces was effected under the following orders:

Poughkeepsie Oct. 11th, 1779.

Brigade Orders.

Agreeable to General Orders of the 10th Instant issued by his Excellency the Govr., 1078 Men, including Non Commissioned Officers, drums and fifes, are to be Detached out of Colo. Comdt. Swartwout's Brigade of Militia to Continue in Service for the term of three Months unless the particular service for which they are drawn out shall be sooner Completed.

The Detachments from the several Regiments in this Brigade to be as follows, viz.—

|                          |         |
|--------------------------|---------|
| From Colo. Graham's Regt | 196 Men |
| Colo. Frear's do         | 156     |
| Colo. Hopkins do         | 192     |
| Colo. Field's do         | 117     |

|                          |            |
|--------------------------|------------|
| Colo. Luddenton's do     | 144        |
| Colo. Van Der Burgh's do | 118        |
| Colo. Brinckerhoff's do  | <u>155</u> |
| Total                    | 1078       |

The above Detachment to be formed into Two Regiments under Command of Colos. Graham and Hopkins, in the following manner, viz.,

The Detachments of Colos. Graham's, Frear's, Van Der Burgh's and 69 Men of Colo. Field's Regiments to be formed into one Regiment under Command of Colo. Graham.

The Detachments of Colos. Hopkins, Luddenton's, Brinckerhoff's, and 48 Men of Colo. Field's Regts. to be formed into another Regiment under Command of Colo. Hopkins.

Colo. Graham's Field Officers to be Lieut. Colo. Birdsall and Majr. Hill,

| Captains.       |                             | Subalterns.          |
|-----------------|-----------------------------|----------------------|
| Andw. Heermans  | Colo. Graham's Regt.        | John Seton           |
| James Wilson    |                             | Andw. Heermans Junr. |
| Hustid          |                             | John Wilson          |
|                 |                             | Jonathan Darling     |
|                 |                             | and                  |
| Lemuel Conklin  | Colo. Frear's Regt.         | Montgomery           |
| Hugh Van Kleeck |                             | Weeks                |
|                 |                             | Hendrickson          |
|                 |                             | Van Der Bogart       |
|                 |                             | Tredwell             |
| Israel Vail     | Colo. Van Der Burgh's Regt. | Bently               |
|                 |                             | Hall                 |
| Pierce          | Colo. Field's Regt.         | Elliot               |

Colo. Hopkins Field Officers are Lieut. Colo. Griffen and Majr. Paine.

| Captains. |                     | Subalterns.     |
|-----------|---------------------|-----------------|
| Wheeler   | Colo. Hopkins Regt. | Wm. Chamberlain |
| Waters    |                     | Elijah Parks    |
| Talmadge  |                     | Elliot          |

Parley  
Jonas Parks  
Hoskin

|                     |                            |                   |
|---------------------|----------------------------|-------------------|
| Geo. Brinckerhoff   | Colo. Brinckerhoff's Regt. | Christian Dubois  |
| Jno. Van Bunschoten |                            | Abraham Shults    |
|                     |                            | William Swartwout |
|                     |                            | Abraham Hoogland  |

|        |                     |          |
|--------|---------------------|----------|
| Barnum | Colo. Field's Regt. | Chandler |
|--------|---------------------|----------|

Colo. Luddenton and his officers being absent, he will with advice of his field officers nominate and furnish one Captain and Three Subalterns, to join Colo. Hopkins' Regt.

The above Detachments to be Compleated and at the place of Rendevous without Delay, Compleatly Equipped, Agreeable to Genl. Orders, to which the most strictest attention is to be paid.

By Order of Colo. Comdr. Jac. Swartwout

HEND. WYCKOFF MB

Thereafter Colonel Ludington and his regiment were frequently engaged in important work, especially during the time of doubt and dread caused by the treason of Arnold, and in the operations preliminary to Washington's epoch-making march from the Hudson to the Chesapeake. But those services belonged to the other phases of public duty to which reference has been made and of which fuller consideration must be reserved for another chapter.

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## CHAPTER V

### SECRET SERVICE

Another part of Henry Ludington's services to his country during the Revolution was intimately connected with that little known underworld of the Secret Service—the men who take their lives in their hands perhaps more perilously than the soldier in the open field, who have no stimulus of martial glory, who receive no public recognition, and whose very names are doomed to obscurity. A recent work of fiction, one of the best "historical novels" of our day—"The Reckoning," by Mr. Robert W. Chambers—gives a singularly dramatic and convincing picture of the work of a Patriot spy in New York City in the Revolution, doing work which was hateful to him and yet which was of the highest importance to Washington himself. It is a picture as true as it is graphic. An earlier work dealing with the same phase of Patriot service, "The Spy," of Fenimore Cooper, has long been familiar to the American public, and it has generally been assumed that its hero, "Harvey Birch," was an actual character, drawn from life; even more closely than the genius of "The Pilot" was drawn from the illustrious Paul Jones. Such indeed was the case, and with the original of "Harvey Birch," Enoch Crosby, Colonel Ludington was intimately associated. Indeed, because of his familiarity with the borderland between the British and American lines, and also because of his knowledge and judgment of men, his discretion, and his known trustworthiness, Colonel Ludington was selected, by Washington's instructions, to choose the man or men who should do the secret service of the Patriot cause within the British lines at New York, and to make the needed arrangements for his dispatch and for maintaining communication with him.



and skill is possessed of abilitys to carry a secret matter into Execution. upon your finding such a Person and his consenting to Remove into the city you will then desire him to come with you immediately to me, and you will enjoin secrecy upon and direct him not to mention either his business or my name to any Person. any Person that you may converse with in a confidential manner, you will Lay them under the strongest Bonds of secrecy in your Power. and lastly you will conduct the whole Business with the utmost secrecy in your Power and disclose only such parts as you may find absolutely necessary for procuring a proper Person to be employed for Secret Purposes and will actually Remove to the City of New York.

I am Sir your humble Servt.

NATHL. SACKETT.

Frederick Burgh Precinct, Feby. 14th, 1777.

To Colonel Henry Ludington Esqr.

The purport of this was unmistakable. Colonel Ludington was to find some one to serve as a spy in New York, and he was to do it with such prudence and tact that nobody but himself would seem responsible for the negotiations until they had proceeded far enough to give assurance of the fitness and trustworthiness of the man selected for the work. Colonel Ludington proceeded promptly with the undertaking, and with commendable caution, as the following document shows:

I do most solemnly swear by Almighty God Who Liveth forever and ever that I will well and Truly keep every matter and thing Committed to my Charge by Henry Ludington Esqr a profound secret, and that I will not Directly or indirectly either by words or actions signs or Tokens or by any other ways or means whatever disclose or divulge the same to any manner of Person or Persons whatever.

Benajah Tubbs.

Sworn before me Feb. 23, 1777.

Benajah Tubbs was a well-approved military comrade of Colonel Ludington's, as appears from the records. In the Correspondence of the Provincial Congress of New York there appears a communication from the Dutchess County Committee of Safety, under date of January 3, 1776, recommending Benajah Tubbs to be adjutant of "the regiment of militia lately commanded by Beverly Robinson, Esq.," together with Henry Ludington as 2nd major and John Kaine as colonel. The extent of Tubbs's services as a secret agent of the Revolutionary government does not appear, nor is it at this time possible to ascertain how many and what other men

were selected by Colonel Ludington for such perilous errands. The career of Enoch Crosby is, however, a matter of specific and exact record. It is to be found related not only in the fascinating pages of Cooper, but also in various affidavits made by Crosby himself, and others who knew him, at the time of his application for a pension for his services. These papers, which have been transcribed from the originals by Mr. Patrick, are in chief as follows:

State of N. Y.

Co. Putnam. ss.

On this 15th day of October in the year 1832 personally appeared before the Court of Oyer and Terminer and General Jail Delivery of the said County of Putnam, Enoch Crosby, of the town of South East in the Co. of Putnam and State of New York, aged 82 years, who being duly sworn according to law doth on his oath make the following declaration in order to obtain the benefit of the Act of Congress passed June 7, 1832:

That he entered the service of the U. S. under the following named officers and served as herein stated:

That in the month of April or the fore part of May, 1775, he enlisted in the town of Danbury in the State of Connecticut into Captain Noble Benedict's Co. in Col. Waterbury's Regt. of troops to defend the country for 8 mos service. The regiment met at Greenwich in Ct., staid there two or three months, then went to N. Y. under Genl. Wooster. Staid in N. Y. a few weeks. The Regt. was then carried to Albany in sloops & went directly to Half Moon, was there a few days. Went thence to Ticonderoga, where the batteauxs furnished which were to convey them further. Genl. Schuyler had the command of the Isle aux Nois, when Genl. S. being unwell, Genl. Montgomery had the command. The declarant went off to St. John which being by us at time besieged by the Americans in about 5 weeks surrendered and the fort was taken. The decl. then went to Montreal, that he came from there with Col. Waterbury's regt to Albany, and having served the eight mos. was at that place (Albany) permitted to leave the regt. and return home, and that he had no written discharge. And this dec. further says that in the latter part of the mo. of Aug., 1776, he enlisted into the regt. commanded by Col. Swartwout in Fredericksburgh, now Kent, in the County of Putnam and started to join the army at Kingsbridge. The co. had left F. before declarant started & he started alone after his said enlistment & on his way at a place in Westchester Co. about 2 miles from Pine's Bridge he fell in company with a stranger who accosted him & asked him if he was going *down*. Decl. replied he was. The stranger then asked if decl. was not afraid to venture alone, and said there were many rebels below and he would meet with difficulty in getting down. The decl. perceived from the observation of the stranger that he

supposed the decl. intended to go to the British, and willing to encourage that misapprehension and turn it to the best advantage he asked if there was any mode which he the stranger could point out by which the decl. could get through safely. The stranger being satisfied the decl. was willing to join the British Army told him that there was a company raising in that county to join the British Army, that was nearly completed and in a few days would be ready to go down and that dec. had better join that co. and go down with them. The stranger finally gave to decl. his name, it was Bunker, and told the decl. where and shewed the house in which he lived and also told him that Fowler was to be the Captain of the Co. then raising, and Kipp Lieut. After having learned this much from Bunker the Decl. told him he was unwilling to wait until the Co. could be ready to march and would try and get through, and parted from him on his way down and continued until night, when he stopped at the house of a man who was called ESY Young, and put up there for the night. In the course of conversation with ESY Young in the evening decl. learned that he was a member of the Com. of Safety for the County of Westchester, and then communicated to him the information he had obtained from Mr. Bunker. ESY Young requested the decl. to accompany him the next morning to the White Plains in Westchester Co. as the Com. of Safety for the Co. were on that day to meet at the Court House in that place. The next morning the decl. in company with ESY Young went to the White Plains and found the Com. there sitting. After ESY Young had had an interview with the Com. the decl. was sent for and went before the Com. then sitting in the Court Room and there communicated the information he had obtained from Bunker. The Com. after learning the situation of decl. that he was a soldier enlisted in Col. Swartwout's regiment and on his way to join it engaged to write to the Col. and explain why he did not join it, if he would consent to aid in the apprehension of the company then raising. It was by all thought best that he should not join the regiment but should act in a different character, as he could thus be more useful to his country. He was accordingly announced to Capt. Townsend, who was then at the White Plains commanding a company of Rangers, as a prisoner and the Captain was directed to keep him until further orders.

In the evening after he was placed as a prisoner by Capt. Townsend he made an excuse to go out and was accompanied by a soldier, over a fence into a piece of corn then nearly or quite full grown. As soon as he was out of sight of the soldier he made the best of his way from the soldier and when the soldier hailed him to return he was almost beyond hearing. An alarm gun was fired but decl. was far from danger. In the course of the night the decl. reached the house of the said Bunker, who got up and let him in. Decl. then related to Bunker the circumstances of his having been taken prisoner, of his going before the Com. at the Court House, of being put under the charge of Capt. Townsend, and of his escape; that he had concluded to avail himself of the protection of the Co. raising in his neighborhood



to get down. The next morning Bunker went with decl. and introduced him as a good loyalist to several of the Co. Decl. remained some days with different individuals of the Co. and until it was about to go down, when the decl. went one night to the house of Esy Young to give information of the state and progress of the Co. The distance was four or five miles from Bunker's. At the house of Esy Young decl. found Capt. Townsend with a great part of his Co., and after giving the information he returned to the neighborhood of Bunker, and that night decl. with a great part of the Co. which was proposing to go down were made prisoners. The next day all of them, about 30 in numbers, were marched to the White Plains and remained there several days, a part of the time locked up in jail with the other prisoners. The residue of the time he was with the Com. The prisoners were finally ordered to Fishkill in the Co. of Dutchess, where the State Convention was then sitting. The decl. went as a prisoner to Fishkill. Capt. Townsend with his Co. of Rangers took charge of the Co. at Fishkill. A Com. for Detecting Conspiracies was sitting, composed of John Jay, afterwards Gov. of N. Y., Zephaniah Platt, afterwards first Judge of Dutchess Co., Col. Duer of the Co. of Albany, and a Mr. Sackett. The decl. was called before that Com., who understood the character of the decl. and the nature of his services. This the Com. must have learned either from Capt. Townsend or from the Com. at White Plains. The decl. was examined under oath and his examination reduced to writing. The prisoners with decl. were kept whilst decl. remained at Fishkill in a building which had been occupied as a Hatter's shop, and they were guarded by a Co. of Rangers commanded by Capt. Clark. The decl. remained about a week at Fishkill, when he was bailed by Jonathan Hopkins. This was done to cover the character in which the decl. acted. Before the decl. was bailed the Fishkill Com. had requested him to continue in this service, and on decl. mentioning the fact of his having enlisted in Col. Swartwout's company and the necessity there was of his joining it, he was informed that he should be indemnified from that enlistment, that they would write to the Col. and inform him that decl. was in their service.

The Com. then wished decl. to undertake a secret service over the river. He was furnished with a secret pass which was accordingly signed by the Com., which is now lost, and directed to go to the house of Nicholas Brauns, near the mouth of the Wappinger's Creek, who would take him across the river, and there to proceed to the house of John Russell, about ten miles from the river, and make such inquiries and discoveries as he could. He proceeded according to directions to said Brauns and from thence to John Russell, and there hired himself to said Russell to work for him, but for no definite time. This was a neighborhood of Loyalists and it was expected that a company was there raising but was not completed. Before decl. left Russell on this service a time was fixed for him to recross the river and give information to some one of the Com. who was to meet him. This time having

arrived and the Co. not being completed the decl. recrossed the river and met Zephaniah Platt, one of the Com., and gave him all the information he had obtained. Decl. was directed to recross the river to the neighborhood of Russell and on a time fixed again to meet the Com. on the east side of the river. Decl. returned to Russell's neighborhood, soon became intimate with the Loyalists, was introduced to Capt. Robinson, said to be an English officer and who was to command the Co. then raising. Capt. Robinson occupied a cave in the mountains, and decl. having agreed to go with the Co. was invited and accepted of the invitation to lodge with Robinson in the cave. They slept together nearly a week in the cave, and the time for the Co. to start having been fixed and the route designated to pass Severn's to Bush Carrick's, where they were to stop the first night. The time for starting having arrived before the appointed time to meet the Com. on the east side of the river, the decl. in order to get an opportunity to convey information to Fishkill recommended that each man should the night before they started sleep where he chose, and that each should be by himself, for if they should be discovered that night together all would be taken, which would be avoided if they were separated. The proposition was acceded to, and when they separated decl. not having time to go to Fishkill, and as the only and as it appeared the best means of giving information was to go to Mr. Purdy, who was a stranger to decl. and all he knew of him was that the Tories called him a wicked rebel and said he ought to die. Decl. went and found said Purdy and informed him of the situation of affairs, of the time the Co. was to start, and the place which they were to stop the first night, and requested him to go to Fishkill and give the information to the Com. Purdy assured the decl. that the information should be given. Decl. returned to Russell's and lodged in his house. The following evening the Co. assembled, consisting about 30 men, and started from Russell's house, which was in the town of Marlborough, County of Ulster, for N. Y., and in the course of the night arrived at Bush Carrick's, and went into the barn to lodge after taking refreshments. Before morning the barn was surrounded by American troops, and the whole company, including Capt. Robinson, were made prisoners. The troops who took the company prisoners were commanded by Capt. Melancthon Smith, who commanded a company of Rangers at Fishkill. His Co. crossed the river to perform this service. Col. Duer was with Capt. Smith's Co. on this expedition. The prisoners including decl. were marched to Fishkill & confined in the stone church, in which there was near two hundred prisoners. After remaining one night in the church the Com. sent for decl. and told him it was unsafe for him to remain with the prisoners as the least suspicion of the course he had pursued would be fatal to him, and advised him to leave the village of Fishkill and to remain where they could call on him if his services should be wanted. Decl. went to the house of a Dutchman, a farmer, whose name is forgotten, about five miles from the village of Fishkill, and there went to work making shoes. After decl. had made arrangements for working at shoes, he

informed Mr. Sackett, one of the Com., where he could be found if he should be wanted. In about a week decl. recd. a letter from the Com., requesting him to meet one of the Com. at the house of Dr. Osborn, about one mile from Fishkill. Decl. according to the request went to the house of Dr. Osborn, and soon after John Jay came there, enquired for the Dr., who was absent, enquired for medicine, but found none he wanted. He came out of the house and went to his horse, near which decl. stood, and as he passed he said in a low voice "It won't do, there are too many around. Return to your work." Decl. went back and went to work at shoes, but within a day or two was again notified and a horse sent to him, requiring him to go to Bennington in Vt. and from there westerly to a place called Maloonscock, and there call on Hazard Wilcox, a Tory of much notoriety, and ascertain if anything was going on there injurious to the common cause. Decl. followed his instructions, found Wilcox, but could not learn that any secret measure was then projected against the interest of the country. At that place learned from Wilcox a list of persons friendly to the British cause, who could be safely trusted, from that place quite down to the south part of Dutchess County. Decl. followed directions of said Wilcox and called on different individuals by him mentioned, but could discover nothing of importance, until he reached the town of Pawlings in Dutchess County, where he called upon a Dr. whose name he thinks was Prosser, and informed him that he wished to go below but was fearful of some trouble. The Dr. informed him there was a Co. raising in that vicinity to go to N. Y. to join the British army, that the Captain's name was Sheldon, that he had been down and got a commission, that he, Prosser, was doctoring the Lieut., whose name was Chase, that if decl. would wait a few days he could safely go down with that Co., that he could stay about the neighborhood and should be informed when the Co. was ready, that decl. remained in that vicinity, became acquainted with several of the persons who were going with that Co., was acquainted with Lieut. Chase, but never saw the Capt. to form any acquaintance with him. The season had got so far advanced that the Co. was about to start to join the enemy to be ready for an early campaign in 1777. It was about the last of Feb. of that year when a plan was fixed and also a time for meeting. It was situated half a mile from the road and about 3 miles from a house then occupied by Col. Morehouse, a militia Col. After the time was fixed for the meeting of Capt. Sheldon's Co., the deponent went in the night to Col. Morehouse & informed him of the situation, of the Co., of the time appointed for meeting, of the place, etc., and Morehouse informed decl. that they should be attended to. The decl. remained almost one month in this neighborhood, and once in the time met Mr. Sackett, one of the Com., at Col. Ludington's, and apprised him what was going on, and was to have given the Com. intelligence when the Co. was to march, but the shortness of the time between the final arrangement and the time of starting was such that decl. was obliged to give the information to Col. Morehouse. The Co., consisting of about 30, met at the time and place appointed, and after they had

been there an hour or two two young men of the Co. came in & said there was a gathering under arms at Old Morehouse's. The inquiry became general, What could it mean? Was there any traitor in the Company? The Captain soon called one or two of the Company out of the door for the purpose of private conversation about the situation, & very soon decl. heard the cry "Stand! Stand!" Those out the door ran, but were soon met by a Co. coming from a different direction, they were taken, the house surrounded & the Co. all made prisoners. The Col. then ordered them to be tied together two by two. They came to decl. and he urged to be excused from going as he was lame and could not travel. The Col. replied "You shall go, dead or alive, & if no other way you shall be carried on the horse with me." The rest were marched off & decl. put onto the horse with Col. Morehouse and when the prisoners were marched into the house the decl. with the permission of Morehouse left them and made the best of his way to Col. Ludington's and there informed him about daylight in the morning. From thence he went to Fishkill to the house of Dr. Van Wyck where John Jay boarded, and there informed him of all the occurrences on that northern expedition. Said Jay requested decl. to come before the Com. the next night, when they would be ready to receive him. He accordingly went before the Com., where he declared under oath all that had occurred since he had seen them. The Com. then directed him to go to the house of Col. Van Ness in Albany County, and there take directions from him. He went to Van Ness's house and was directed by him to go north, but decl. cannot tell the place. The duty was performed, but nothing material discovered further than that the confiscation of the personal property of the Tories and leasing of their lands had a great tendency to discourage them from joining the British army. Decl. then returned to Po'keepsie, where Egbert Benson and Melancthon Smith entered in the room of the Fishkill Com. There was no more business in that town in which they wished to employ decl., and he being apprehensive that a longer continuance in that employment would be dangerous & the time for which he enlisted in Col. Swartwout's regiment having expired, he came home with the approbation of the Com.

This was about the last of May, 1777, and in the course of the fall, after decl. saw Col. Swartwout at his house in Fishkill & then talked over the subject of this employment of the decl. by the Com. & the Col. told decl. that he had drawn his pay the same as if he had been with the Reg't, that the Paymaster of the Reg't lived in the town of Hurley in Ulster Co. Decl. went to the Paymaster and rec'd his pay for nine months' service or for the term for which the regiment was raised. The decl. was employed in the secret service for a period of full 9 months.

This decl. further says that in the year 1779 in the month of May he enlisted in a company commanded by Captain Jonah Hallett for six months. Decl. enlisted as a Sergeant in said Hallett's Co. The term of enlistment was performed on the lines in the Co. of Westchester, moving from place to place to guard the country and to

detect Tories; that the Co. continued in this service until after Stony Point was taken by Genl. Wayne & abandoned & also reoccupied & abandoned by the English troops, when the Co. was ordered over the river & joined the regiment at Stony Point and continued there in making preparations for building a block house until the time of the expiration of the service, when the Co. was ordered to march to Po'keepsie to be discharged by the Governor. When they arrived the Governor was absent, the Co. was billeted out & decl. was billeted upon the family of Dr. Tappen. After remaining a day or two and the Governor not arriving they were discharged. During this service in Westchester Co. the following occurrence took place: A British vessel lay at anchor near Tiller's Point & a party of sailors & marines came on shore & marched a short distance from the water, where a party of our men got between them & the water & made them prisoners. They were marched to the place where the Co. lay a little east of Tiller's Point. The number of prisoners decl. thinks was 12 and the captors 6. The prisoners were afterward sent to Po'keepsie.

The decl. further says that in the month of May in the year 1780 he again enlisted for 6 months in a Co. commanded by Capt. Ludington in Col. Benschoten's Regt. He entered as a Sergeant in the town of Fredericksburgh, now the town of Kent, Putnam Co. The Regt. assembled at Fishkill & marched to West Point & remained there a few days, some 10 or 15. A call was made for troops to fill up the Brigade or Brigades under the command of General De La Fayette and they were to be raised by drafts or volunteers. A call was made for volunteers and decl. with others volunteered & made a Co. which was put under Capt. Daniel Delavan. The decl. continued to be a Sergeant in Delavan's Co. Col. Philip Van Courtland commanded the Regt. to which Capt. Delavan's Co. was attached. Soon after the Co. was formed they crossed the river from West Point and marched to Peekskill, where they remained one night, the next day marched to Verplanck's Point and crossed over to Stony Point, & from thence made the best of their way to New Jersey where they remained until late in the fall, when the time of enlistment having expired they were discharged, after having fully and faithfully performed the service of 6 months for which he enlisted. During the campaign in New Jersey Major André was arrested, condemned & executed. Several of the soldiers of Capt. Delavan's Co. went to see him executed. The decl. was Sergeant of the guard that day & could not go to see the execution.

The decl. further says that he has no documentary evidence of his service and that he knows of no person who can testify to his services other than those whose depositions are hereto annexed. The decl. hereby relinquishes every claim to a pension or annuity except the present & declares that his name is not on the pension roll agency of any State. The decl. was born in a place called Harwich in the County of Barnstable and State of Mass. in the year 1750. The decl. has a

record of his age. The decl. was living in the town of Danbury in the State of Conn when he enlisted in the service, that service the Revolutionary War. The decl. has resided in the State of New York in what is now the Co. of Putnam, formerly Co. of Dutchess, & now lives in the same Co. & on the same farm where he has lived for the last 50 years. The decl. always volunteered in every enlistment & to perform all the service which he performed as detailed in this declaration. That the decl. was acquainted with the following officers who were with the troops where he served: Genl. Schuyler, Gen. Montgomery, Gen. Wooster, Col. Waterbury, Col. Holmes, Gen. De La Fayette, Gen. Poor, Col. Van Courtland, Col. Benschoten, Col. Ludington. The decl. never rec'd. any written discharge & if he ever received a Sergeant's warrant it is through time or accident lost or destroyed. This decl. is known to Samuel Washburn, a Judge of the Court of Common Pleas of the Co. of Putnam; Beneah Y. Morse, a clergyman in his neighborhood and who he believes can testify to his character for veracity & good behavior & thus belief of his services as a Soldier of the Revolution.

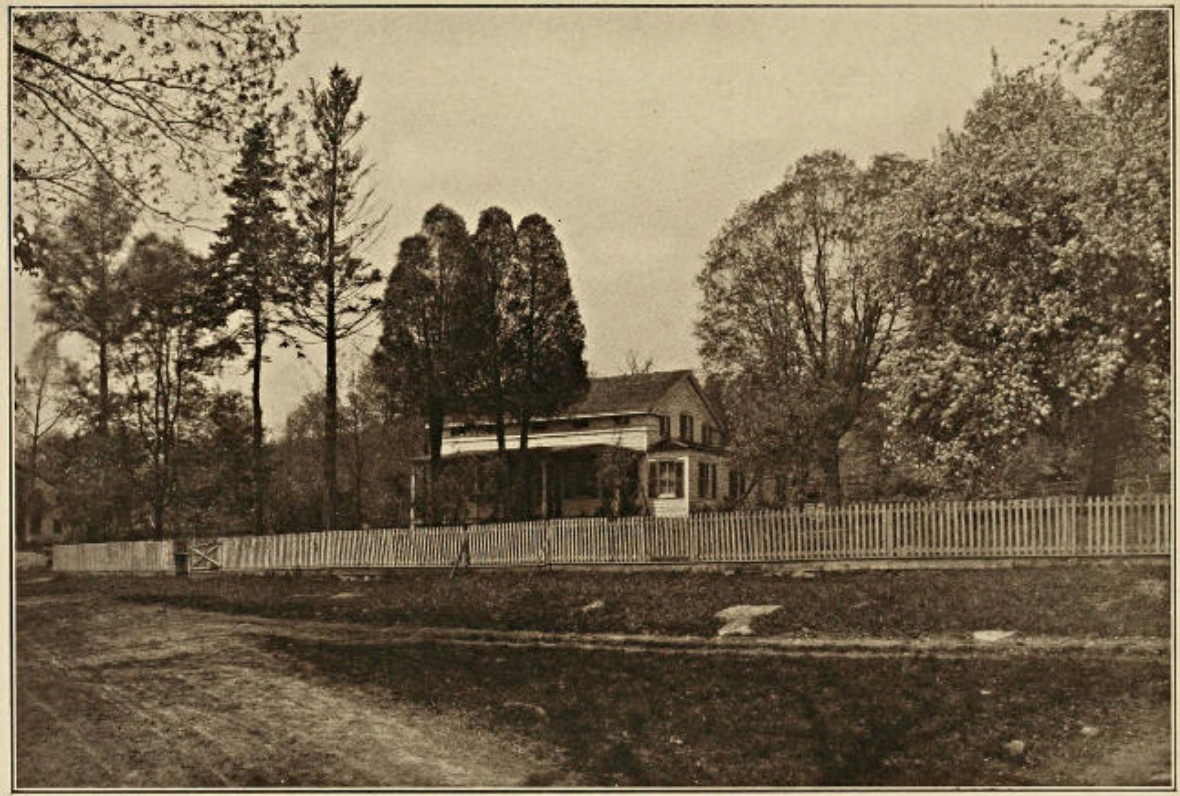
ENOCH CROSBY.

Sworn to & Subscribed this day and year aforesaid;

I. Morehouse, Clerk of said Court.

Appended to this declaration were affidavits of Judge Washburn and the Rev. Mr. Morse, confirming so far as their knowledge extended the statements of Enoch Crosby. There were also similar affidavits of Timothy Wood, Jabez Berry, and Daniel Crawford, who had been fellow soldiers with Crosby in the war.

Enough has been said already to indicate the intimate relations which existed between Crosby and Colonel Ludington. While the spy was on service in Dutchess County, in connection with Prosser and his company, he was a frequent visitor at Ludington's house, and often lay hidden securely there while Tories were searching for him. (Between Prosser and Colonel Ludington, by the way, as we shall presently see, a peculiarly bitter personal feud existed.) Colonel Ludington's daughters, Sibyl and Rebecca, were also privy to Crosby's doings, and had a code of signals, by means of which they frequently admitted him in secrecy and safety to the house, where he was fed and lodged. In addition to Crosby and to Benajah Tubbs, who was mentioned at the beginning of this chapter, Colonel Ludington furnished numerous other members of the Secret Service from the ranks of his own regiment, and was himself the recipient of their clandestine reports, some of which were transmitted by him to the Committee of Safety and some to the headquarters of General Washington.



Home of the late George Ludington, on site of Colonel Ludington's house

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## **CHAPTER VI**

### **BETWEEN THE LINES**

“Between the lines” is always a place of peculiar difficulty and danger. The Border States in our Civil War were the deadliest battle-grounds, not only the meeting-places of the contending armies but also the scene of innumerable local feuds and conflicts between the inhabitants, half of whom inclined to one side and half to the other. A similar position was held in the Revolution by Westchester and Dutchess counties, lying between the British at the south and the Americans at the north. As this was the most fertile and productive agricultural region easily accessible from New York, it was frequently invaded by British foraging parties, seeking the supplies which were needed by the army in the city and which were not easily to be got elsewhere. Nor did the region altogether escape similar attentions from the American Army. More than once, indeed, organized raids were made by the latter southward into the part of the debatable ground lying nearest to the British lines, not only to secure forage and other supplies for American use but also to prevent them from falling into the hands of the British. Himself a resident of that region, Colonel Ludington was well fitted to deal with such local conditions, and accordingly a large third part of his public services were thus rendered. Entries in his ledger indicate that he was a member of the Dutchess County Committee of Safety on June 11, 1776, and for some time thereafter. This was the committee which was constituted for the purpose of “inquiring into, detecting and defeating all conspiracies formed in this State against the liberties of America.” When he was no longer a member of the committee he was one of its most efficient executive agents, and much of the services of himself and his regiment were given in pursuance of the plans of that committee.





Home of the late Frederick Ludington, son of Colonel Ludington, at Kent

In the records of the Committee of Safety under date of October 14, 1776, we find that "Col. Ludington informed a member that he has 20 or more Arms, taken from disaffected persons, now in his possession, and requests to know how they shall be disposed of. Ordered, That Col. Ludington send all arms in his possession, taken from disaffected persons, to this Committee without delay, and that he sends his account for repairing to the Auditor-General." The "account for repairing" refers to the work done by Colonel Ludington on the captured weapons to make them serviceable for use in the American Army; many of the Tories deliberately breaking their muskets or depriving them of essential parts, before surrendering them. A little later William Duer, one of the foremost members of the Committee, reported that "large quantities of hay and corn were purchased by the Quarter Master General for use of the Continental Army in the eastern part of this (Dutchess) County and the western part of Connecticut, that it would be hardly practicable to convey the same to the army unless the roads leading from the Oblong and Fredericksburgh towards Pine's Bridge and North Castle were better repaired. He therefore in behalf of General Mifflin, Quarter Master General of the Continental Army, prayed that this House would devise ways and means of facilitating the above mentioned communication, not doubting but so necessary an expenditure would be cheerfully reimbursed from the Continental Treasury. On taking the application of Mr. Duer into consideration, Resolved, That it will be

necessary to repair the following Roads in order to facilitate the cartage of forage to the Continental Army, from the house of Col. Henry Ludington thence to Samuel Washburn's, being 8 miles; the road which runs east from Col. Harry Ludington's to the Store of Malcolm Morrison's and thence south to the Mills of Samuel Washburn, being 12 miles. Resolved That Col. Ludington detach from his Regiment 100 men for the purpose of repairing that part of the road which is first mentioned, being in distance 8 Miles.... Ordered, that copies of these Resolutions be immediately transmitted to the Supts. above mentioned, who are directed to communicate them without loss of time to Cols. Fields and Luddington." For this road-mending work the Committee fixed the price of labor at ten shillings a day, exclusive of subsistence, for the superintendents, and four shillings a day for the men, the latter to provide their own sustenance. They had power to impress teams and carts, and to pay for each ox-cart and two yoke of cattle sixteen shillings, and for each wagon twelve shillings. Those who remember the common condition of roads in that part of the State a score of years ago, will appreciate what need there must have been a century before of repairs and improvements.

The varied character of Colonel Ludington's services in the first years of the Revolution is indicated by the entries in his ledger. Thus in November, 1776, we find him charging the Committee for inquiring into and detecting conspiracies against the State of New York with "4 days service riding with Nathaniel Sackett in order to collect evidence, at 21 shillings, 4 days, £4—5—4." On November 21, 1776: "Then began the service of buying hay and grain for the use of the Continental Army by an agreement with Wm. Duer." On January 1, 1777: "Then stopped the service of buying hay, being in all 41 days at 20 shillings per day." In November, 1777: "Then engaged in the Commissary Department under Deputy Commissary General and continued on the service until the 8th of January, 48 days in all at 32 shillings per day, 58 £ 16 s."

A number of persons were arrested and taken before the Committee at Fishkill in December, 1776, and on December 20 one of them, David Aikins, made affidavit: "That on or about the 29th day of November last, he set out from home with a pass from Colonel Henry Ludington to go to Horse Neck to buy rum; and further stated he was disappointed in getting it. He then proceeded to find one Barnes Hatfield who owed him a considerable sum of money, but not finding him he went to see Isaac Williams who had married his cousin, and while there he was captured by Rogers's Rangers (British) and afterwards was taken before a Major near King's Bridge. The Major asked him how he could clear himself from the rebel pass found upon him. He said he came down upon a particular errand from Captain Alexander Grant's wife to him and if he would send him to Capt. Grant or Capt. Archbd. Campbell he would prove his character. Upon his arrival to Capt. Campbell said he was a prisoner and it was in his power to discharge him. Campbell said he would

discharge him if he would carry some papers and errands to certain persons in his neighborhood and be secret about it. He promised and Captain Campbell gave him two printed papers and protections from General Howe for Malcolm Morrison, John Kain, Alexander Kidd, Matthew Patterson, Charles Collins and one for himself." In an affidavit two days later the Patterson mentioned declared: "That he told Akins that he did not chuse to have anything to do with such things, and further saith that there was a Man in the room, meaning Colo. Luddinton, who if he knew what Aikins said would immediately send him to Congress, but did not deem it expedient to mention to Col. Ludington."

Malcolm Morrison appears to have been apprehended on suspicion and to have been held for a time at Kingston jail, whence he sent, on February 19, 1777, a petition in which he said: "Your petitioner has always been ready in assisting both officers and soldiers in their publick business of the States and in a most generous manner has advanced them Cash for their Different Reliefs, and is at present a very considerable sum out of pocket on that account and has received no part of such sum except six pounds lent to Colo. Luddleton and Wm. Griffin to enable them to find out that pernicious plot of John Miller and Constant Nickerson, Reference being had to these gentlemen for the truth of his advice & assistance in bringing that plot to light." Morrison took the oath of allegiance and was released. The Nickerson referred to was doubtless Captain "Josh" Nickerson, of the Swamp, near Fredericksburgh, a notorious Tory. He enlisted and drilled a large number of men, with the design of taking them to join General Howe's army in New York. Their plans and meetings were all supposed to be kept a profound secret, but Colonel Ludington learned of them and made counter plans for the capture of the whole party. To that end he sent one of his tenants as a spy to ascertain the number, place of meeting, etc., of the Tories. This spy, after some difficulty, fell in with one of the party and pretended to him that he was desirous of enlisting in the British Army. He was thereupon taken to Nickerson and enrolled. He ascertained that a certain night had been appointed for their setting out for New York, and also that the roster of the company was kept concealed in a hollow walking-stick which Nickerson always had by him. This information was promptly conveyed to Colonel Ludington, who forthwith assembled his regiment, surrounded Nickerson and his company on the night set for their departure for New York, and took them all prisoners. The documentary evidence of their guilt was found on the written roll, and Nickerson was vastly chagrined when Colonel Ludington bade him give up the cane and then opened it and took out the hidden paper.

The southern part of Dutchess County, now Putnam County, was, in fact, one of the most critical danger spots in the whole country, as a passage in the Journal of the Convention of the State of New York shows, under date of Sunday morning, May 4, 1777:

Capt. Delavan, who being called before the Convention, after giving information upon the subject contained in the letters brought by him, further informed the House, That the disaffected persons are very numerous in the southern parts of Dutchess County, and that without doubt they will fall upon the Whigs whenever the enemy attack our army at Peekskill or at the forts in the Highlands; they therefore request the Convention to take some measure in the premises. Thereupon Resolved, That Mr. Jay, Colo. Thomas, Colo. Ludington be Commissioners to prevent, quell and subdue all insurrections and disaffections in the Counties of Dutchess and Westchester, and to take every measure for that purpose which they shall deem necessary; and that they cooperate with Messrs. Robert R. Livingston, Zephaniah Platt and Matthew Cantine, a committee appointed yesterday, for the like purpose in the Manor of Livingston and Rhinebeck Precinct. Resolved, That the said Commissioners immediately collect with the assistance of General McDougall, or General George Clinton, or from the militia of the County of Dutchess, whichever shall appear to them most expeditious, a force sufficient for the purpose and also to comply with the following instructions, to wit: Gentlemen: You are to begin in the southern part of the County of Dutchess and proceed to the northward, and in your progress secure the disaffected, call out the whole militia, and destroy all such as shall be found in arms to oppose you. When you shall meet with the Committee above mentioned you are to act in concert with them, to secure the prisoners you shall have respectively made, to dismiss such of the militia as you may think proper, and with the remainder march into the County of Westchester by different ways, concerting at the same time such measures with General McDougall or other commanding officer at Peekskill as will effectually clear said county of Westchester of all dangerous and disaffected persons. You are on every occasion, by every means in your power (torture excepted) to compel the discovery and delivery of spies or other emissaries of the enemy, who you may have reason to believe are concealed in any part of the country through which you may make progress and upon due proof immediately execute them *in terrorem*.

A copy of the resolutions was sent to Livingston, Platt, and Cantine, with additional instructions to conform with the resolutions sent them, and after having cleared the manor of Livingston and the precinct of Rhinebeck of all dangerous and disaffected inhabitants, to proceed southward until they met with Jay, Thomas, and Ludington, conducting themselves in accordance with the resolutions; and when they had met with them, immediately to form a proper plan and endeavor to carry the plan into immediate execution. Discretion was given to vary from instructions as the circumstances might require. Copies of the intelligence received by the Convention were sent to the commissioners. A few days later, under date of May 8, Livingston, Platt and Cantine reported that the number of conspirators was far

greater than they had imagined, almost everybody in the upper manor, particularly the eastern part of it, being disaffected, and they urged that courts martial were absolutely necessary for dealing with the chief offenders. As for Jay, Thomas, and Ludington, they entered upon their part of the work with zeal, but found themselves somewhat hampered by other demands made upon them and by the unwillingness of some of the militia to engage in the service of the Continental Army. On June 25 this matter was brought before the Convention, and it was—

Resolved, That whereas information hath been given to this Congress that certain Captains in Col. Luddington's regiment of militia in Dutchess County have refused to draft out of their respective companies for the purpose of brigade of militia to be raised in this county for the Continental service as recommended by this Congress in pursuance of the resolves of the Continental Congress of the 1st, 3rd and 4th inst. Resolved, That the general committee of the said county be requested to make inquiry into the premises, and upon due proof of the charge against the said captains, to send them under proper guard to this Congress to be dealt with according to their deserts.

During that summer Colonel Ludington seems to have been much engaged with duties in Westchester County. Thus in General Putnam's general orders we find, under date of White Plains, September 19, 1777, the following:

Colo. Ludington to furnish guards and patrols from the camp to the North River. Majr. Gray to Send a guard and patrol on the road between Stephen Woods and the North River.

Two days later, on September 21, the order ran:

Officer of the Day to-morrow Colo Ludenton the same No to go on Piquit to-night as Last night & on the same roads great care to be taken not to put any on this Piquit but such in whose Fidelity the greatest Confidence may be Placed. Colo Ludington & Major Gray will guard the same Roads as yesterday. Patroleing Partys are Constantly to be kept up.

Again, the next day, the order ran: "The guards and Piquits are to be kept up also Majr. Gray & Colo Ludington as has been kept before."

The work of detecting and arresting traitors within the American lines occupied much of Colonel Ludington's attention, and in it he seems to have been particularly

energetic and effective. His wide knowledge of men and affairs in Westchester and Dutchess counties caused frequent appeal to be made to him for information concerning suspicious persons. Thus Lieutenant-Colonel Dimon in September, 1777, wrote to General Putnam as follows:

Harrison's Purchase Sept'r 12th 1777.

Hon'd Sir,

Enclosed I have sent a Return of the Regt. Also have sent for your Honor's Examination, three Prisoners (viz) John Crabb, an Inhabitant of Fredericksburg, taken up at White-plains, who said he was going to Horseneck to buy Salt, but on being searched, it appeared that 2/6 in paper & 4/6 or 5/ in hard Mony was all the Mony he had in Possession, & what renders his Conduct still more suspicious, was that, James Knox, another of the Prisoners, was in Company with him, when first discovered by our Men, but made his Escape from them, & was next Day taken up near New Rochelle, & who confesses he was going to the Enemy: s'd Crabb desiring a Man might be sent to Col. Luddington, to obtain his Character, to whom he said he was known; I accordingly desired Col. Luddington (to) send his Character, which he did, & which I have sent enclosed. But the third, as I imagine the greatest Villian of three, named Hachaliah Merrit was taken in East Chester early in the Morning after being out all Night with his Great Coat & Blanket, & armed with a loaded Pistoll, & who does not pretend to say any thing in his own Justification. I am with great Esteem, your Honour's most humble Servant.

DAVID DIMON, *Lt. Col.*

Major Genl. Putman.

Accompanying this was Colonel Ludington's reply to the appeal for a "character" for the prisoner Crabb, which could have given that worthy little comfort:

Dear Sir,

I have Inquired into the Character of the Said Jno. Crabb and find him to be an Enemy to his Country therefore shall Expect he will be Treated as Such and am Sir

Your Very humble Serv't

HENRY LUDINTON, *Colo.*

Sept'r 10: 1777.

To Colo. David Demmon.

A few days later Colonel Ludington himself wrote to Putnam:

Philipse Burgh Sept'r 12th 1777.

Sir,

I have sent you one Elijah Taylor; his Crime is as Follows: he pretends he came from below our Lines because he was Suspected to be a friend to us; a few days after he came to me with his Brother in Law from Milesquare pretending he had lost a Horse and applied to me for Orders to take him where he could find him. I gave him permission to search for his Horse any where he pleased above our Lines but not to Return home without calling on me, but Instead of Calling, Returned home and soon after came up again. I found by his Conduct that was not his Arrent (errand) for at the Same time he and the said Taylor was Laying a Plan to steal our horses. The way I got Information was that one Dudely Bailey, a Sutler to our Regiment, was in Conversation with the said Taylor concerning their Losing Horses, whereupon the said Taylor told him they had Lost Horses and knew where to find them but did not care about them for he could take them off in the Night; then he ask'd Bailey where the Horses belonging to the Regiment were kept, and where our Centenals were posted, in order that he might Carry his plan in Execution; and he further told him it would not be Long before we should be Routed, for a few men might do it, as we were Obligated to post ourselves in Houses. He further agreed with Baily for him to go down as far as Milesquare to one Benjamin Taylor's and there stay until the s'd Taylor could go to the Hessian Generals and when he Return'd he would put him in good Business where he might Earn a Dollar pr day. he further said that When he makes his Report to the General that he might live like a Gentleman without doing any work. He further Acquainted him he had been through your Camps at Peekskill as far up as Poughkeepsy and there were Several Spies out among whom was an Hessian Officer, and upon them Circumstances I have sent you the Said Taylor. For further Information Refer you to the said Bailey as an Evidence to the truth of the Matter who shall be sent up to you whenever I Receive your Order for that purpose.

I have Likewise sent up three other prisoners, Jacob Read, Abraham Aston & Joseph Brown, the two former were taken up on Suspicion of Carrying on a dangerous Correspondence with the Enemy and the Latter is a deserter from Colo. Willis's Regt. and Capt. Champion's Comp'y of the Continental Troops. I am your honour's Humble Serv't

HENRY LUDINTON, *Col.*

P.S. Should be Oblig'd to your Honour to give the Bearer some direction where he may draw some Cordage for the use of the Teams. I am as above

H. L.

To Genl. Putnam at Head Quarters Peekskill.

Jacob Read, or Rhead, promptly wrote to Clinton, protesting that he had always been a true friend of his country and had repeatedly been employed in its service, and that therefore he conceived himself to have been most unjustly treated in being arrested as a traitor. He begged to be examined immediately and to be set at liberty on proof of his innocence.

In the fall of 1777 there was a scarcity of provisions in Westchester and Dutchess counties, and the Tories sought further to embarrass the American cause by shipping all provisions they could secure to the British Army. On this account the following letter was addressed by Colonel Ludington and others to the Council of Safety for the State of New York:

Dutchess Co.  
3rd December, 1777.

Gent<sup>m</sup>:

Nothing but the strongest necessity could induce us to trouble you with an application of so extraordinary a nature, but if we are esteemed worthy of your confidence as friends to our struggling country our sincerity will atone for what in common cases might appear indecent. Our invaded State has not only been an object of the special designs of our common enemy, but obnoxious to the wicked, mercenary intrigues of a number of engrossing Jockies who have drained this part of the State of the article of bread to such a degree that we have reason to fear there is not enough left for the support of the inhabitants. We have for some months past heard of one Holmes who has been purchasing wheat and flour in these parts with which the well affected are universally ill-provided. This man with us is of doubtful character, his conversations are of the disaffected sort entirely. He has now moving from Fishkill toward Newark we think not less than one hundred barrels of flour, for which he says he has your permit, the which we have not seen. However we have, at the universal call of the people, concluded to stop the flour and Holmes himself until this express may return. We ourselves think from the conduct of this man that his designs are bad.

We have the honor to be your humble servants,



HENRY LUDINGTON,  
JOSEPH CRANE JR.,  
JONATHAN PADDOCK,  
ELIJAH TOWNSEND.

To the Honorable the Council of Safety for the State of N. Y.

More than two months later Crane and Ludington wrote to Governor Clinton on the same matter:

Southeast Precinct, 16th February, 1778.

May it Please Your Excellency,

We about Two Months ago presumed to stop a parcel of Flour said to be the property of one Helmes made immediate Report thereof to the Council of Safety in answer we were favoured with a copy of the Licence Granted by the Council to the said Helms, with a Copy of the Oath on which said Licence was Granted & with Directions from the Council that in Case the Conduct of sd Helms was not Correspondant with the Tennor of sd Oath and Licence to apprehend and committ him for Tryal and Detain the Flour. Previous to the Return of the Express Dispatched with our Report to the Council Helms made his Escape and has not appeared here since. The Flour was Hurried up some in old Cyder Hogsheads the Rest in Barrels not well secured has been exposed to wett and is in Danger of Spoiling. Your Excellencies Directions Respecting this matter will be Esteemed as a favour done to your most Obedient and Humble Servants

JOSEPH CRANE JUNR  
HENRY LUDINTON

His Excellency Governor Clinton.

The man Holmes mentioned was Colonel John Holmes, one of the most wary and energetic Tories in that part of the country. He was famed as a breeder and racer of horses, and had a stock farm near Colonel Ludington's. Indeed, he and Ludington were neighbors and friends before the outbreak of the war, but in the animosities engendered by that conflict they were involved as bitter foes. Holmes had a commission from the British authorizing him to enlist men for their service, and for this purpose he had a recruiting station on Fishkill Plains in an out-of-the-way place—a field covered with scrub oak. There he gathered Tories and drilled

them for the British service. He often boasted privately that his friend Ludington would one day accompany him on a visit to General Howe at New York—meaning, of course, as a prisoner. Colonel Ludington, however, completely turned the tables upon his old neighbor and would-be captor. Learning from his secret agents that Holmes was collecting a company of Tories on the Fishkill Plains, he quietly gathered his own regiment for what he warned them was to be an undertaking of much activity and danger. After several days of preparation, he led his men at night to the Tory rendezvous. Dividing them into companies, he caused them completely to encircle the scrub oak field and close in upon it from all sides. So quietly and effectively was the work done that Holmes and every one of his followers were captured, without the loss of a life or the firing of a single shot. There were, however, several severe hand-to-hand struggles, in one of which Colonel Ludington himself had a brand new suit of clothes almost entirely torn from his back. Holmes was furious at being thus trapped, and the more so when he found that Ludington was his captor. He was compelled to give up as spoils of war his watch and purse, and a large sum of British money which had been given to him for the conduct of his recruiting operations. Colonel Ludington then marched the whole party off to Poughkeepsie and deposited them in jail. He appears to have had no personal grudge against Holmes, however, and on a subsequent occasion saved his life at much danger to himself.

The ardent patriots of the border counties were not content with merely these acts of forcible suppression of traitorous conduct, but desired to strike still more strongly and effectively at the foes of their own neighborhood. An act of the Convention had already authorized the occupation and leasing at moderate rentals of all lands owned by those who had entered the British service. At first there was little disposition to enforce the measure, but as the Revolution proceeded, and the “pernicious activity” of the Tories became more marked, the people of Dutchess County moved for the execution of the law. The following letter was accordingly addressed to Governor Clinton by the Board of Sequestration of that county:

To his Excellency George Clinton, Esq.

Governor of the State of New York, General of the Militia, and Admiral of the Navy of the same.

The Memorial of Theodorus Van Wyck and Henry Livingston Jun. Commissioners of Sequestration for the County of Dutchess.

Sheweth, That, whereas, on the 13th day of May, 1777, The honorable the Convention of the Representatives of the State of New York came to the following resolution “Resolved that the Commissioners of sequestration be directed & impowered to lease out the lands & Tenements of all such persons as already have

gone, or hereafter shall go, unto & Join the Enemies of this State, under Moderate rent, from year to year, to persons friendly to the cause of America & who will Covenant to keep the same in repair & to suffer no waste to be done thereon”— And again “Resolved, that in all such leases the Inhabitants of this State who have been driven from their Habitations by the Enemy should be preferred by the Commissioners to others who have not that claim to the favor of the public.”

Agreeable to the above resolutions your Memorialists have put numbers of well affected Refugees Inhabitants of this State into the possession of lands and tenements deserted by the former disaffected proprietors. As yet your Memorialists have stipulated with but very few of the Refugees aforesaid, what rent they shall pay for the lands & tenements they Occupy. Your Memorialists wish to have pointed out to them, what proportion of the highest rent they could obtain from others, for lands and tenements above described, the said Refugees should pay.

Your Memorialists would also beg leave to represent to your Excellency, that numbers of persons now with our Enemies own large tracts of land in this County; Many of the tenants on which are desirous of discharging their rents, and have in many instances applyed to your Memorialists for direction. By virtue of any Resolutions made by the Legislature your Memorialists do not think themselves authorized to receive the Same.

If the Legislature see fit to direct to have the above rents collected your Memorialists wish the Estates may be particularized.

Your Memorialists would also inform your Excellency that they have in their possession a quantity of plate late the property of Mess. John Livingston, Peter Stuyvesant and Stephen Crossfield, and be given direction in the disposition of it.

And your Memorialists will &c.

THEODORUS VAN WYCK,  
HENRY LIVINGSTON JUN’R.

March 16th 1778.

The governor’s reply to this appeal was not altogether satisfactory to the more ardent patriots, who were suffering much in their private estates from the ravages of British irregulars and their Tory allies, and accordingly a memorial was soon presented to the Convention asking for further legislation of a particularly stringent kind. Made by the freeholders and citizens of Dutchess County, this memorial was doubtless signed by Colonel Ludington together with many others, and expressed his vigorous opinions. It ran as follows:

To the Honorable the Senate and Assembly of the State of New York,

The respectful address and petition of the Freeholders and Others, Inhabitants of the County of Dutchess, Friends to the freedom and Independence of the United States of America,

Humbly Sheweth:

That the nefarious and most cruel Designs of the King and parliament of Great Britain, to reduce our Country to Vasalage, have been and still continue to be executed with a degree of Malice and Rancour, altogether inconsistent with the character of a Nation professing Christianity, or even a regard to common Justice and humanity; that while your petitioners in defence of their Rights and freedom have opposed the devices inspired by Tyranny, and have suffered severely, many of them in their own proper persons, and effects, and all in those of their friends and fellow citizens; they have always had, as they hope, a well grounded confidence in the Wisdom and Justice of an honest, impartial Legislature, by whom they trust such an adequate adjustment of forfeited property will be effected as may duly punish the authors of the publick Calamities, relieve the distressed and be the most conducive to the General good of the State.

That as you are now entering upon the Business of the second year of the Legislature of this State, we Doubt not but a Variety of important matters presents themselves to your consideration, among which, in our opinion, one of the greatest is the confiscation and sale of the property of the Traitorous Enemies of this State; that our Debts contracted in prosecuting this necessary War, are become enormous; that the whole of this Burden will be as intolerable for us and our children to bear, as it will be cruel to exact it of us; That the only expedient for our relief will be the appropriation of the property within this State, of those unnatural Enemies, (whether now within or out of it) by whose wicked practices the War, with all its horrors, Calamities and consequent charges, was brought upon us and is continued to this present period in the American States by them devoted to destruction. To this end have they not exerted every faculty, cancelled every social and sacred Obligation, and to the utmost assisted the Enemies of their Country, irritated them against it, and urged them to compleat its distruction? Have not many of them embodied with the British Troops, assisted in their councils, aided and abetted them in contriving and executing all their infernal measures?

Lenity to such atrocious offenders, we conceive to be cruelty to the State in General, and to mankind, unwarrantable either by the Laws of God or Man.

These are, therefore, with all due deference and respect, to desire and request you, as the representative body of this State, forthwith to proceed upon, and before the close of the present Session, effectually form and accomplish a Law for the

confiscation and sale of the Real and personal property of the Enemies of this State, in such way and manner as may be for the good of the people at Large, and we Doubt not, in the Completion of so important an Act, but you will readily forego every private Conveniency to yourselves and particular families.

We have with surprise and concern understood that several members of your honorable Houses are impatient to close the Session, on account of their Domestic concerns. We would humbly beg leave to remind such gentlemen that, however pressing their private affairs may be, the publick Demands ought to be first attended to, as in them the Interest of every Individual is devolved; and in particular this Act ought by no means to be postponed. The publick Debts, the alarming Depreciation of our paper money, are pressing, and will admit of no delay. The present and not the future is in your power, and were it necessary to use arguments on this subject to patriots, it would be easy to show that the delay of this Act to another Session is big with uncertainty of its passing at all, and therefore of the most dangerous consequences to this State. Especially as it will occasion universal uneasiness and in all probability produce Tumults and insurrections, and tend to a Domestic Tyranny and confusion as much to be dreaded as the evils brought upon us by our connections with Great Britain, the Effects of which we thus wofully experience. Tho' thro' the smiles of Heaven upon our past endeavors, we are now arrived within view of our native inheritance, the promised Land of peace and freedom, to which we look with longing Eyes. But our unremitted exertions are still necessary to bring us to the Haven of rest. Else all our past Labors may still prove in vain, all our fair prospects be darkened by Intervening Clouds, that may drive us again upon a tempestuous sea of trouble till we are overwhelmed and Lost. To prevent this we and all your Constituents look up with Anxious Expectations to you, on whom is devolved the care of the State Vessel, and on whom we depend to pilot it into a port of safety; and we trust your vigilance and unwearied application to the important Duties of your Station will be continued till the great End is Obtained, for which as in Duty bound we shall ever pray, &c.

Poughkeepsie, October 22nd, 1778.

It was inevitable that his activity and zeal in promoting and executing such measures should make Colonel Ludington an object of especial antipathy to the local Tories and also to the British authorities in New York. He was regarded by them as one of the chief obstacles to the raising of troops and the securing of supplies for the British Army in the border region. Accordingly the strongest efforts were made to get rid of him, either by death or capture. On more than one occasion he was shot at by hidden marksmen by the wayside and narrowly escaped being killed. The British authorities offered a reward of three hundred guineas for his person, and more than one of his disaffected neighbors sought to win that prize.

Much of the time his house was guarded by a detachment of his regiment, but often for days and weeks when he was at home his only sentinels were his two older daughters, Sibyl and Rebecca. These children would sit for hours, armed with heavy muskets, at the upper windows, behind casks on the piazza, or in a neighboring cornfield, watching for the approach of suspicious or openly hostile characters and ready to give their father warning. One night they espied a number of moving figures, lurking behind trees and fences, and at once waked their father with the warning that Tories were surrounding the house. Colonel Ludington, having no aid at hand sufficient to offer defense, resorted to a ruse. He hurriedly aroused the inmates and distributed them through all the rooms, each with a musket and a lighted candle. The general illumination of the building, the signs of commotion, and the shadows of moving and armed figures on every window blind, persuaded the Tories that a company of soldiers was in the house. They therefore feared to make the attack which they had intended, but contented themselves with yelling and hooting in the adjoining woods until day began to break, when they retired down the road to the southward, through the little settlement which then occupied the present site of the village of Carmel.

The next day Colonel Ludington ascertained that his nocturnal visitors were Tories from Quaker Hill and Pawling, under the leadership of Dr. Prosser, who has already been mentioned in this narrative, and were about forty in number. Prosser was a neighbor of Colonel Ludington's, but was also his bitter enemy, and was one of the most virulent Tories in all that region. He was that night leading his company down to New York to join the British Army, and had planned to kill or capture Colonel Ludington and thus secure the reward of three hundred guineas which General Howe had offered. After the war Prosser returned to Dutchess County to live, thinking his Toryism would be forgotten or condoned. But Colonel Ludington had not forgotten nor forgiven his midnight attempt at murder or capture. One day the two men met on the highway at Patterson, both being on horseback. As soon as Prosser caught sight of the man whom he had tried to "remove," he turned and attempted to avoid him. But Colonel Ludington and his horse were too quick for him. Overtaking him the Colonel belabored him with a heavy rawhide whip and gave him a most thorough flogging, which of course Prosser could not venture to resent by legal means.

On another occasion during the war two gentlemen and their servants, strangers, stopped at Colonel Ludington's house and asked for entertainment for the night. They were received with some misgivings as to their loyalty. Some time after they had retired the watching members of the family perceived that the house was surrounded by armed men. Suspecting that the strangers were in league with the besiegers, they went to their room, roused them, and at the muzzles of muskets demanded to know who they were and what was their business. The strangers

managed to assure them that they were friends, and thereupon joined the family in lighting up the house and giving it the appearance of a well-garrisoned stronghold. As on the former occasion the ruse was effective and the attacking party withdrew.

Colonel Ludington's activities and also his difficulties in raising troops for various purposes are suggested in some of his correspondence with Governor Clinton:

I would inform your Excelency that I have proceeded to Raise the Company aloted me to Raise as my Quota and Expect them to march on Munday next; in Regard of officering the Company I have Been obliged to Borow a point, and thought it my Duty to acquaint his Excelency in that manner; the man apointed as Capt. Did not Belong to the militia—who is Capt. Elijah Tounsand the Barer—But has Been the most of the time in Service Since the war Began and has Been Captain with me in the 3 months Service at the Plains and I Conceive him to Be more Suitable to Command a company than one of the militia Captains; would therefore take it as a favour if you would give him his Comision; the 1 Lieut. is John Berrey, a militia officer; the 2 Lieut. is Mr. William McTine a young man who formerly Lived at the White Plains and now has moved among us, has never Born a commision in the militia, But is Lookt upon to Be a proper person for it, as he is a man well acquainted with the part of the Country where he is going and very Capable of performing the office. Sir I hope it will Be agreeable to his Excelency to grant Commisions to the above mentioned persons and in So doing you will mutch oblige your Humble Servant

HENRY LUDINTON.

Fredricksburgh May 1d 1778.

To his Excelency George Clinton Esqr. Governor.

To this Clinton promptly replied:

Poughkeepsie 1st May 1778.

Sir, I have rec'd your Letter of equal Date. By the Law for raising the 700 Men for the Defence of the State the Officers are to be taken from the Militia. If, therefore, Capt. Townsend is to Command the Company you must have him appointed a Capt. in your Regt. & the other Gentleman a Lieut., otherwise it will be impossible to give them the Command tho' I wish to do it. I have convened the Council of Appointment to meet at this Place this Day to compleat the Military Appointments. I must, therefore, again call upon you for the proper Returns of your Regiment, agreeable to former Orders to enable us to perfect the Appointments

therein. I think it would be best for you to attend here in Person on Monday next at farthest. I am your Most Obed't Serv't

GEO. CLINTON.

Colo. Ludington.

The British raid up the Hudson, with the burning of Kingston, already mentioned, provoked much activity throughout the border region, and resulted in added suffering to the unfortunate inhabitants. Immediately after the burning of Kingston the Committee of Safety, meeting at Marbletown, adopted the following:

Whereas, The late destruction of the town of Kingston, and a vast number of dwelling houses, improvements, grain and fodder on either side of Hudson's River, by a cruel, inhuman and merciless enemy, has deprived many persons and families, the good subjects of the State, of shelter and subsistence for themselves and their cattle—calamities which by the blessing of God on the fruits of this land those who have not shared in so uncommon a misfortune are enabled in a great measure to relieve;

Resolved, Therefore, that it be, and it is hereby most earnestly recommended to the several and respective general and district committees of the counties of Ulster, Dutchess, Orange and Westchester, to make, or cause to be made, a proper and proportionate distribution of the aforesaid distressed persons and families, and their cattle, to the end that they may all be provided for as the circumstances of the country will permit; and it is hereby most strenuously urged on all those who may not have shared with them in their afflictions to receive the aforesaid persons, families and cattle, and furnish them with shelter and subsistence at a moderate rate.

To this humane appeal the patriotic part of the population cordially responded, but of course the British sympathizers were reluctant to do so. Their reluctance and refusal brought upon them, however, the increased wrath of the patriots, and incited to increased zeal the committees whose province it was to deal with the disaffected. Among these, Colonel Ludington was prominent, though he exercised his powers with a certain humane discretion and was not inclined to be cruelly vindictive even toward the most malignant Tories. A letter of his to the Commissioners of Sequestration, now in the possession of Mr. William E. Dean, of Fishkill, runs as follows, its reference being to the "Red Mills," near Lake Mahopac:

Gentlemen



Mr. Cox has been with me this day and informed me that the Mills are likely to be taken from him and to Be put into the Hands of Mrs. Cammels and 2 other persons. the two Mrs Camels I am well acquainted with and would do Everything in my power to serve them But when you come to consider upon this matter You may find they may Be Settled at preasent in such a manner that they may Remain where they are for a while and be Less Damidge to them than it will be to Mr. Cox to turn out at this season of the year and so sudden as he is Required to Do. it will Be easy for you to Judg what a bad plight it will naturally put him to. therefore should take it as a favour if you would Let Him Remain until he can have an oportunity of settling Himself in Some other place. this far can be said of Mr. Cox it is generally Believed that He Has done Justice to the publick while He has occupied the mills and in the Commisary Department which he has been in since Last fall. But However gentlemen I would not Be understood that I am to dictate you in those affairs and am and remain your Real Friend

and Humble Servant

HENRY LUDINTON.

Fredericksburgh January 29th, 1779

Mr Henery Livingston & Theds Van Wick

The Comitioners Sequestration  
Dutchess County.

Another letter, also in the possession of Mr. Dean, runs as follows:

Dear Sir

I have just had an information of a score of Sheep in the hands of one Josiah Swift Rented to him By a person who Hath Been Sundry years with the Enemy and Likewise Sum Cattell in the Hands of Henry Charlick which Belonged to one Ellston which the Bearer can inform you of, and the Bearer is the person who moved Ellston's wife and family and John Millars and wishes that the Discovery he had maid of those Cattel might be an inducement to the Commisioners to give him Sum Satisfaction for moving the 2 families Down to the Lines

am Sir your very humble Servant

HENRY LUDINTON

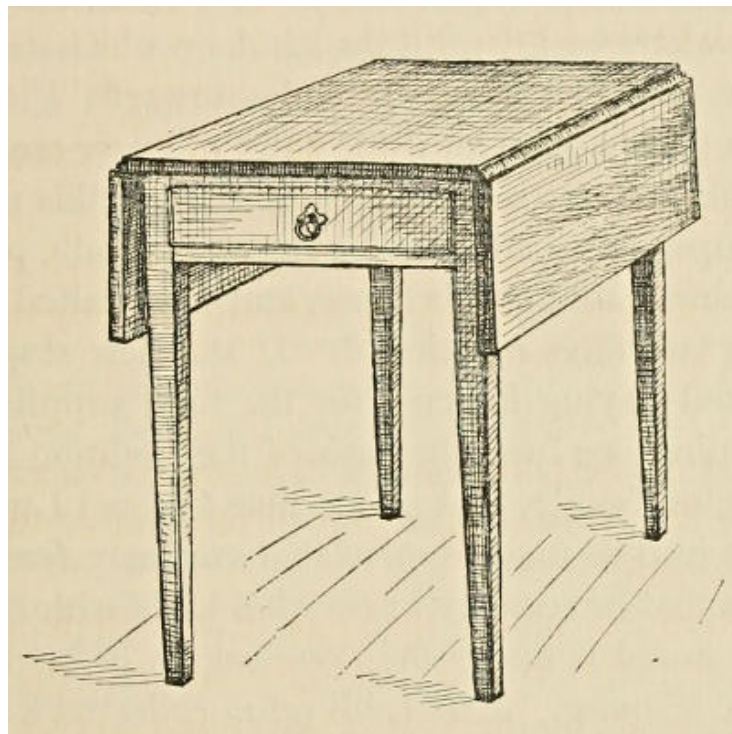
To Theodorus Van wayk Esqs

P S I believe I am on track of a very Considerable deal of property conseald Belonging to Kain and Morison

This letter was addressed to “Theodorus Vanwayk Esqs pr Mr. Daniel Haselton For want of wafer this is not seald”.

The sternness of the dealings of the State with British sympathizers was strikingly shown in the law which was made by the State Convention on October 22, 1779, which ran in part:

Whereas during the present war ... divers persons holding or claiming property within this State have voluntarily been adherent to the King, his fleets and armies, enemies of this State ... whereof the said persons have severally and justly forfeited all right to the protection of the State and the benefit of laws under which property is held or claimed ... Be it enacted that the said several persons hereinbefore particularly named shall be and are hereby declared forever banished from this State, and each and every one of them who shall at any time hereafter be found in any part of this State shall be and are hereby declared guilty of felony, and shall suffer death as in cases of felony, without benefit of clergy.



A mahogany table belonging to Colonel Ludington, at which, according to family tradition, Washington and Rochambeau dined.

(Now in the possession of Charles Henry Ludington)

Fredericksburgh and the neighborhood were frequently traversed by officers and bodies of troops, especially in making the journey from Hartford and New Haven

to Fishkill. Washington himself often made that journey, and was a familiar guest at Colonel Ludington's house. On one occasion Washington and Rochambeau, on their way from Hartford to Fishkill, called there for dinner.

In the journal of Captain William Beatty, of the Maryland Line, the following entry occurs under date of Sunday, September 20, 1778:

"We marched about four miles past Fredericksburgh, where we lay until the 22nd, on which day our division marched about 12 miles towards Fishkill. At this place we lay until the 28th, when we marched to Fishkills." It seems probable that on this march the troops, presumably under Baron De Kalb, passed by Colonel Ludington's house, and were halted there for the two days mentioned. If so, their stopping there and paying in scrip for the food supplied by the Ludingtons form the basis of the tradition in the Ludington family, that at one time Colonel Ludington received so much depreciated currency from the soldiers that he scarcely knew what to do with it, and finally stored it under the floor boards of his house for safe keeping. Mrs. Ludington collected it from the soldiers in her apron, and got her apron running over full. Long afterward Colonel Ludington burned a trunkful of the stuff, as worthless litter.

The Ludington house, standing, as before mentioned, on the great highway from Hartford to the Hudson, was often resorted to by travelers as an inn, and while the British held New York City, the greater part of all travel between New England and the other colonies passed that way. William Ellery, of Massachusetts, a signer of the Declaration of Independence, traveled that road and stopped at Colonel Ludington's in the fall of 1777, on his way from his home at Dighton, Massachusetts, to York, Pennsylvania, to attend the session of the First Continental Congress. He was accompanied by the Hon. Francis Dana and his servant, whom he calls, in his whimsical diary, respectively Don Quixote and Sancho Panza, while to himself he gives the title of Pill Garlick. Under date of "Road to Danbury, Nov. 5th," he records:

We intended when we reached Litchfield to have gone to Peekskill, and there crossed the North River, but when we got to Danbury we were dissuaded from it by the Person at whose house we breakfasted, who told us that there were Tories and Horse stealers on that road. This account occasioned us to take the Fishkill road. Accordingly we set off, baited at the foot of Quaker Hill, about 7 miles from Danbury, and reached Colonel Ludington's 8 miles from the foregoing stage at night. Here *mens meminisse horret!* We were told by our landlady the Col. was gone to New Windsor, that there was a guard on the road between Fishkill and Peekskill, that one of the guard had been killed, about 6 miles off, and that a man not long before had been shot at on the road to Fishkill not more than three miles

from their house and that a guard had been placed there for some time past, and had been dismissed only three days. We were now in a doleful pickle, not a male in the house but Don Quixote and his man Sancho and poor Pill Garlick, and no lodging for the first and last but in a lower room without any shutters to the windows or locks to the doors. What was to be done? What could be done? In the first place we fortified our Stomachs with Beefsteak and Grogg and then went to work to fortify ourselves against an attack. The Knight of the woeful countenance asked whether there were any guns in the house. Two were produced, one of them in good order. Nails were fixed over the windows, the Guns placed in a corner of the room, a pistol under each of our pillows, and the Hanger against the bedpost, thus accoutered and prepared at all points our heroes went to bed. Whether the valiant Knight slept a wink or not, Pill Garlick cannot say, for he was so overcome with fatigue, and his animal spirits were so solaced with the beef and the grogg, that every trace of fear was utterly erased from his imagination and he slept soundly from evening till morning, save that at midnight, as he fancieth, he was waked by his companion, with this interesting Question, delivered with a tremulous voice, "What noise is that?" He listened and soon discovered that the noise was occasioned by some rats gnawing the head of a bread cask. After satisfying the Knight about the noise, he took his second and finishing nap.

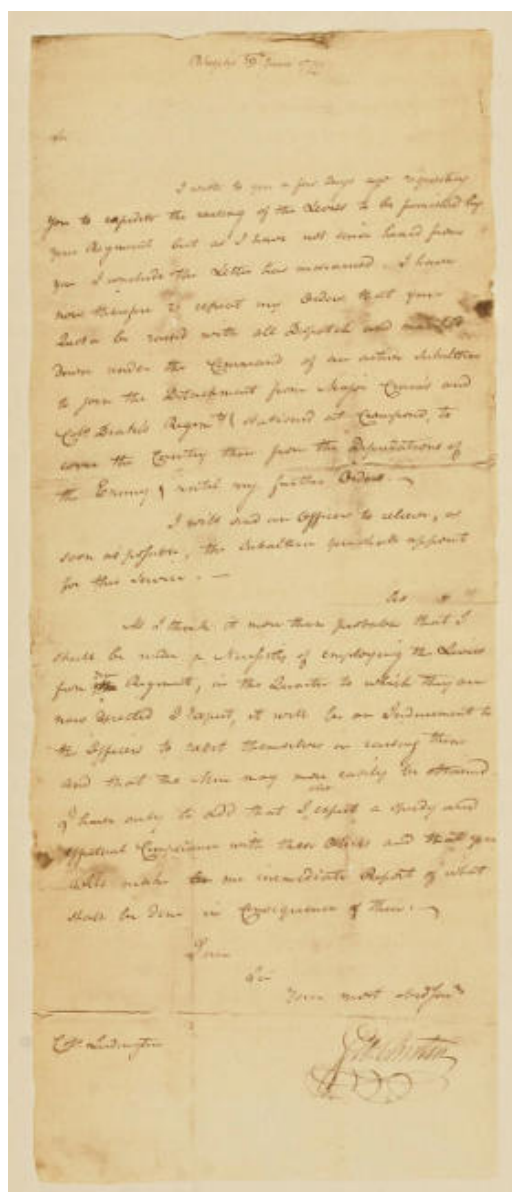
Again, in Colonel Israel Angell's diary, cited by Mr. Patrick, we find:

29th Nov, 1779. This morning after breakfast I got my horses Shodd, Crost the North River over to fishkill. Went on for Danbury, Col Greene and Mr. Griffen. Greene went for Springfield so we parted about six miles from fishkill, but Still could get nothing for our horses, till riding ten or twelve miles, there Dind and fed our horses, then went to Colo Luttentons Tavern among the Mountains 21 miles from fishkills there put up for the night. One of Col. Livingston's Officers came to this Tavern in the Evening on his way home on a furlough.

Nov. 30th, 1779. Left my lodgings this morning after breakfast went on for Danbury.

It is probable, indeed, that for a time Washington himself made Colonel Ludington's house his headquarters. In the late summer and fall of 1778 he had his army in that region, and made his own headquarters at Fredericksburgh, as related by Irving and Lossing. He wrote, under date of Fredericksburgh on September 12 and 23, describing the disposition of his army, "the second line, with Lord Sterling, in the vicinity of Fredericksburgh." He was there with the exception of a week from September 12 to the end of November. Part of the time his headquarters were

at the house of John Kane—also spelled Kain and Keane. This house stood on the site since occupied by the house of Mr. Charles H. Roberts, at Pawling, and was a large house, connected by a stone-walled passageway with another large stone building, the ground floor of which was used as a store and the upper story for dwelling purposes. The land was a part of Beverly Robinson's estate. Kane, of whom mention has already been made in Colonel Ludington's correspondence, was a Tory and was particularly obnoxious to the patriots. Under the law of October, 1779, his estate was confiscated, and he, a dignified and venerable magistrate, was tied to the tail of a cart and drummed out of town.



Reduced Fac-simile of Letter, from Governor George Clinton, to Col. Henry Ludington.

(Original in possession of Charles H.  
Ludington, New York City)

We have already quoted correspondence between Governor Clinton and Colonel Ludington, showing the difficulties which were encountered in raising troops for various services. As time went on these difficulties increased rather than diminished, so that now and then the governor was impatient at the unavoidable delay. Thus he wrote on one occasion as follows:

Pokeepsie 9th June 1779.

Sir,

I wrote to you a few Days ago requesting you to expedite the raising of the Levies to be furnished by your Regiment but as I have not since heard from you I conclude the Letter has miscarried. I have now therefore to repeat my Orders that your Quota be raised with all Dispatch and marched down under the Command of an active subaltern to join the Detachment from Major Crane's and Colo. Drake's Regimts (stationed at Crompond, to cover the Country there from the Depredations of the Enemy) until my further Orders.

I will send an Officer to relieve, as soon as possible, the subaltern you shall appoint for this service.

As I think it more than probable that I shall be under a Necessity of employing the Levies from your Regiment, in the Quarter to which they are now directed, I expect it will be an Inducement to the Officers to exert themselves in raising them and that the Men may more easily be obtained. I have only to add that I expect also a speedy and effectual Compliance with these Orders and that you will make me immediate Report of what shall be done in consequence of them.

I am Sir

Your most obed

GEO. CLINTON.

Colo. Ludington.

Public Service, GEO. CLINTON.

To Colo. Henry Ludington Fredericksburgh. By Express.

Colonel Ludington was, however, more successful in securing recruits than some other militia commanders in that region. Colonel Roswell Hopkins, at Amenia, seems to have met with many troubles, which ultimately led to his resignation of

his commission. In the summer of 1780 much trouble arose over trafficking in certificates of exemption, and this correspondence took place:

Amenia, July 12th, 1780.

Sir, In Obedience to Brigade Orders of the 30th ult. I now return to your Excellency the number of Classes in my regiment for raising the present Levies for three months; the number is Sixty-two; the men are to be Delivered the 14th Instant at Major Cook's & the 15th at Capt. Roger Sutherland's to such Officer as your Excellency shall appoint. I am, Sir, your most obedient Hum. Serv't,

ROSWELL HOPKINS, *Colo.*

His Excellency Gov'r. Clinton.

May it please your Excellency, We, the Subscribers, beg leave to inform your Excellency that Difficulties have arose in this Regiment respecting Exemption from Militia Drafts Certificates which have been transferred for a valuable Consideration by the procurer to another Person—that is whether the Purchaser of such Certificate is by act of the Legislature, Pass'd the 25th of March 1778, for Exempting persons from Drafts are as much exempted from Militia Duty as the first Procurers would be in case he had not transfer'd it. There being several such Instances in the Regiments and different Opinions in the Matter which is likely to produce uneasiness, and we being Inform'd that it has been the Practice in other Regiments to exempt the Purchasers of such Certificates. There is James Hildreth & Lemuel Brush—under this predicament the men that they purchas'd of have done duty in this regiment ever since they transfer'd their Certificates to the present Holders. As their appears to be no fraud or collusion respecting the said James Hildreth and Brush, we pray your Excellency's advice and Direction respecting such purchas'd Certificates which will oblige your Excellency's Most Obedient Humble Servants

ROSWELL HOPKINS, *Colo.*

WILLIAM BARKER, *Lt. Colo.*

BRINTON PAINE, *Major.*

EBEN. HUSTED, *Maj'r.*

Amenia, July 12 1780.

His Excellency Gov'r Clinton.

thes may sartify that I am knoing to the truth of what is in the above, as I then Commanded the Ridgment, & am knoing to theas 2 men mench'ed dus now due duty in the Ridgment.

DAVID SUTHERLAND.

Poukeepsie 13th July 1780.

Sir, I am this Moment favoured with your two Letters of equal Date. His Excellency Genl. Washington in Consideration of the Busy Season of the year & other Reasons has prolonged the Day for the Levies to rendezvous at Fishkill till 25th Instant. This I notified Brig'r Genl. Swartwoudt of by after Orders which I concluded he had issued to his Brigade. I will send an Officer to receive & take Charge of your men in Season to march them to the Place of Rendezvous. This Delay I flatter myself will be agreeable as they may be employed in gathering in the Harvests & it will afford them Time fully to prepare & provide themselves for the Campaign which is the more necessary as they are not to be relieved.

I wish it was in my Power to relieve Mr. Brush & Hildridge as I believe they meant to act honestly & uprightly; but it is not as they have not proceeded agreeable to Law and none but such are exempted—neither am I vested with any Discretionary Power of determining in such Cases. I have explained myself more fully to Mr. Brush & am, Sir, your &c.

(G. C.)

(to Colonel Hopkins)

A little later Colonel Hopkins had a lively experience with a press-master from Connecticut, which he reported to the governor—his letter being of interest for the picture which it gives of the times and customs in which Colonel Ludington was a participant:

Amenia Aug't 19th 1780.

May it please your Excellency, I beg leave to trouble your Excellency with a Remonstrance Concerning a certain Press-master, one George Tremble, who is a transient person that lives in Connecticut, who came to me on the 8th Instant and told me he wanted my team to carry forrage to the Fishkills. I told him my



Circumstances was such that I could not let them go, for it would Ruin me for my wheat, about 130 bushels, all I had was in the field and it would spoil. My oats, 200 or 300 busshels all lay in the Swarth, and would be lost, for I had no help but one Son, and could not hire any man; my flax a fine Crop was all in the field and some hay in the meadow, and my grass lodged and rotting, but he said he cared not for that, but I should go myself with my team the next day. I told him if I could secure my grain I would send my son and team the next week, but he said I should go the next day. I told him I would not; he showed me a Coppy of a press warrent from your Excellency to Colo. Hay with a line from him on the back authorizing said Tremble to impress teams & drivers in this state.

I told him that was no legal warrent to him; he rode off saying he would get a warrent for me, & then told all about he had got a warrent for me; but on the 14th he came again with a Sergeant & 8 men & entered my field, Siezed my son & confined him under guard, drove out my fatten oxen that I was fattening for the army, took my horses & forced my son to drive them with a lode of my own oats to the Fishkills, altho I consented if they must go they might carry my oats, he told me I was a disaffected Person, had done nothing to support the cause, held bad Princeples, was a dam'd Lyer and a dam'd Rascal.

I have fined him for cursing; sued him for trespass & issued a warrant against him in order to bind him to his good behaviour & recorded a riot against him.

I think its a pity that there is not a man in this Precinct County or state that can be trusted with a press warrant, but such an outlandish Irish, malicious, abusive fellow must be sent into this Precinct to press all the whiggs teams, & none in Charlotte, which is near 3 times as big, and half tories, for I cant learn of one being pressed there; after all the malicious fellow wrote a letter to Colo. Hay sent by the Soldiers that my team Capt. Shepherd's & Mr. Ingersoll's teams were disaffected teams, and requested they might be kept in Service a month; he abused others besides me. I am, Sir, your most obedient Hum'e Serv't

ROSWELL HOPKINS.

P. S. One Stack of my wheat is spoiled being wet thro & grown & I shall loose about six tons of hay. R. H.

His Excellency Governour Clinton.

At the beginning of May, 1781, however, Colonel Hopkins gave up the struggle to maintain his quota of men in the field, and insisted upon resigning his commission:

Amenia, May 1st 1781.

Sir, I wrote to your Excellency about a fortnight ago to acquaint you that the Classes of my Regiment were to Deliver their men yesterday, and requested an officer might be sent to receive them agreeable to general orders, but no man or orders came. I was greatly non-plused & knew not what to do, but have mustered the men and ordered them to meet at Peleg Tabors near Mr. David Johnston, on Saturday this week at 10 O'clock, to march immediately off, when and where I hope your Excellency will give some one orders to take care of them. I fear they will not appear at that time as no one has the care of them. I fear they will desert, they have got their bounties.

Sir, I must still insist on resigning my Military commission as I am wore out with the trouble & expence of it. I think it unaccountable that the vacancies in my Regt. are not filled up, when I have made so many returns and requests, and have had no adjutant for near 2 years and orders to send to my Capts. very often indeed. Sir, I desire if any officers are appointed this way to go with these Levies, I might be informed by the bearer who they be; pray excuse the want of Paper for I have wrote up 4 quire in a short time lately in orders &c. all gratis, and know not where I can get more. I have collected some money from the delinquent classes for during the war. I am, Sir, your most Obed't Serv't

ROSWELL HOPKINS, *Colo.*

His Excellency Gover'r Clinton.

Colonel Ludington also appears to have had many troubles and vexations at this time, though his "staying qualities" were superior to those of Colonel Hopkins. He wrote to the governor on the very day on which Colonel Hopkins resigned, as follows:

Fredericks Burgh, May 1st 1781.

Honoured Sir, I was yesterday a Coming to wait on your Excellency, but hearing of my little Son (who is at School at Danbury) lying very dangerous with the plurisy, was obliged to turn my Course that way, for which Reason obliges me to commit my Errand in writing. Your Excellency no doubt has been inform'd of our troubles of late in Regard of a large party of Robbers being for four weeks past near me in the mountains, which has occasioned me in some measure of being behind hand in turning out my men for the nine months Service, for the chief part of my Regiment has been out ever since the

Robbers came among us, And, Sir, were you to be fully acquainted with the Difficulty I now labour under you would think is impossible for me to do it, as I have but one field officer, which is Major Robinson who lives so near the lines that he has enough to take care of himself, The Circumstances of my wife and family renders it inconvenient for me to move immediately if I intend to save my life, or anything for my family's support. My Captains seeing the Distresses that is daily coming upon themselves by Reason of haveing their Sergents sued and torn to pieces for what Necessity required them to do among the tories, while we was under the authority of Committees, and many of their best men are beat and robbed by persons who say they are Refugees from below. It is only for them to call a man a tory, be him ever so good a man, himself, wife and Children get beat in such a manner that he's obliged to turn out his Substance to save their lives. And at best the Regiment are verry poor when compared with other Regiments and are call'd on to raise an eaquil number with the others, when I can affirm that ten farmers in Coll. Brinckerhoff's Regiment is able to purchase the whole of mine. In this uneaquil way, I have been obliged to turn out my men untill they are so much impoverish'd that they almost despair.

It seems the power of Earth and Hell was let loose against me and my Regiment. Even one of the most abundant Ruffins is indulged to hold me up to public view for Cowardice, for challenging him to fight a Duel. It is what I never thought on, neither did he think I did, but was let loose upon me by the Instigation of a set of Ruffins who Conspired together to take my life, and I knowing this Kees to be a transient person who had neither Connection, Credit, Money or friends, nor no place of Residence here, that it was out of my power to get Recompence from such a fellow as he, unless it was by giving him a flogging, and that he had put out of my power by Secreting himself. This being my Situation shall expect from your Excellency some Directions and advice by a line what will be best for me to doe. I something expect that General Swartwout will wait on you this day, who will be able to state some of the Difficulties I have mentioned and whether it will not be best to anex my Regiment to some other Regiment, or give me some field officers, who in time of turning out my men will be better able and more willing to assist me.

Am, Sir, with due Regard your Excellency's Most Obed't and verry Hum'e Serv't

HENRY LUDINTON.

His Excelency George Clinton, Esqr.

The governor regarded Colonel Ludington's request for more officers as reasonable, and promptly complied with it as follows:

Sir, In Answer to yours of the 1st Instant I have to inform you that Lieuts. Johnson, Duel & Becker of your Regt. are appointed Officers in the Levies. These will have orders to receive & march your Quota to the Place of Rendezvous. The last I received from you I answered a Day or two after it came to Hand. My Letter was forwarded by Judge Paine. If you apply to the Secry. I imagine you will find that the appointments for your Regt. agreeable to your Return have long since been perfected. Agreeable to a Notification in the public News Papers the Council mett at this Place on the 26th Instant. It would have been proper to have applied to them at that Time either to have had the vacancies in your Regt. filled up or to have made your Resignation as they only have the Power of doing the former or of accepting of the latter. I am &c.

(G. C.)

There may be some other gentlemen residing within your Regt. appointed officers for the Levies but of this I cant be certain as I am neither acquainted with its Limits or their Places of Residence. (To Colonel Ludinton.)

A fortnight later new orders as to the distribution of levies were issued. Colonel Ludington was to be retained on duty in Westchester County, where he was much needed. But a sharp controversy arose over his alleged dilatoriness in raising his quota of men. These letters indicate the general trend of affairs at that time:

Fishkeels 13th May 1781.

D'r Governor, I have just Returnd from three days fortague receving Colo. Vanderburgh Levies.

I beg to no what part of Ulster County I shall derect that part of the Levis to purposed for that Quarter. I have proposed Capt. Livingston for that Command & beg he may be as ney my post as posable. I am your Excel'cy most Obt. Hbl. Serv't

E. V. BUNSCHOTEN.

His Ex'ly G. Clinton.

N. B. I expose my poverty as to paper.

May 13th 1781.

S'r, I have rec'd your Letter by Capt. Livingston. The Detachm't intended for the frontiers of Ulster are to proceed to Kingston. Colo. Graham's Regt. will furnish 50 so that no more are to be sent than with them will make up 100. I am anxious that those for Albany be dispatched as soon as possible, and it is my wish that a Part of those already on the ground be sent there as their appearance on the Frontier will give Confidence to the Inhabitants. Field's & Ludington's Levies are intended for West Chester. Call in all the absent Officers immediately. Capts. Marshall & Whelp who belong to Willet's Regt. ought to join & take Charge of the Detachm't intended for Albany.

(G. C.)

(Major Van Bunschoten.)

Poughkeepsie, May 13th 1781.

Sir, I am informed by Letter from Colo. Luddenton that he has not yet done any Thing towards raising the Levies from his Regt., that they are not even formed into Classes. I must, therefore, insist that you immediately take the measures directed by Law for drawing forth his Proportion of men, together with the Deficiencies from all the other Regiments, a Return of which will be furnished you by Major Buntschoten on your application. The Service will by no means admit of Delay in this Business. I, therefore, expect your utmost exertions. I am &c.

GEO. CLINTON.

Brig'r. Genl. Swartwout.

Fishkill May 16th 1781.

D'r Sir, Agreeable to your Exlancey's order, I wated on Colo. Luddenton to Receive the Levies from his Ridgment; he promisd to have them Ready the next week, but hearing he made no stur, I sent Lt. Dyckman to know when I might expect them, but he could not see him. I then went myself several times before I could see him; he at length set a day to Receive them but neighther he nor his men mad ther appearance. I cald on him the nex day to know the Reason, but he was out of the way. I then concluded to report to him but by chance I met him on the Road; he then promised to turn them out the twenty first of the month. Should I bee disappointed again, I shall wait on your exlancey with the

particulars and remain, with the greatest esteem, your exlancey's most obedient and most umble serv't

D<sup>NL</sup> WILLIAMS.

His exlancey Governor Clinton.

Colonel Ludington appears to have fulfilled his word and to have completed his quota in a satisfactory manner, for there is no indication of any further complaints, and he is known to have continued in the service in the best of standing. His next correspondence with Governor Clinton had to do with the petitions of two deserters for clemency, and with the case of a woman who had become an outlaw. Colonel Ludington's letter and the petition, and the governor's reply, were as follows:

Fredericksburgh, September 21d, 1781.

Honored Sir: Being acquainted with the contents of the petition sent you enclosed from Sem'r Arnold and Cowin should esteem it as a favour Dun unto them and my Self if it should have its Desired efect. But be that as it may an answer from His Excelenz Consearning the Same will Mutch oblige your very Humble Servant

To his Excellency George Clinton, Esqr. Governor.

Petition of Daniel Cowing and Seymour Arnold.

To his Excellency George Clinton Esquire Governor of the State of New York:

The Humble Petition of Daniel Cowing & Seymour Arnold.

Humbly Sheweth—That your Petitioners were by undue influence and evil Example unhappily led to desert their Station in the levies under Captain Williams on the Lines in the county of Westchester and though your Petitioners upon the first reflection were sensible of the enormity of their Crime & inclined to return to their Duty, the dread of Corporal punishment prevented them till pardon could be procured from their officers; that many applications for that purpose have been made by persons employed by your Petitr. without Effect, that your Petitr. are heartily sorry for, and ashamed of their conduct, are fully determined and solemnly promise never to be guilty of the same Crime again under any Circumstances or treatment whatsoever, that your Petrs. hope some indulgence from their known attachment to the Public cause as your petrs. have

been in the service a great part of the time since the war Commenced and are now willing to make every amend in their power to the state by serving longer than the time limited or Otherways as your Excellency or their officers may appoint, if by your Excellency's interposing in their favour your petrs. may be exempted from Corporal punishment for this offence and at Liberty to return to their duty immediately this your Petitr. implore & hope from your Excellencys known Clemency.

And your Petrs. as in duty bound will ever Pray.

Poughkeepsie, Septr, 21st 1781.

Sir, I have rec'd your letter of this Date with the Petition of the Deserters from Capt. Williams' Company & the request of the Overseers of Poor relative to Mrs. Webb.

The levies you may remember are by the Law put under the Command of the Commander in Chief & made subject to the Continental Articles of War. Genl. Heath has now the command of the Department & the application in behalf of the Petitioners should be to him. I cannot with Propriety interfere in the matter. But at any Rate they ought first to deliver themselves up & offer to return to their duty before they can expect a remission of the Punishment they have incurred.

With respect to Mrs. Webb—the law makes it the duty of the Justices to warn her out of the State and she is to depart within twenty Days after Notice given her accordingly, or be out of the protection of the law, I am,

(G. C.)

Colo. Luddinton Fredericksburgh.

Later in the war, much difficulty was again experienced in raising the desired levies:

Fredricksburgh, aprill 14th, 1782.

Honoured Sir, it will be needles for me to State to your Excelency the Difficulties and Disadvantiges my Distresd Regment Labours under as in Regard of Raising their quota of men, for Sure I am that if it was Consistant his Excelency would give us every Asistance in his power. This one Request I shall atempt to make that we should Have an offisar or two apointed in the Regiment.

If that should Be the case I think it would Have a tendancy to aleviate us in the pain of Raising them and prevent Desartions which hath Been verry preverlent 2 or 3 of the Last Campains. The men I Raised the Last year were as good men as I would Evr wish to Command, were put under Capt. Williams And Desarted all to a man. As it is so Burthensom to Rase the Money to pay their Bounties pray Let us indeavour they shall Do the Service intended. It is my opinion that Lt. Charles Stewart that was with Colo. Wesenfell Last year will answer well for a capt. and his son for a 2 L'dtant.

am Sir His Excelencys verry Humble Servant

HENRY LUDINTON.

Governor Clinton.

A few days later he wrote again:

Fredricksburgh Aprill 23, 1782.

Honoured Sir,

I must Beg Leave to trouble his Excelency this once more with my Request that Lt Charles Stuart shall Be indulged with the Same offise he held last year under Colo. Wiesenfelt. I should not so Strenuously insist upon it only that I am Sensable it will have a tendancy to induce the young men of his aquantance to inlist and that for a mutch les sum than if they were to go with Strangers. Sir for the Reasons above Resited I shall hope his Excelency will grant this my Request as well as others. I am Sir his Excelencys most obedient and Humble Servant

HENRY LUDINTON.

To George Clinton Esqr. Governor.

P. S. Sir a line By way of answer if it should be agreable.

Thus Colonel Ludington served through the war to its close, in his various capacities, and at the end was much concerned with securing settlements of the pay due to himself and his troops. His own rate of pay is indicated in several entries on the pay-rolls. Thus we find—



Abstract of Pay & Rations due Col. Henry Luddington's Regt. of Dutchess County Militia in the Service of the United States at different Periods between March 1779 & November 1780.

| Names.           | Rank    | Commencing    | Ending          | Time   |      |
|------------------|---------|---------------|-----------------|--------|------|
|                  |         |               |                 | Months | days |
| Henry Luddington | Colonel | 1779<br>March | 1780<br>Novemr. | 1      | 5    |

| Dollars pr Month | Rations |       | Amount of Rations. | Amount of Pay and Rations. |
|------------------|---------|-------|--------------------|----------------------------|
|                  | Rations | Price |                    |                            |
| 75               | 210     | 10d   | 8:15:—.            | 43:15:—.                   |

Apparently it was long after the war before all these matters were fully adjusted, as the date of the following affidavit shows:

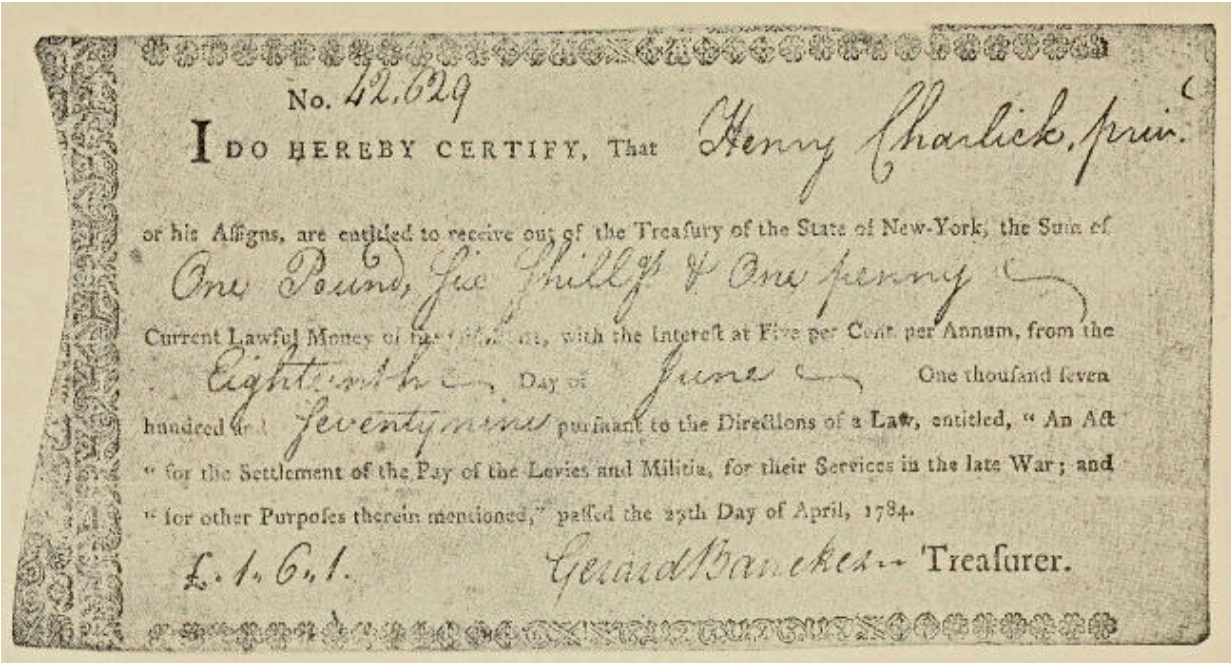
I Henry Ludinton do solemnly and sincerely swear that the List hereunto annexed contains an Account of all Certificates that remained in my Hands of those that were issued by the Treasurer and delivered to me for Paying my Regiment; That the remainder were to the best of my knowledge and belief delivered to the Persons who performed the services or their legal representatives and that the names subscribed to the vouchers produced were bona fide subscribed by them.

HENRY LUDENTON.

Sworn before me this 13th Day of Septr. 1792.

Gerard Bancker Treasr.

Voucher No. 306, of "The United States to the State of New York, Dr. for payments on Certificates for Military Services performed in the late War," presumably covering all payment made to Colonel Ludington for federal services, shows a total of £1330:19s:2d.



Pay certificate of a member of Colonel Ludington's regiment

Colonel Ludington appears to have been the purchaser, for cash, of some of the lands apportioned to soldiers as bounties for their services. Thus in the "Manuscripts of the Colony and State of New York in the Revolutionary War," on file in the controller's office at Albany, Mr. Patrick has found this entry:

We the subscribers members of a class in Capt. William Pierce's Company and Colo. John Field's Regiment who have Procured a man to wit Christian Null to serve in the Levies of this State Until the First Day of January Next who has been Delivered and a Certificut Taken for Such Delivery According to Law whereby the said Class Is Entitled to two hundred acres of Unappropriated Land we do therefore in Consideration of the sum of five Pounds to us in hand paid By Henry Ludenton Esqr the Receipt Whereof we do acknowledge and Do grant and transfer unto the said Henry Ludenton Esqr. his heirs and assigns the Whole Right of the said two hundred acres of Land which said Class is Entitled To In persuance of a Law of this State Entitled an act for Raising Troops to Complete the Line of this State In the service of the United States And the two Regiments to Be Raised on Bounties of Unappropriated Lands and for the Further Defence of the frontiers of this State Passed the 25th of March 1782 To have and to hold the sd two hundred Acres of Land Unto the sd Henry Ludinton His heirs and assigns to his and their proper use and Benefit and behoof forever as witness our hands and seals this the 3d of March 1783.

Henry Ludinton

Assignee and Assignor

EDMUND FERRIS

ASA SABIN

JOHN CASWELL.

JOHN PEASLEE

RICHD FURNISS

JAMES FERRIS

STEPHEN STEVENSON

WARREN FERRIS.

Seald and Delivered in presence of

Jathro Sherman

James Ferriss

This document is endorsed as follows:

Be it remembered that I Henry Ludinton do Assign over this within Conveyance unto Benjamin Conklin and to his Heirs and Assigns to Reserve and injoy the Land therein mentioned.

HENRY LUDINTON.

Dated November 1st 1783 in presence of Eleazar weed.

With such transactions the military service of Colonel Ludington was concluded, and the remainder of his busy life was reserved for civil duties and his private affairs.

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## **CHAPTER VII**

### **AFTER THE WAR**

With the return of peace in the triumph of the cause for which he had battled, Colonel Ludington by no means lapsed into inactivity or obscurity, but continued to serve the State in various ways with the same earnestness which he had shown in war. For some time he was again a deputy sheriff of Dutchess County, and in the performance of his duties on one occasion was severely stabbed by a desperado named Brown, whom he was arresting. For many years he was a justice of the peace, his long service being ample evidence of the confidence which his fellow citizens reposed in his probity and of the esteem in which they held his intelligence. He had not a legal education. Indeed, as has already been observed and as the composition of his letters clearly shows, his schooling in even the ordinary branches was slight. His rulings as justice of the peace were therefore based more upon common sense and practical, elementary justice than upon technical familiarity with statute law or with the prescribed forms of judicial procedure. His shrewd sense and his just disposition, however, guided him so well that his administration of the office was satisfactory to those who had occasion to use his court, and it was a rare thing for an appeal to be taken against any of his decisions, and still more rare for a higher court to reverse his judgment. After many years of satisfactory service, one of his friends persuaded him that he should pay more attention to the technical conventionalities of judicial procedure, and to that end provided him with a compendium of legal practice. This treatise, admirably comprehensive yet concise, covering a number of foolscap pages of manuscript, is among Colonel Ludington's papers now in the possession of his grandson, Charles H. Ludington. Colonel Ludington accepted the advice with some misgivings, but studied the compendium, and when the next case came before him he conducted court in a more technically correct way than before. On this occasion an appeal was made by the defeated party to a higher court, and that court reversed Colonel Ludington's judgment and ordered a new trial. That was something which had never before happened, and was naturally a cause of chagrin to him. He indignantly declared that it was all because of the new-fangled methods of procedure which his friend had persuaded him to adopt, and he thereafter persisted in conducting his court in the old-fashioned way.

Among the records of the Dutchess County justices' courts, or courts of special sessions, are many entries of cases tried before him. In October, 1803, Henry Ludington, Cyrus Benjamin and Stephen Hayt occupied the bench when "Ruamy Shaw was brought before the court charged with feloniously stealing, taking and carrying away from the house of Isaac Russell a pair of shoes and a Tea Kettle Holder, whereupon the said Court after hearing witnesses for and against the prisoner are of the opinion that the said Ruamy Shaw is guilty, ... that she therefore pay a fine of five dollars and stand committed until judgement be complied with." The fine was promptly paid, in the form of a due bill by William Shaw. In July, 1806, before the same justices, "Else Lake, Spinster, was convicted ... for feloniously stealing taking & carrying away one Plad Chinz gown out of the dwelling house of Frances Mead ... and that the said court lay a fine of \$5, and that she stand committed until the same is paid. She refusing to pay the same, Metimas (mittimus) wrought and delivered to John Griffen const." That plaid chintz gown was a source of much trouble, for on that same day before the same court, "Phebe Davis, wife of Solomon Davis, was ... convicted for feloniously stealing one Plad Chinz gown to the value of \$3.50 cents, the property of Frances Mead, and that the said Court lay a fine on the said Phebe of \$6 and that she stand committed until the same is paid. She refusing to pay the same, Metimas wrought and delivered to John Griffen const."

It will be of some quaint, antiquarian interest to recall the phraseology of the commissions which were in those days issued to justices of the peace. One of those issued to Henry Ludington, now in the MS. collection of Mr. Patrick, runs as follows, being practically identical, *mutatis mutandis*, with others issued to him by later governors.

THE PEOPLE of the State of New York, by the Grace of GOD, Free and Independent.

To David Brooks, ... Henry Ludington, ... and Ahab Arnold, in our County of Dutchess, Esquires, Greeting:

Know Ye, that We have appointed and assigned; and by these Presents, do appoint and assign, you and every of you, jointly and severally, Justices to keep Our Peace, in our County of Dutchess, and to keep, and cause to be kept, all Laws and Ordinances, made or to be made, for the good of the Peace, and for the Conservation of the same, and for the quiet Rule and Government of the Citizens and Inhabitants of our said State, in all and every the Articles thereof,

in our said County, as well within Liberties, as without according to the Force, Form and Effect of the same Laws and Ordinances; and to chastise and punish all Persons offending against the Form of those Laws and Ordinances, or any of them, in the County aforesaid, in such Manner, as, according to the Form of those Laws and Ordinances, shall be fit to be done; and to cause to come before you, or any or either of you, all those Persons who shall break the Peace, or have used, or shall use Threats, to any one or more of the Citizens or Inhabitants of our said State, concerning their Bodies, or the firing of their Houses, or Barns, to find sufficient Security for the Peace, or their good Behaviour towards the People and Inhabitants of our said State; and if they refuse to find such Security, then them in Prison, until they shall find such Security, to cause to be safely kept: And further, We have also appointed and assigned you the said Justices, or any three or more of you, to enquire, by the Oath of good and lawful Men, of our County aforesaid, by whom the Truth may be the better known, of all, and all manner of Larcenies, Thefts, Trespasses, Forestallings, Regratings, Engrossings and Extortions whatsoever, and of all and singular other Crimes and Offences, of which Justices of the Peace may or ought lawfully to enquire, by whomsoever, and after what Manner soever, in the County aforesaid, done or perpetrated, or which shall happen to be there done or attempted: And also, of all those who in the said County have gone or rode, or hereafter shall presume to go or ride, in Companies with armed Force, against the Peace, to the Disturbance of the Citizens and Inhabitants of our said State: And also, of all those who have there lain in Wait, or hereafter shall presume to lie in Wait, to maim, or cut and kill, any Citizen or Inhabitant of our said State: And also, of all Victuallers and Innholders, and all and singular other Persons, who have offended or attempted to offend, or hereafter shall presume or attempt to offend in the said County, in the Abuse of Weights or Measures, or in the Sale of Victuals, against the Form of the Laws and Ordinances of our said State, or any of them, made for the common Good of our said State, and the Citizens and Inhabitants thereof: And also of all Sheriffs, Bailiffs, Constables, Gaolers and other Officers whatsoever, who, in the Execution of their Offices about the Premises, or any of them, have unduly demeaned themselves, or hereafter shall presume to behave themselves unduly, or have been, or hereafter shall happen to be careless, remiss or negligent, in the County aforesaid; and of all and singular Articles and Circumstances, and all other Things whatsoever, that concern the Premises or any of them, by whomsoever, and after what Manner soever in the said County, done or perpetrated, or which shall hereafter happen to be done or attempted, in what Manner soever, and to inspect all Indictments whatsoever, so before you or any of you taken, or to be taken, or before others

late Justices of the Peace in the said County, made or taken and not determined; and to make and continue Processes thereupon, against all and singular the Persons so indicted, or who, before you, shall happen to be indicted, until they be taken, surrender themselves, or be out-lawed; and to hear and determine all and singular the Larcenies, Thefts, Trespasses, Forestallings, Regratings, Engrossings, Extortions, unlawful Assemblies, Indictments aforesaid, and all and singular other the Premises, according to the Laws, Ordinances and Statutes, of our said State; as in the like Case it has been accustomed or ought to be done; and the same Offenders and every of them, for their Offences, by Fines, Ransoms, Amerciaments, Forfeitures and other Means, according to the Laws and Customs of our said State, and the Form of the Ordinances and Statutes aforesaid, it has been accustomed or ought to be done, to chastise and punish. You, therefore, and every of you are diligently to attend to the keeping of the Peace, Laws and Ordinances, and all and singular other the Premises, and at certain Days and Places, which you, or any three of you shall, in that behalf, appoint, or by Law shall be appointed, you enquire into the Premises, and hear and determine all and singular the Premises, and perform and fulfil the same in form aforesaid; doing therein what to Justice appertaineth, according to the Laws and Ordinances aforesaid: Saving to Us our Amerciaments and other Things to Us thereof belonging: And the Sheriff of our County of Dutchess aforesaid, at certain Days and Places, which you the said Justices of the Peace of the said County, or any three or more of you shall make known to him, shall cause to come before you, the said Justices of the Peace of the said County, so many such good and lawful Men of his Bailiwick or County, as well within Liberties as without, by whom the Truth of the Matter in the Premises shall be the better known and enquired into: For all and singular which this shall be your Commission, for and during our good Pleasure, to be signified by our Council of Appointment. In Testimony whereof, We have caused these our Letters to be made Patent, and the Great Seal of our said State to be hereunto affixed: Witness, our trusty and well-beloved George Clinton, Esquire, Governor of our said State, General and Commander in Chief of all the Militia, and Admiral of the Navy of the same; by and with the Advice and Consent of our said Council of Appointment, at our City of Albany, the fifteenth day of August, in the Year of Our Lord one thousand eight hundred and one, and in the twenty-sixth year of our Independence.

GEO. CLINTON.

Colonel Ludington also served with some distinction as a member of Assembly in the State Legislature, for Dutchess County, some of such service being during the Revolutionary War. He thus served in the Third Session, which met at Kingston from August 18, 1777, to October 25, 1779, at Albany from January 27 to March 14, 1780, and at Kingston again from April 22 to July 2, 1780; in the Fourth Session, which met at Poughkeepsie from September 7 to October 10, 1780, at Albany from January 17 to March 31, 1781, and at Poughkeepsie from June 15 to July 1, 1781; in the Ninth Session, which met in New York City from January 12 to May 5, 1786; and in the Tenth Session, which met in New York City from January 12 to April 21, 1787. He appears to have been a prominent and influential member. At the meeting of January, 1786, he was made a member of the Ways and Means Committee, and of a special committee to prepare a bill for the regulation of the militia and the establishment of magazines. The records of that meeting show that Colonel Ludington was in constant attendance and was an active participant in the business of the House. He is recorded as voting at almost every division, and generally appears to have been a member of the majority. On March 1 it was represented to the Legislature that a number of prisoners confined in the jail of New York for debt were reduced to great extremity for want of wood and firewood, and were in danger of perishing for want of such necessities; wherefore a committee of three, Colonel Ludington being one, was appointed to inquire into the matter—one of the first steps toward the abolition of imprisonment for debt. On March 6, 1787, the Legislature proceeded to the nomination and appointment of “delegates to meet with delegates as may be appointed from other States, for the sole purpose of revising the Articles of Confederation”—to wit, the Constitutional Convention of the United States. Colonel Ludington, who was a staunch Federalist, voted for the appointment of Alexander Hamilton, Robert Yates, and John Lansing, Jr.

Soon after there arose a remarkable illustration of the dilatory disposition of governments of that day in dealing with some matters of real importance in which honor and good faith were involved. Away back in April, 1784, Colonel Ludington had submitted to the Legislature a petition relative to certain certificates for depreciation of soldiers’ pay, which he had lost or which had been stolen from him. Mr. Pell, of the committee to which the petition was referred, had reported that the facts were as stated in the petition, and that the petition for relief ought to be granted. Leave was granted for the introduction of a bill to that effect, and the bill was introduced and passed by the Assembly. Either it was not concurred in by the Senate, however, or for some reason it was not put into effect. For now, on April 14, 1787, we find Colonel Ludington



again presenting to the Assembly, of which he was a member, a petition setting forth that certain depreciation certificates, amounting in all to 407 pounds 4 shillings, had been stolen from him, and that after passing through divers hands were paid to the Commissioners of Forfeitures for the purchase of a forfeited estate, and were then in the treasury of the State, wherefore he prayed for a law directing the treasurer to return them to him. Mr. Hamilton, from the committee to which the petition was referred, reported that the facts were found to be as stated, that the petitioner's case would be very unfortunate if he were to be finally deprived of the benefit of the certificates which had been stolen from him, and that it would be a proper act of generosity in the State to direct the treasurer to return them to him. The committee recommended that a clause to that effect be inserted in some bill then before the House. The House, however, voted not to concur in the report of the committee, and it does not appear that any further step toward doing him justice was taken at that time. Finally, however, on March 12, 1792, the Legislature adopted the following act:

Whereas certain certificates issued by the auditors appointed to liquidate and to settle the accounts of the troops of this State in the service of the United States have been received by the Commissioners of Forfeitures, and are now in the treasury of this State, which it appears to this Legislature were lost by Henry Ludenton, and which certificates at the time they were lost were not transferable, otherwise than by assignment; And whereas the said Henry Ludenton has prayed relief in the premises; Therefore, Be it enacted by the people of the State of New York, represented in Senate and Assembly, That whenever the United States shall direct that the residue of the twelve hundred thousand dollars may be subscribed, which by the act of the United States entitled "An act for making provision for the debt of the United States," passed the 4th day of January, 1790, had not been subscribed before the last day of September last, then the Treasurer of this State is hereby authorized and directed to deliver unto Henry Ludenton the aforesaid certificates ... being the certificates lost by the said Henry Ludenton.

Thus nearly eight years after the original appeal for relief, which was acknowledged to be valid and worthy, the Legislature voted to grant such relief at some indefinite time in the future, conditioned upon the fulfilment of obligations by the federal government, which had already shown itself dilatory in the matter!

One of the most important divisions in which Colonel Ludington voted in the minority was that concerning the independence of the State of Vermont, a matter over which there had been danger of a civil war. Said the "County Journal and Poughkeepsie Advertiser" for April 4, 1787: "Last Wednesday morning the important question for declaring the Independence of Vermont was debated in the House of the Assembly. It was carried in the affirmative, as follows:" The poll of the House as given shows 32 votes in the affirmative, and 21 in the negative, Colonel Ludington's name being among the latter, although his friends Hamilton and Lansing voted in the affirmative.

In the "New York Packet and American Advertiser" of February 27, 1783, appeared this notice:

"Notice is hereby given to the Debtors and Creditors of Stephen Ludinton, deceased, who was by a jury of inquest said to have been murdered by John Akins, to meet me at the House of Alexander Mills in Fredericksburgh on Monday the 10th day of March next, at 10 o'clock in the morning, in order to discharge the debts due the said estate, and receive payment as far as the estate will go as it is supposed he died insolvent.

"HENRY LUDINGTON *Executor.*"

An act of the Legislature on March 9, 1810, made Colonel Ludington one of the incorporators of "a body corporate and politic" for the purpose of "making a good and sufficient turnpike road to begin at the Highland turnpike road near the house of Joseph C. Voight in the town of Cortlandt and County of Westchester, and from thence to or near the house of James Mandeville and to or near the house of Samuel Owens, in the town and county aforesaid; from thence to or near the house of Jonathan Ferris, and to or near the house of Edward Bugby and Solomon Avery in Philipstown in the county of Dutchess; from thence running up Peekskill Hollow, to or near the house of Rowland Bailey, and to or near the house of Henry Ludington in the town of Frederick; from thence running to the great road west of Quaker Hill, to or near the house of Thomas Howard."

It should be added, to complete the record, that Colonel Ludington was in 1771 an overseer of the poor for South Precinct; in 1772 he was assessor of Fredericksburgh; and in 1776, 1777, and 1778 he was supervisor of the town of Fredericksburgh.

Colonel Ludington was commonly known by his military title to the end of his life. As a matter of fact, however, he ceased to exercise the functions of a colonel on September 27, 1786. An act of the Legislature of New York of April 4, 1782, provided that "in case of the death, resignation or other inability to serve, of any Colonel now commanding a regiment (of militia), no Colonel shall thereafter be appointed thereto; that such regiment and all others not now commanded by a Colonel shall henceforth be commanded by a Lieutenant-Colonel." This act was doubtless largely the outcome of the deliberations of the committee on reorganization of the militia of which Colonel Ludington was a member. At the date named in 1786, accordingly, he retired from the command of the regiment with which he had so long been identified, and was succeeded by Lieutenant-Colonel Drake. In this regiment Archibald Ludington and Henry Ludington, Jr., sons of Colonel Ludington, were, respectively, paymaster and ensign. Henry Ludington, Jr., became lieutenant in the regiment commanded by Lieutenant-Colonel Elias Van Benschoten, and on June 7, 1793, when John Drake moved away from Dutchess County and was succeeded in command of Ludington's old regiment by Lieutenant-Colonel Elijah Townsend, Henry Ludington, Jr., became a captain and Archibald Ludington paymaster in it. Henry Ludington, Jr., filled that place until March 16, 1797, when, owing to his removal from Dutchess County, he resigned and was succeeded by Samuel Smith. Archibald Ludington was succeeded by Stephen Waring on March 23, 1803. The commission of Henry Ludington, Jr., as lieutenant, is preserved in the possession of Charles H. Ludington, and reads as follows:

THE PEOPLE of the State of NEW-YORK, By the Grace of GOD, free and independent;

To Henry Ludinton, Junior, Gentleman, Greeting:

We, reposing especial Trust and Confidence, as well in your Patriotism, Conduct and Loyalty, as in your Valour and Readiness to do us good and faithful Service; HAVE appointed and constituted, and by these Presents, DO appoint and constitute you, the said Henry Ludinton, Junior, Lieutenant of a Company in the Regiment of Militia in the County of Dutchess, whereof John Drake, Esquire, is Lieutenant-Colonel Commandant.

You are therefore, to take the said Company into your Charge and Care, as Lieutenant thereof, and duly to exercise the Officers and Soldiers of that Company in Arms, who are hereby commanded to obey you as you shall from Time to Time receive from our General and Commander in Chief of the Militia

of our said State, or any other your superior Officer, according to the Rules and Discipline of War, in Persuance of the Trust reposed in you; and for so doing, this shall be Your Commission, for and during our good Pleasure, to be signified by our Council of Appointment. IN TESTIMONY whereof, We have caused Our Seal for Military Commissions to be hereunto affixed. WITNESS our Trusty and Well-beloved GEORGE CLINTON, Esquire, our Governor of our State of New-York, General and Commander in Chief of all the Militia, and Admiral of the Navy of the same, by and with the Advice and Consent of our said Council of Appointment, at our City of New-York, the twenty-seventh Day of March, in the Year of our LORD, One Thousand Seven Hundred and Eighty-seven, and in the eleventh Year of our Independence.

Passed the Secretary's Office, 7th April, 1787.

Robt. Harpur, D., Secretary.

GEO. CLINTON.

(Governor's signature in margin, under seal.)

Colonel Ludington, as has already been stated, at first occupied his estate at Fredericksburgh under a lease, and did not actually buy the land until July 15, 1812, when Samuel Gouverneur and wife made to him a deed for 229 acres. Long before the latter date, however, he had acquired other lands in Dutchess County, at least as early as 1781, when he was the owner of a large tract in the eastern part of the county several miles from his home. It was one of the perilous duties of his daughters Sibyl and Rebecca frequently to ride thither on horseback, through the Great Swamp, to see that all was well on the property. After the war he disposed of that land, as the following notice, in the "County Journal and Dutchess and Ulster Farmer's Register," of March 24, 1789, shows:

#### To Be Sold By The Subscriber:

A Farm of about 104 acres of land in Frederickstown in the County of Dutchess lying on the east side of the Great Swamp near the place where David Akins formerly lived. There are about 30 tons of the best kind of English hay cut yearly on such place, and considerable more meadow hay may be made, a sufficient quantity of plough and timber land, a good bearing orchard of the best of fruit, a large convenient new dwelling house and a stream of water running by the door. The place is well situated for a merchant or tavern keeper. Whoever should incline to purchase said place may have possession by the first of May

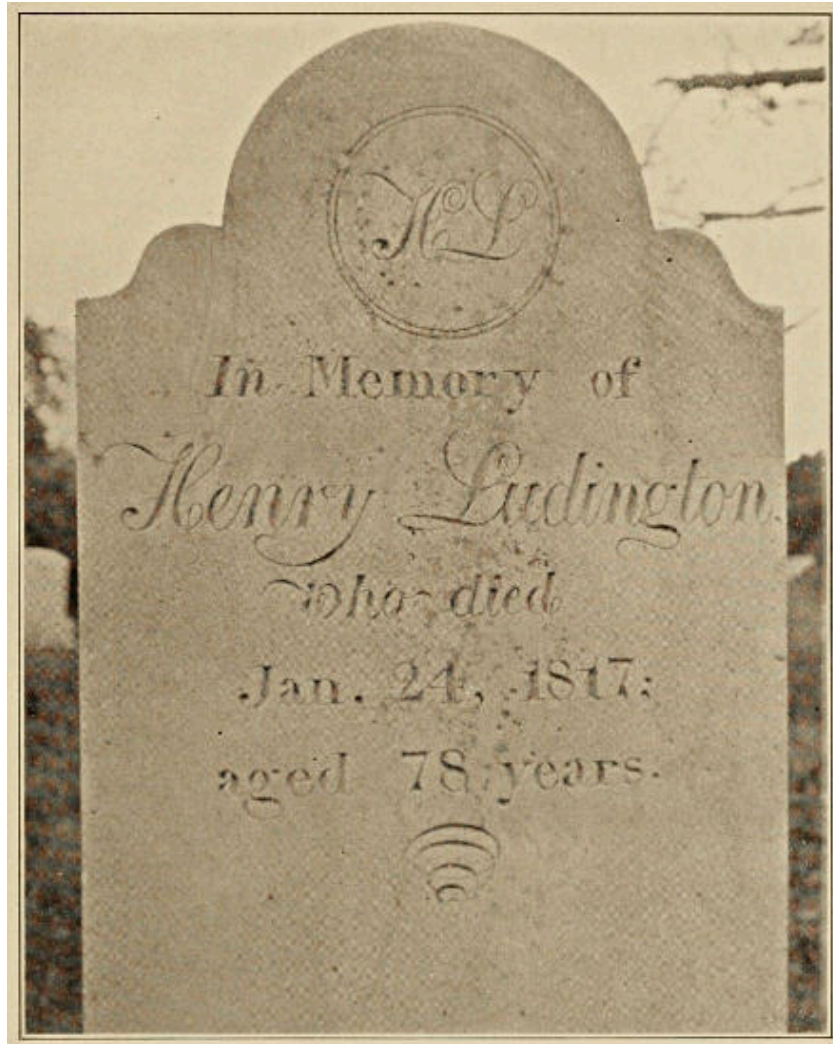
next; the payments made as easy as possible and an indisputable title given for the same. For further particulars inquire of the subscriber or Mr. Edmund Ogden who keeps a public house on the Premises.

HENRY LUDINTON.

March 9th, 1789.

The result of this advertisement was the sale of the farm in question to a man from the former home of the Ludingtons in Connecticut. This appears from a document in the possession of Mr. Patrick, the original of an agreement made on November 5, 1790, between Colonel Ludington and James Linsley, of Branford, Connecticut, by which the former covenanted and agreed with the latter "to sell a certain farm situate, lying and being in Fredericksburgh butted and bounded as follows adjoining Croton River on the west side and on the south by Abijah Starr & Ebenezer Palmer and on the north by P. Starr & Samuel Huggins, Containing about one hundred and five acres." The price to be paid at various times and in various sums was "414 pounds, New York currency." "And furthermore the said Ludinton doth further agree with the said Linsley to Enter on the Farm of him the said Ludinton where he now Dwells to Cut and Carry away a sufficiency of timber for the framing of a Barn of the following Dimentions forty feet in Length and thirty feet in Breadth and the said Linsley hath further Liberty to enter upon the home farm of the said Ludinton and Cutt sufficient quantity of sawmill logs for to cover said Barn and after the said Linsley has drawn said logs to the saw mill of the sd Ludinton he the said Ludinton will saw sd Logs without delay free from all cost and charges of said Linsley."

Colonel Ludington was much interested in the Presbyterian church at Frederickstown, now Patterson, and was one of its trustees. On May 22, 1793, he and his fellow trustees purchased for the church from Stiles Peet and his wife Lydia a plot of about a quarter of an acre of land for a burying ground for the church, the price being at the rate of forty shillings an acre. He also personally gave most of the lumber required for building the first academy at Patterson, an edifice which was in later years destroyed by fire.



Colonel Ludington's tombstone at Patterson (formerly part of  
Fredericksburgh), N. Y.

In person Colonel Ludington was of more than ordinary stature, and of robust frame and dignified and commanding presence. He was of an eminently social disposition, and in the later years of his life he and John Jay and Colonel Crane were accustomed often to meet at their neighbor Townsend's, for social evenings over their pipes and mugs, to exchange memories of the stirring days of the Revolution. Throughout his entire life he commanded in a high degree the respect and confidence of all who knew him, and when he died at the goodly age of 78 he was universally mourned. He died of consumption, after a prolonged illness, on January 24, 1817. His remains were buried in the churchyard of the Presbyterian church at Patterson, of which he had been a trustee, and his grave was marked with a simple stone bearing only this inscription:

H. L.  
In Memory of  
HENRY LUDINGTON.  
Jany. 24, 1817.  
Aged 78 years.

So simple was the epitaph of one of whom Blake, the historian of Putnam County, truly says: "Col. Ludington was one of the most active, energetic and unflinching patriots found in this part of the country during the Revolution, and much do we regret our inability to do justice to the character and sterling virtues of this Revolutionary patriot. The Government records, however, show him to have been one of the bold defenders of our country's rights."

Colonel Ludington's wife, Abigail, survived him eight years, and then on August 3, 1825, was laid beside him, at the age of more than 80 years.

The will of Colonel Ludington, now on file in the surrogate's office of Putnam County, reads as follows:

In the Name of God, Amen!

I, Henry Ludenton of the Town of Fredericks County of Putnam and State of New York, being feeble in body but of perfect mind and memory, thanks be given unto God, calling into mind the mortality of my body and knowing that it is appointed for all men once to die, do make and ordain this my last will and testament, that is to say principally and first of all I give and recommend my Soul unto the hands of Almighty God That gave it, and my body I recommend to the earth to be buried in a decent Christian burial at the discretion of my executors, nothing doubting that I shall receive the same again at the general Resurrection by the mighty power of God. And as touching such worldly property wherewith it has pleased God to bless me with in this life, I do give, demise and dispose of in the following manner. And farm first of all, I do order my executors to sell and dispose of so much land off the north end of my farm with the grist mill thereon that will be sufficient to pay the debt that is owing from me to Samuel Governier's the landlord, the line beginning at the east side of my farm on the line betwixt me and the aforesaid Governier and running westwardly to the north of my barn and dwelling house and all other buildings except the aforesaid mill until it crosses the Mill Brook, and line then to run more to the south in course (case) a straight line will not make land enough to discharge said debt, but to run no further west than the east fence of the old lot known by

the name of the Old Ridge Lot, and secondly all the remainder and residue of my said farm dwelling house and buildings and all and singular the appurtenances thereunto belonging to remain in the hands of my executors for the use and benefit of Abigail Ludenton my wife and Abigail Ludenton my daughter and Derie Ludenton my son and Cornelia Ludenton my Grand Daughter so long as Abigail Ludenton remains my widow or in case she should not marry, until her decease, unless the said Abigail Ludenton my daughter or said Derrick Ludenton my son or Cornelia Ludenton should marry or either of them should marry the said farm to remain only for the use and benefit of those who are unmarried untill my widdow should marry or untill her disceas as is above expressed; and in case my daughter Abigail should not marry before the disceas of my widow she then at the deceas of my widow to take her choice of the Rooms in the Dwelling house wherein I live or when my widdow should marry which room she is to have and to hold as long as she remains single. All the remainder of my farm that is not set off for my executors to sell to discharge the debt of Samuel Governier, which land lying and being in the town of Frederick county aforesaid, I do give and bequeath unto my four sons Archibald Ludenton, Derrick Ludenton, Frederick Ludenton, Lewis Ludenton, to be equally divided amongst them in which case the said Ludinton and Ludenton is to pass unto Derrick Ludenton at the division thereof one hundred dollars wich farm of land they the said Archibald, Derrick, Frederick and Lewis Ludenton and their heirs is to have and to hold forever with all the appertinances thereunto belonging; but it is my will that Derrick Ludenton my son's proportion of the farm to remain in the hands of my executors and for them to do as they shall judge best for him with it. And I do will and bequeath Tartulus Ludenton my son Fifteen Dollars to be paid out of removable property, and after said fifteen dollars is paid and all my debts that my land is not sold to pay is paid and discharged, to pay which debts is my will that my executors should sell such and so much of the movable property they shall judge will least discommode the heirs which the residue is left to and share who is to have the property, and it is my will that all movable property should remain in the hands of my widdow for her use and the use of Derrick Ludenton my son, Abigail my daughter, to remain as the use of the farm is above discribed to remain in the hands of my executors for the use and benefit of Abigail Ludenton my wife and Abigail Ludenton my daughter and Derrick Ludenton my son and Cornelia Ludenton my grand daughter untill my wife marries or untill her disceas, unless Abigail, Derrick or Cornelia or one of them should marry, and the one that marries is to have use and benefit no longer of said property until disposed of as is hereafter directed. And I do will and bequeath unto my six daughters at the



deceas or marriage of my widow all my movable property to be equally divided amongst them, that is to say Sibyl Ogden, Rebecca Pratt, May Ferris, Anna Colwell, Abigail Ludenton and Sophiah Caverly my daughters.

And for the further surety of this my last will and testament I nominate and appoint John Hopkins of the town of Fishkill, County of Dutchess and State of New York, and Elijah Wixon of the town of Fredericks and County of Putnam and State aforesaid my sole executors of this my last will and testament and I do hereby disallow, revoke and annul all and singular every other former will testament and bequeath and executors by me in any wise before mentioned willed and bequeath, ratifying and allowing this and no other to be my last will and testament. In witness whereof I have hereunto set my hand and seal this seventh day of April in the year of Our Lord one thousand eight hundred and thirteen.

HENRY LUDENTON. L. S.

Signed sealed and pronounced in presence of us

Stephen Merritt

John Burtch.

An interesting side-light is cast upon one feature of this will, as well as upon the later years of Colonel Ludington's life and the years following his death, by a letter written in April, 1881, to Mr. Patrick by Mrs. Julia L. Comfort, of Catskill, New York, a daughter of Colonel Ludington's son, Tertullus Ludington. Speaking of the old homestead at Frederickstown, and the members of the family there, Mrs. Comfort said:

I was so young when last there, and consequently do not remember much about them. It was the winter before Grandma Luddington died. She gave my Mother Grandfather's gun and sword, and I think the powder horn to my brother Henry because he was named after him. They were all mounted with silver. The first time we were there was in the fall when chestnuts were ripe. There was a very large tree in the rear of the house, and Uncle Fred's children, my sister and myself wished to get the chestnuts but could not. Grandma wanted Uncle Derrick to cut the tree down for us, but he said it would take two weeks to do it, it was so large.

My Father was with us, and Grandfather said to him, (he always called him Tarty,) "I am going to make a will, and I owe you for five barrels of pork, but as I have not got the money just now I will remember it in my will." (It was in war time (War of 1812) and pork was selling for thirty dollars a barrel.) Father told him he might give it to Archie, as he was very poor and Father was doing a good business and did not need it, but Archie said he never rec'd a cent of it.

The last time Aunt Ogden was here, she was telling us how she and Aunt Sophia (probably a slip of the pen for Rebecca) were alone in the house in war time (Revolutionary War). They had had a fence built around the house, and they each had a gun, and once in a while they would fire one off to make the soldiers think there were men in the house.

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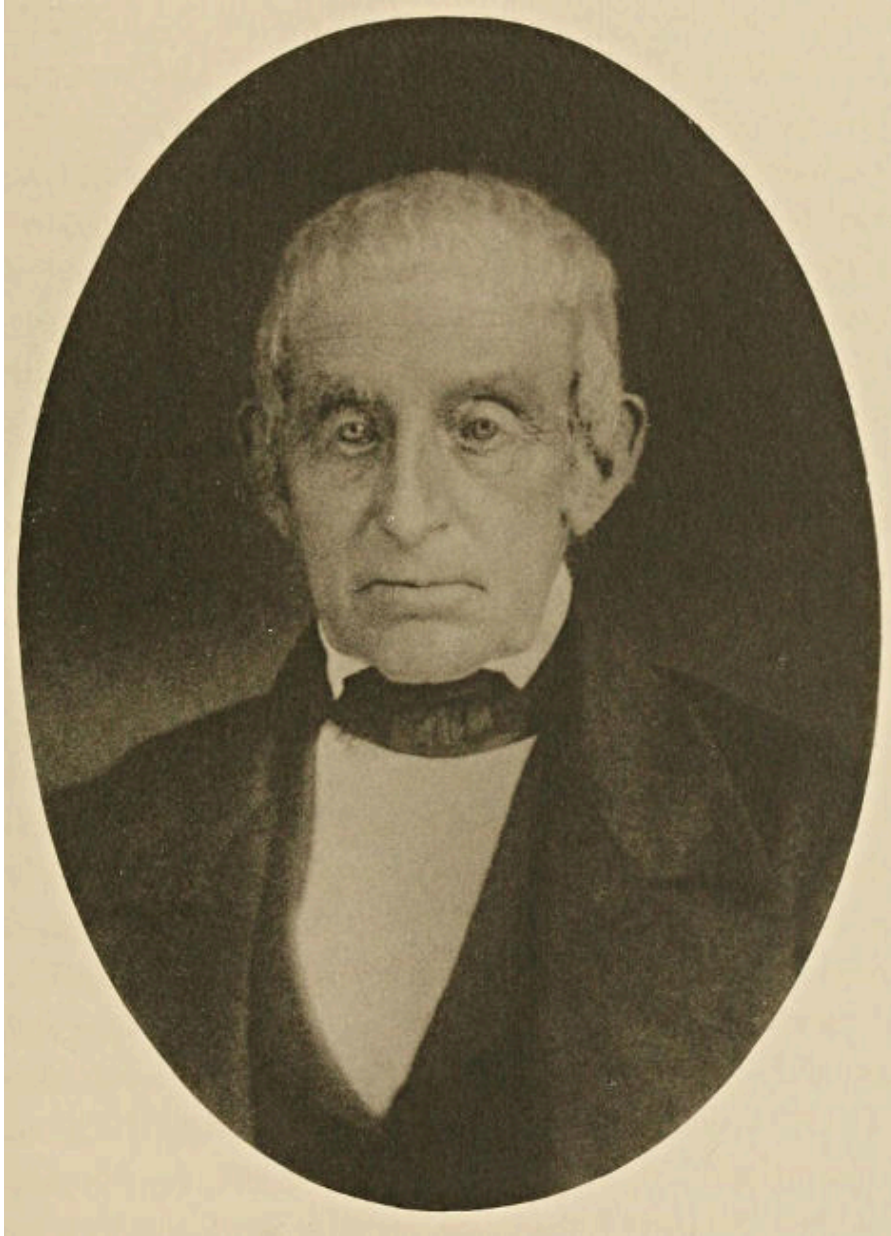
## CHAPTER VIII

### SOME LATER GENERATIONS

It has already been observed that the earlier generations of the Ludington family, in colonial days, were prolific; as, indeed, the Ludingtons of the Old Country are said to have been. In revolutionary days, Comfort, Elisha, Stephen, and other collateral relatives of his were the comrades of Henry Ludington in the war and his neighbors in Dutchess and the adjoining counties. Their descendants, and the descendants of those of Colonel Ludington's twelve children who married and had issue, have been numerous, and many of them have made their mark in contemporary affairs in various parts of the land. It is not the purpose of this work, nor would its compass permit it, to give any detailed chronicle of all the ramifications of the family. Brief notices of a few of its members follow. Let us first deal with some of a collateral line.

Colonel Henry Ludington married, as already noted, his cousin Abigail Ludington. Her brother, Comfort Ludington, who has been mentioned as a soldier in the Revolution, had a son named Zalmon, who in turn had a son also named Zalmon. The last named was a soldier in the War of 1812; in 1818 he went to Virginia, and four years later married Lovina Hagan, of Preston County. Three of his children are still living, namely: Mrs. M. L. Patrick, of Louisville, Kentucky; Dr. Horace Ludington, of Omaha, Nebraska; and General Marshall I. Ludington, U. S. A. Another, Colonel Elisha H. Ludington, U. S. A., died in 1891. Zalmon Ludington himself lived to be more than ninety years of age, and at the age of eighty-eight was able to make an important public address in the city of Philadelphia.

One of the sons of Zalmon Ludington, Elisha H. Ludington, entered the United States Army as a captain in 1861, did important field service with the Army of the Potomac in 1863, being engaged in the battles of Chancellorsville and Gettysburg, and for "gallant and meritorious service" in the latter conflict was brevetted a major on July 2, 1863. On March 13, 1865, he was brevetted lieutenant-colonel "for meritorious services during the war," and also colonel on the same date "for faithful and meritorious services in his department." He served at Washington and elsewhere as assistant inspector-general until his retirement for disability on March 27, 1879, and died on January 21, 1891.

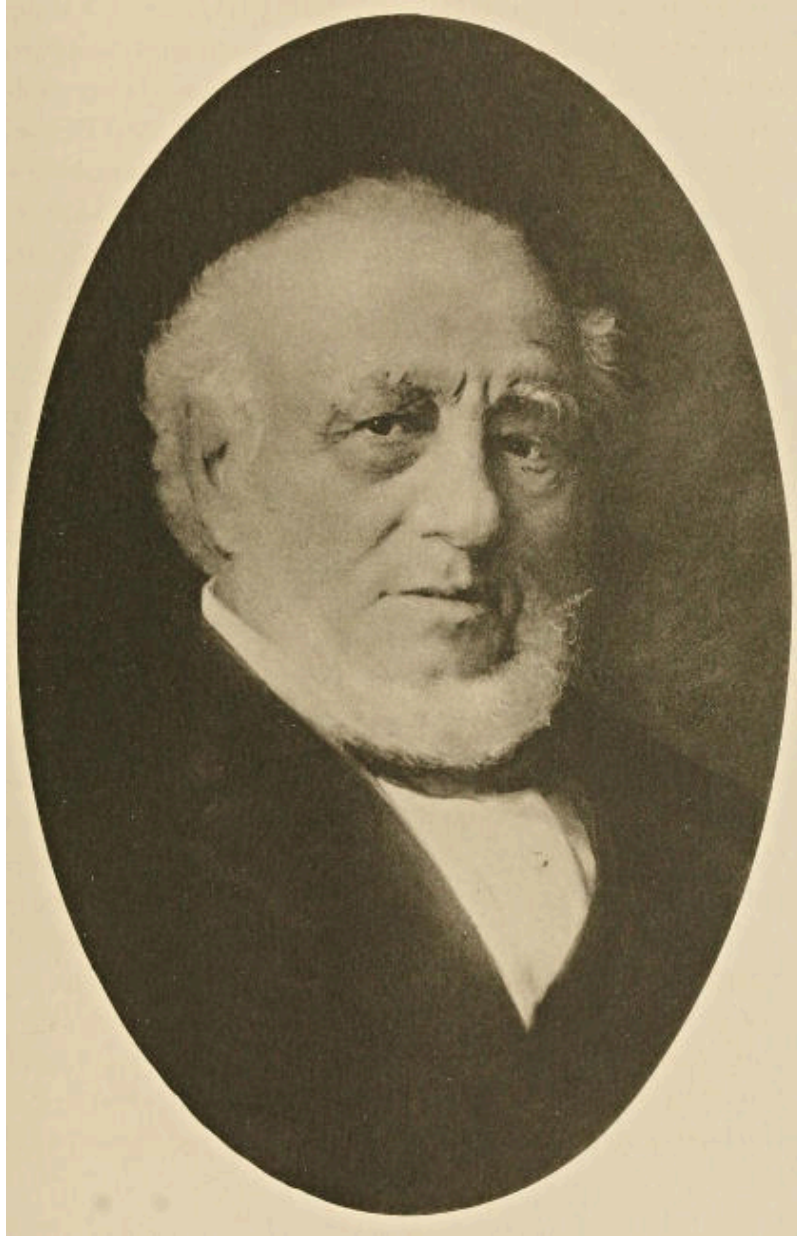


FREDERICK LUDINGTON,  
Son of Col. Henry Ludington.

Marshall I. Ludington was born in Somerset County, Pennsylvania, on July 4, 1839, and entered the army as captain of volunteers and acting quartermaster-general on October 20, 1862. Like his brother he served in the Chancellorsville and Gettysburg campaigns, in the Wilderness, and at Petersburg, and then became chief quartermaster at Washington. In January, 1867, he became major and quartermaster in the regular army, and served in various places and was successively promoted until in 1898 he was made brigadier-general and quartermaster-general of the United States Army, with headquarters at

Washington. For several years he had been acting quartermaster-general, but had not enjoyed full authority to organize the department according to his own ideas. Consequently, when he became quartermaster-general, only four days before the declaration of war with Spain, he was confronted with a task of peculiar difficulty, for which he had not been able to make satisfactory preparations such as had been made in other branches of the service. Before he retired from the office, however, he had so perfected the organization and equipment as to make the department a model which military experts from Europe were glad to study. He served until July 4, 1903, when he was retired under the law for age, with the rank of major-general, U. S. A. Since his retirement he has lived at Skaneateles, N. Y.

Mention has been made of Frederick Ludington, son of Colonel Henry Ludington, who with his brother Lewis engaged for a time in general merchandising at Frederickstown, or Kent, N. Y. He married Susannah Griffith, and among their children was a son to whom they gave the name of Harrison, in honor of the general who was just then winning distinction in the United States Army and who afterward became President. Harrison Ludington was born at Kent, New York, on July 31, 1812, and served for a time as a clerk in his father's and uncle's store. In 1838 he removed to Milwaukee, Wisconsin, in company with his uncle, Lewis Ludington, and there engaged in general merchandising, in partnership with his uncle Lewis and later with his younger brother, Nelson. They also had extensive interests in the lumber trade. Withdrawing from their firm, he formed a partnership with Messrs. D. Wells and A. G. Van Schaick, in the same business, with extensive lumber mills on Green Bay. He was for many years conspicuously identified with the development of the city of Milwaukee, and as the proprietor of a "general store" is said to have purchased the first bag of wheat ever brought to market at that place. He served for two terms as an alderman of Milwaukee, and in 1872-75 was mayor of that city. His admirable administration of municipal affairs fixed the attention of the whole State upon him, and as a result he was elected governor for the two years 1876 and 1877. He filled that office with distinguished success, but at the end of his single term retired from public life and resumed his manufacturing pursuits, in which he continued until his death, which occurred at Milwaukee on June 17, 1891.



HON. HARRISON LUDINGTON,  
Governor of Wisconsin, 1876-1878.

Grandson of Col. Henry Ludington.

George Ludington, second son of Frederick Ludington, and grandson of Colonel Henry Ludington, was born in Putnam County and spent his life there. He married Emeline C. Travis. For some years he occupied and conducted the store which had formerly been managed by his father and uncle, as already related, and afterward became cashier of the Bank of Kent, later known as the Putnam County National Bank, a place which he filled until his death.



A great-grandson of Colonel Henry Ludington, through his son Frederick and the latter's daughter Caroline, is Lewis S. Patrick, formerly in government service at Washington but now and for many years living at Marinette, Wisconsin. To his painstaking and untiring labors must be credited the collection of a large share of the data upon which this memoir of his ancestor is founded.



Old store at Kent, built by Frederick and Lewis Ludington about 1808

Sibyl Ludington, Colonel Ludington's oldest daughter, who married Henry Ogden, a lawyer of Catskill, N. Y., (elsewhere called Edward and Edmund,) went to live at Unadilla, N. Y., and bore four sons and two daughters. The distinguished career of one of these sons may well be told in a quotation from the "New York Observer" of October 18, 1855, as follows:

Major Edmund A. Ogden, of the United States army, who recently died of cholera at Fort Riley, Kansas Territory, was born at Catskill, N. Y., Feb. 20th, 1810. Soon after, he removed to Unadilla, N. Y., where he remained until he entered the United States Military Academy. On graduating, he was attached as brevet Second Lieutenant to the First Regiment of Infantry, then stationed at

Prairie du Chien. He was subsequently appointed a First Lieutenant in the Eighth Infantry, where he served until appointed a Captain in the Quartermaster's Department, in which corps he remained until his death. He served with credit and distinction through the Black Hawk, Florida and Mexican wars, and was created a Major by brevet, for meritorious conduct in the last named of these wars.

His services, ever faithfully performed, have been arduous and responsible. He has disbursed for the government millions of the public money; he has labored hard, and always to the purpose, and after giving to his country five and twenty years of hard and useful service, he has died poor.

For the last six years previous to last spring, Major Ogden was stationed at Fort Leavenworth, where he has rendered important service to the army in his capacity of Quartermaster. From this post he was ordered to California, and he removed with his family to New York with the expectation of embarking on the 20th of April last, when his orders were suddenly suspended, and he was sent back to assist in outfitting the expedition against the Sioux Indians. He was afterwards charged with the arduous duty of erecting, within three months, barracks, quarters and stables for a regiment of troops at Fort Riley—a point about 150 miles west of Leavenworth, and which he had himself selected as a suitable place for a government post, when stationed at Fort Leavenworth. This place was not settled, and was an almost perfect wilderness. He took with him about five hundred mechanics and laborers, with tools and provisions, and commenced his labors. In a new and unsettled country, so destitute of resources, many obstacles were encountered, but just as they were being overcome, and the buildings were progressing, cholera in its most fatal and frightful form made its appearance among the men, from two to four of them dying every day. Far removed from homes and kindred, and accustomed to depend upon Major Ogden for the supply of their daily wants, they turned to him in despair for relief from the pestilence. He labored among them night and day, nursing the sick and offering consolation to the dying. At last the heavy hand of death was laid upon him, and worn out with care, watching and untiring labors, he fell a victim to the disease whose ravages he had in vain attempted to stay.

In the death of this officer the army has lost one who was an ornament to its list; his own corps has lost one of its most efficient members—one whom they appreciated, and whom they delighted to praise. Among his associates in the army there is but one sentiment—that of regret for his loss and admiration for his professional and private character, and love for his estimable qualities. His associates in the army are not the only sufferers; but many and many in various



parts of the land have lost a warm and true friend, and the country has lost an honest man and a Christian soldier....

In the hour of death, far from all he most loved on earth, he was cheered by his Christian hope. His faith was unshaken and enduring, and proved capable of supporting him in that last sad hour. Although weak and exhausted, he repeated the Lord's Prayer audibly, and said to his friend the chaplain, who was by his side, "Tell my dear wife and children to try and meet me in heaven," and then sank sweetly and quietly to rest.

So died the Christian soldier, in the vigor of manhood, and at the post of duty. Bound as he was by so many tender ties to this earth, not a murmur escaped his lips, but he met his summons with a cheerful resignation to that Providence whose dealings he had recognized through life, and in whom he trusted in death....

It is interesting to note the evidences of the estimation in which Major Ogden was held at Fort Riley by the residents and the men in his employ. The following is an extract from *The Kansas Herald* of the 10th:

"The death of Major Ogden left a deep gloom upon the spirits of all the men, which time does not obliterate. His tender solicitude for the spiritual and bodily welfare of those under him; his unceasing labors with the sick, and his forgetfulness of self in attendance upon others, until he was laid low, have endeared his memory to every one there. And, as a token of affection, they are now engaged in erecting a fine monument which shall mark their appreciation of the departed. The monument, which will be of the native stone of the locality, is to be placed on one of the high promontories at Fort Riley, and can be seen from many a distant point by those approaching the place. It will bear the following inscription:

"Erected to the memory of  
BREVET MAJOR E. A. OGDEN,  
the founder of Fort Riley;  
a disinterested patriot and a generous friend;  
a refined gentleman; a devoted husband  
and father,  
and an exemplary Christian.

Few men were more respected in their lives, or more lamented in their deaths. As much the victim of duty as of disease, he calmly closed a life, in the public service, distinguished for integrity and faithfulness.

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BREVET MAJOR E. A. OGDEN,

Assistant Quartermaster, United States Army, departed this life, at Fort Riley, August 3d, 1855, in the forty-fourth year of his age.

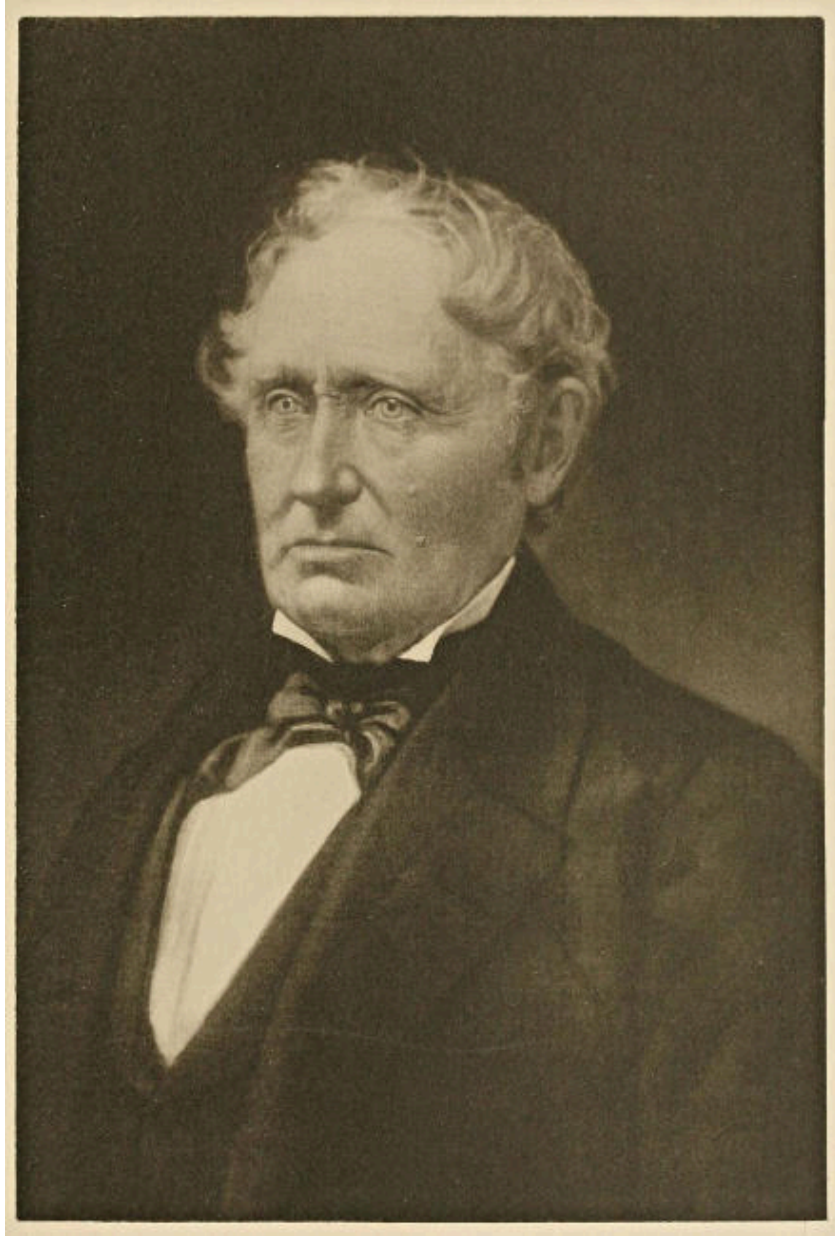
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‘And I heard a voice saying unto me, write, blessed are the dead which die in the Lord from henceforth. Yea, saith the spirit, that they may rest from their labors; and their works do follow them.’”



Home of the late Lewis Ludington, son of Colonel Ludington, at Carmel, N. Y., built in 1855

A younger brother of Major Edmund Ogden was Richard Ludington Ogden, who became a captain in the United States Army, and was an extensive and adventurous traveler.



LEWIS LUDINGTON,  
Son of Col. Henry Ludington.

(From portrait by Frank B. Carpenter.)

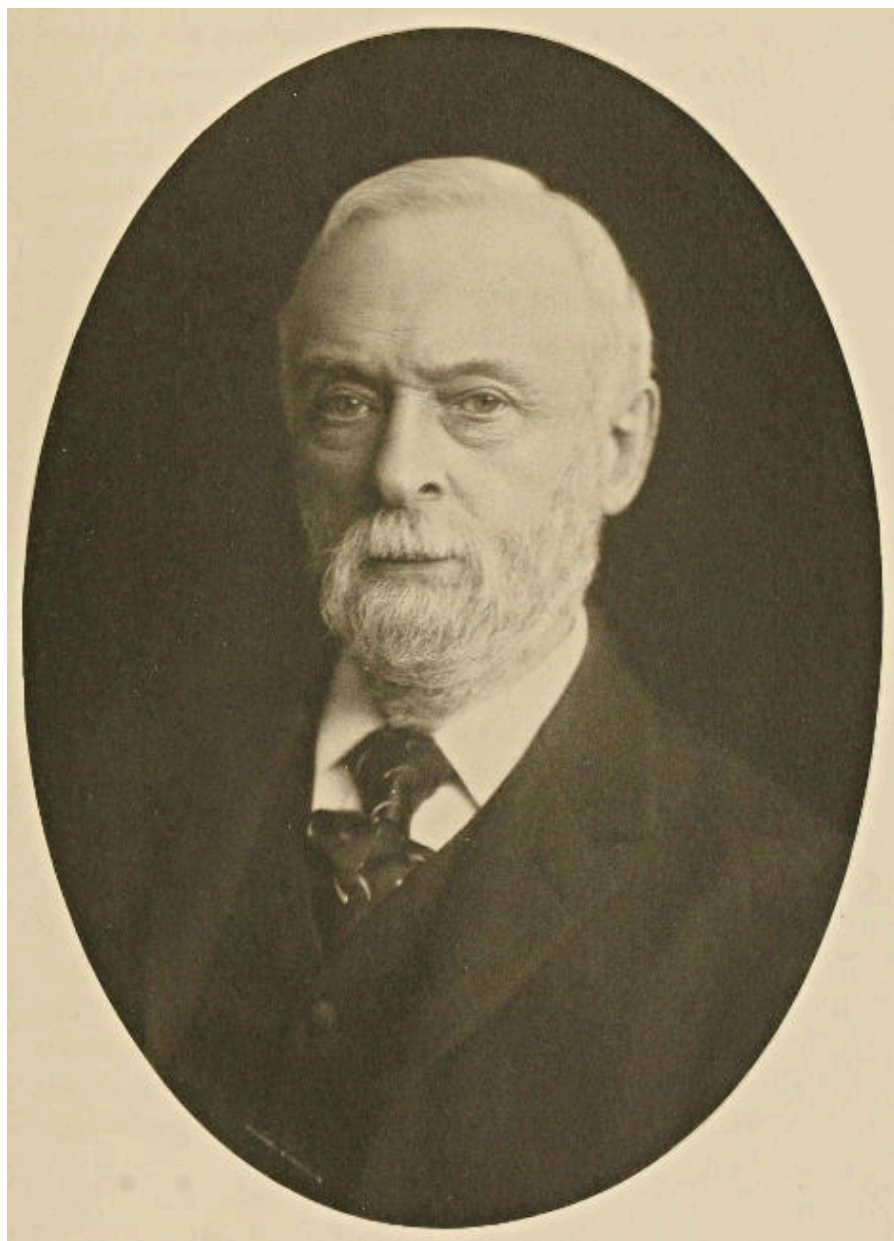
The sixth son and youngest child of Colonel Henry Ludington was Lewis Ludington, who was born in Fredericksburgh on June 25, 1786. At the age of twenty he engaged with his elder brother Frederick in conducting a general store near their home. A few years later he married Polly Townsend, the daughter and oldest child of Samuel Townsend and his wife Keturah Crosby. The Townsends had come to Dutchess County many years before from Long Island, and Polly Townsend's great-grandfather, Elihu Townsend, settled on a

farm in South East Precinct, close to the Westchester County line. He died about 1804, at the age of 102 years, and was able to walk about the yard six weeks before his death. For several years after their marriage Lewis and Polly Townsend Ludington lived in a cottage near the Ludington homestead at Fredericksburgh, or Kent, as it was then renamed. Then, in the spring of 1816, they removed to the village of Carmel, where soon after Lewis Ludington bought property which is still owned by members of the family. In the fall of 1855 he completed and occupied the house which is still the family homestead. The wood of which this house was built was cut on lands owned by Mr. Ludington in Wisconsin, was sawed in his mills at Oconto in that State, and was shipped from Green Bay to Buffalo in the lake schooner *Lewis Ludington*. This circumstance suggests the fact that Lewis Ludington was strongly identified with business interests in Wisconsin. He went West in the fall of 1838, in company with his nephew, Harrison Ludington, already mentioned, and Harvey Burchard, of Carmel, N. Y. They visited Milwaukee, which was then a mere village, and during that winter made several long trips on horseback through the interior of Wisconsin, for the purpose of selecting government lands. They purchased extensive tracts, largely with a view to the lumber trade, and in 1839 they formed at Milwaukee the general mercantile firm of Ludington, Burchard & Co., of which Lewis Ludington was the eldest and Harrison Ludington the youngest member. A year or two later Burchard retired and the firm became Ludington & Co., Harrison's younger brother Nelson being taken into it. Nelson Ludington, by the way, was afterward president of the Fifth National Bank of Chicago, and for many years was at the head of large and successful lumbering and manufacturing interests and was prominent in commercial life in Chicago. For nearly twenty years Lewis Ludington was the head of the firm of Ludington & Co., which was one of the foremost in Milwaukee, and which conducted what was for those days a business of great magnitude. The firm also had lumber mills at Oconto and docks at Milwaukee. About 1843, Lewis Ludington bought a tract of land in Columbia County, Wisconsin, and in July of the following year laid out thereon the city of Columbus. For many years he personally directed and encouraged the development of the new community, which grew to be a city of considerable population and wealth.

Thus for almost a quarter of a century Mr. Ludington conducted a number of enterprises in Wisconsin, enjoying at all times the respect and confidence of those who knew him and ranking among the best representative citizens of the two States with which he was identified. He was a Whig in politics, and exerted much influence in party councils, especially opposing the extension of slavery, but would never accept public office, though frequently urged to do so. He died



on September 3, 1857, at Kenosha, Wisconsin, and his remains were interred in the family lot in Raymond Hill Cemetery, at Carmel, N. Y.



CHARLES HENRY LUDINGTON,  
Grandson of Col. Henry Ludington.

The fifth child of Lewis Ludington is Charles Henry Ludington, who was born at Carmel, N. Y., on February 1, 1825. Among the schools which he attended in boyhood was one conducted in the former home of "Peter Parley" at Ridgefield, Conn. In 1842 he became a clerk in a wholesale dry-goods store in New York, and later was for many years a member of a leading firm in that same business—the firm of Lathrop, Ludington & Co., at first on Cortlandt

Street, and afterward on Park Row. A considerable portion of the business of this firm was with the southern States, but a few years before the Civil War its name was published in the notorious "black-list" of the pro-slavery Secessionists, as an "Abolitionist" concern, and as a result all trade with that section of the country was ended. The "black-list" at first comprised only the names of Bowen, Holmes & Co., Lathrop, Ludington & Co., and a few others, but in time was increased until it embraced about forty of the leading houses in wholesale lines in New York, Boston, and Philadelphia, and was widely published throughout the South, to injure if possible the business of those who, like Bowen, Holmes & Co., "sold their goods but not their principles." Of course the outbreak of the war ended what little trade remained for these houses in the South, but Lathrop, Ludington & Co. more than recouped elsewhere the losses of their southern trade, and before the end of the war had become the third leading firm in that line in New York. Mr. Ludington was an ardent upholder of the Union. Unable himself to go to the war as a soldier, he employed and sent a substitute, and his firm contributed large sums for the recruiting and equipping of troops in New York City and in Putnam County. Retiring in 1868, he has since that time been engaged in various personal enterprises in New York and in the West.

James Ludington, the sixth child of Lewis Ludington, was born at Carmel, on April 18, 1827, went to Milwaukee in 1843, worked in the establishment of Ludington & Co., aided his father in founding the town of Columbus, and was for a time his father's resident agent there. Later, at Milwaukee, he was treasurer of a railroad company and vice-president of the Bank of the West at Madison, Wisconsin. In 1859 he acquired extensive saw-mills at the mouth of the Pèrre Marquette River, in Michigan, and there founded the city of Ludington. He died on April 1, 1891.

In addition to the impress thus widely made upon the military, political, business and other history of the United States by members of the family, the name of Ludington, in memory of the influence and achievements of those who have borne it, is honorably inscribed upon the maps of no fewer than four of the States. A village of Putnam County, at the site of the old homestead of colonial and revolutionary times, bears, as we have seen, the name of Ludingtonville—at once a tribute to the Ludington family and an unfortunate example of the unhappy American habit, now less prevalent than formerly, of adding "ville" to local names. Far better was the bestowal of the simple and sufficient name of Ludington upon the lake port in Michigan, referred to in the preceding notice of James Ludington's life. The same name is borne by a village in the parish of

Calcasieu, in southwestern Louisiana, while the part the Ludington family played in the settlement and upbuilding of the State of Wisconsin is commemorated in the name of a village in Eau Claire County, which retains an old and familiar variant of spelling, Luddington.

The quoted tribute to the English Ludingtons of former centuries, with which this volume was begun, might well, *mutatis mutandis*, be recalled at its close for application to the Ludingtons of America. The boast of being of “great estate” is worthily matched with the record of having contributed something of substantial value to the common wealth of the Great Republic, and travels in Eastern lands are rivalled with travels and labors in the greater regions of the West; while even wars against the Paynim and loyalty to the King did not surpass in merit the war for liberty and independence and loyalty to the intrinsic rights of man. In this view of the case, it is confidently hoped that not only for the sake of family affection, but also for its historical interest, it will be deemed worth the while to have told thus briefly and simply the story of Henry Ludington.

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# INDEX



Aikins, David, affidavit of, [137](#)

Angell, Col. Israel, quoted, [168](#)

Arnold, Seymour, petition of, [183](#)

Beatty, Col. W., [166](#)

“Birch, Harvey,” [114](#)

Border Warfare in Revolution, [133](#)

Branford, Conn., [24](#)

Brinckerhoff, Col. Dirck, replies to Clinton, [99](#)

Burgoyne’s surrender, [106](#)

Burke’s Heraldry, quoted, [4](#)

Byington, John, affidavit of, [34](#)

Chatterton Hill, see [White Plains](#)

Clinton, Fort, capture of, [105](#)

Clinton, George, commander of militia, [178](#);

order to Colonel Graham, [86](#);

troubled by disaffection of militia, [92](#);

difficulties in raising levies, [94](#);

orders to Colonel Ludington, [96](#);

orders countermanded, [97](#);

meets disaster at Fort Montgomery, [105](#);

urges defense of Hudson, [106](#);

letters to Colonel Ludington, [160](#), [170](#), [179](#), [185](#);

to Colonel Hopkins, [173](#);

to Colonel Van Bunschoten, [181](#);

to General Swartwout, [181](#)

Clinton, Sir Henry, [105](#)

Clinton, James, [105](#)  
Colony Record of Deeds, of Connecticut, quoted, [20](#)  
Comfort, Mrs. Julia L., letter to Mr. Patrick, [213](#)  
Cooper, James Fenimore, quoted, [114](#)  
Cowing, Daniel, petition of, [183](#)  
Crabb, John, arrest of, [143](#)  
Crosby, Enoch, original of “Harvey Birch,” [115](#);  
narrative of his services as American spy, [118](#)

Dana, Francis, at Colonel Ludington’s, [167](#)  
Danbury, Conn., raiding of, [88](#)  
Dates, uncertainties of, [10](#)  
De Kalb, Baron, [166](#)  
De Peyster, General, quoted, [105](#)  
Dieskau, Baron, [27](#), [28](#), [29](#)  
Dimon, Lieutenant Colonel, arrests traitors, [143](#)  
Dodd’s “East Haven Register,” quoted, [19](#), [22](#), [26](#)  
Domesday Book, Ludington mentioned in, [6](#)  
Duer, William, [55](#), [56](#), [57](#), [75](#), [134](#)  
Dutchess County, N. Y., divisions of, [36](#), [58](#);  
population of, [40](#);  
officers of and their oaths, [41](#);  
revolutionary passions in, [49](#);  
Committee of Safety of, [49](#);  
text of patriotic compact in, [52](#);  
militia organizations of, [61](#), [70](#);  
services of militia of, [72](#);  
militia urged to service in, [87](#);  
scene of border warfare and raids, [133](#);

a danger spot, [139](#);  
freeholders' address to the Legislature, [153](#)

East Haven, Conn., [13](#)

Ellery, William, whimsical account of a night at Colonel Ludington's, [166](#)

Farmer's List of Ancient Names, quoted, [7](#)

Foote's company, 2nd Connecticut Regiment, [26](#)

Fredericksburgh, town of, [37](#);  
much visited by troops, [165](#)

Frederickstown, [36](#), [58](#), [59](#)

Goodrich, Col. Elizur, [26](#)

Gray's genealogical work, quoted, [3](#)

Hamilton, Alexander, on burning of Danbury, [91](#);  
voted for by Colonel Ludington, [199](#);  
report in behalf of Colonel Ludington, [200](#)

Hendrick, Mohawk chieftain, [27](#), [28](#)

Hoadly's New Haven Colonial Records, quoted, [15](#)

Holmes, Col. John, Tory agent, [147](#);  
Colonel Ludington's letter about, [148](#);  
captured by Colonel Ludington, [150](#)

*Hopewell*, ship, [7](#)

Hopkins, Col. Roswell, letter to Clinton, [171](#);  
experience with a press master, [174](#);  
resigns commission, [176](#)

Iron works at East Haven, Conn., [13](#)

Irving, Washington, quoted, [169](#)

Jay, John, [51](#), [55](#), [75](#), [125](#), [141](#), [208](#)

Johnson, Major General Sir William, [27](#)

Kane, Kain, or Keane, John, treated as a Tory, [169](#)

“Kansas Herald,” quoted, [222](#)

Kent, N. Y., town of, [37](#)

Kingston, N. Y., state capital, menaced by the British, [105](#);  
burned, [106](#), [161](#)

Lake George, Battle of, [27](#)

Lossing, Benson J., quoted, [169](#)

Loyalists, or Tories, [47](#), [73](#)

Luddington, Wisconsin, [228](#)

Ludington, Louisiana, [228](#)

Ludington, Michigan, [228](#)

Ludingtonville, N. Y., origin of, [38](#);  
name of, [228](#)

Ludington family, [3](#), [4](#), [5](#)

Ludington Hospital, [6](#)

Ludington, various forms of the name, [5](#)

Ludington, Abigail, [22](#), [35](#), [209](#)

Ludington, Archibald, [45](#), [204](#)

Ludington, Charles Henry, MS. collections quoted, [192](#), [204](#);  
career of, [226](#)

Ludington, Christian, [7](#)

Ludington, Christopher, [8](#)

Ludington, Comfort, Revolutionary soldier, [72](#), [82](#), [215](#)

Ludington, Elisha, Revolutionary soldier, [71](#)

Ludington, Col. Elisha H., [216](#)

Ludington, Ellen, [8](#);  
    remarriage, [17](#)

Ludington, Frederick, birth, [45](#);  
    career, [217](#)

Ludington, George, [218](#)

Ludington, Harrison, Governor, [218](#)

Ludington, Henry 1st, son of William 2nd, [20](#), [21](#);

    his children—

        Daniel, [21](#);

        Ezra, [21](#);

        Collins, [21](#);

        William, [21](#);

        Sarah, [21](#);

        Dinah, [21](#);

        Lydia, [21](#);

        Nathaniel, [22](#);

        Moses, [22](#);

        Aaron, [22](#);

        Elisha, [22](#);

        Sarah, [22](#);

        Thomas, [22](#)

Ludington, Col. Henry, birth of, [22](#);

    at Branford, Conn., [24](#);

    boyhood and schooling, [25](#);

    enlists in French and Indian War, [25](#);

    at Battle of Lake George, [27](#);

    dates of reënlistments, [30](#);

    at Quebec, [30](#);

winter march to Boston, [30](#);  
commissioned lieutenant, [31](#);  
captain in Beverly Robinson's regiment, [31](#);  
recorded as "Deserted," [31](#);  
affidavits concerning his service, [33](#);  
marriage and settlement in New York, [35](#);  
house and mills, [39](#);  
important location of his home, [40](#);  
oaths as sub-sheriff, [41](#);  
service as sub-sheriff, [44](#);  
his children, [45](#);  
enters revolutionary movement, [52](#);  
under orders of Committee of Safety, [56](#);  
territorial command as militia colonel, [59](#);  
work in organizing militia, [66](#);  
various commissions in army, [67](#);  
succeeds Colonel Morrison, [68](#);  
formation of his regiment, [70](#);  
organization, [73](#);  
letter to Provincial Congress of New York [74](#);  
enters Revolutionary War, [77](#);  
at Battle of White Plains, [81](#);  
intercourse with Washington, [82](#);  
stationed at North Castle, [85](#);  
avenges burning of Danbury, [89](#);  
summoned to defend the Highlands of the Hudson, [91](#);  
sent to Westchester County, [96](#);  
recalled to Peekskill, [98](#);  
difficulty in complying with orders, [100](#);  
foils British at Tarrytown, [101](#);  
plans defense of Highlands, [106](#);  
letter to Clinton about difficulty of raising troops, [107](#);  
returns of his regiment. [109](#);

action at Crom Pond, [109](#);  
temporary disbandment of regiment, [110](#);  
secret service, [114](#);  
relations with “the spy, Harvey Birch,” otherwise Enoch Crosby, [115](#);  
instructions from Colonel Sackett, [115](#);  
engagement of Benajah Tubbs, [116](#);  
gives letter to Enoch Crosby, [132](#);  
services in border warfare, [134](#);  
road-building for forage parties, [135](#);  
captures Nickerson’s party, [138](#);  
in Westchester County, [142](#);  
gives “character” to a Tory, [144](#);  
arrests Elijah Taylor, [145](#);  
address to Council of Safety, [147](#);  
letter to Clinton about Col. John Holmes, [148](#);  
captures Holmes, [150](#);  
hated by the Tories, [156](#);  
prize offered for his capture, [157](#);  
feud with Dr. Prosser, [158](#);  
letter to Clinton, [159](#);  
humanity toward Tories, [162](#);  
embarrassed with depreciated currency, [166](#);  
William Ellery and Francis Dana at his house, [166](#);  
letter to Clinton about militia, [177](#);  
challenged to fight a duel, [179](#);  
retained on duty in Westchester County, [180](#);  
letter to Clinton with petition of deserters, [183](#);  
letters to Clinton on burdens of militia, [185](#), [186](#);  
abstract of pay-roll, [187](#);  
affidavit on accounts, [188](#);  
purchase of bounty lands, [189](#);  
and his family, [190](#).

end of military service, [190](#);  
deputy sheriff and justice of the peace, [191](#);  
text of commission as justice of the peace, [194](#);  
service in New York Legislature, [198](#);  
Federalist and friend of Hamilton, [199](#);  
petition for relief in case of missing certificates, [199](#);  
votes against independence of Vermont, [202](#);  
builder of improved road, [202](#);  
retires from colonelcy, [203](#);  
buys and sells land at Frederickstown, [206](#);  
interest in church and school, [208](#);  
personal traits, [208](#);  
death and burial, [208](#);  
simple epitaph, [209](#);  
Blake's tribute, [209](#);  
text of his will, [209](#)

Ludington, Henry, Jr., [45](#), [204](#)

Ludington, Horace, M.D., [216](#)

Ludington, James, [227](#)

Ludington, Lewis, [45](#), [217](#), [218](#);  
his career, [224](#);  
death, [226](#)

Ludington, Gen. Marshall I., [216](#)

Ludington, Nelson, [218](#), [225](#)

Ludington, Rebecca, birth, [45](#);  
marriage, [45](#);  
service as sentry, [157](#)

Ludington, Robert, [3](#);

Sir John, [5](#);

Thomas, [5](#);

Stephen, [5](#);

Elizabeth, [5](#)



Elizabeth, [2](#)

Ludington, Sibyl, birth, [45](#);  
marriage, [45](#);  
ride to summon troops to avenge burning of Danbury, [90](#);  
aids Enoch Crosby the spy, [132](#);  
service as sentry, [157](#);  
her children, [219](#)

Ludington, Stephen, Revolutionary soldier, [71](#)

Ludington, Tertullus, [45](#), [213](#)

Ludington, Thomas, of Newark, N. J., [18](#);

John, [19](#);

James, [19](#);

John, of Vermont, [19](#);

Mary, [19](#);

Henry, [19](#);

Hannah, [19](#);

Matthew, [20](#)

Ludington, William 1st, at Charlestown and Malden, [8](#);

deed of land from Ralph Hall, [11](#);

creditor of Henry Sandyes, [12](#);

removal to East Haven, [12](#);

death, [13](#);

inventory of estate, [15](#);

children, [18](#)

Ludington, William 2nd, [19](#);

Henry, [20](#);

Eleanor, [20](#);

William 3rd, [20](#);

Samuel, [20](#);

Timothy, [21](#);

Mercy, [21](#);

Mary, [21](#);

Hannah, [21](#);

John, [21](#);

Jude, [21](#);

Eliphalet, [21](#);

Amos, [21](#);

Elizabeth, [21](#);

Dorothy, [21](#);

Dorcas, [21](#)

Ludington, William, son of Henry, [21](#), [22](#);

Submit, [22](#);

Mary, [22](#);

Henry, [22](#);

Lydia, [22](#);

Samuel, [22](#);

Rebecca, [22](#);

Anne, [22](#);

Stephen, [22](#)

Ludington, William, Revolutionary soldier, [72](#)

Ludington, Zalmon, [215](#)

Ludington, Zalmon, Jr., [216](#)

Lyman, General, [28](#)

Militia, organization of, in New York, [60](#);

in Dutchess and Westchester counties, [61](#);

pay of, [62](#);

a sample muster-roll, [63](#);

Colonel Ludington's regiment formed, [70](#);

called out by Congress, [72](#);

commanded by George Clinton, [78](#);

ordered to Highlands of Hudson, [79](#);

at White Plains, [81](#);

- defending the Hudson, [84](#);
- restless when waiting, [92](#);
- difficulties in raising levies, [95](#);
- reluctance to serve, [98](#);
- radical reorganization, [111](#);
- abolition of office of colonel, [203](#)

Montgomery, Fort, capture of, [105](#)

Morrison, Malcolm, resigns commission, [68](#);

- arrested on suspicion of treason, [138](#)

New Haven Probate Records, quoted, [19](#)

New York, counties of, [36](#);

- boundary dispute with Connecticut, [37](#);
- sentiment at beginning of Revolution, [47](#);
- patriotic organizations, [51](#);
- action of Provincial Congress, [54](#);
- vigilance committees against Tories, [55](#);
- organization of militia, [60](#);
- changes of government, [70](#);
- militia called out, [72](#)

Nickerson, "Josh," [138](#)

Oblong, The, [37](#)

"Observer, The New York," quoted, [219](#)

Ogden, Major Edmund A., [219](#)

Ogden, Edward, Edmund, or Henry, [45](#)

Ogden, Richard Ludington, [223](#)

Patrick, Lewis S., MS. collections and researches, quoted, [8](#), [13](#), [19](#), [30](#),  
[52](#), [168](#), [189](#), [194](#), [207](#), [213](#);

- ancestry and genealogical work, [219](#)

---

Patrick, Mrs. M. L., [216](#)

Pawling, N. Y., town of, [36](#)

Pope's Pioneers of Massachusetts, quoted, [14](#)

Prosser, Dr., Tory conspirator, [126](#), [132](#);  
tries to capture Colonel Ludington, [157](#);  
their feud, [158](#)

Putnam County, N. Y., origin of, [36](#)

Putnam, Gen. Israel, order to militia, [93](#);  
abandons Peekskill, [105](#);  
orders to Colonel Ludington, [142](#)

Quaker Hill, [37](#), [50](#)

Quakers, attitude of, in Revolution, [50](#)

Read, Jacob, arrest of, [146](#)

Records of the Proprietors of New Haven, quoted, [17](#), [18](#)

Revolution, The, beginning of, [47](#);  
Henry Ludington's services in, [77](#)

Robinson, Beverly, [31](#), [45](#), [169](#)

Rochambeau, Count, guest at Colonel Ludington's, [166](#)

Rose, John, [18](#)

Sackett, Col. Nathaniel, commissioned to suppress conspiracies, [85](#), [87](#);  
secret service instructions to Colonel Ludington, [115](#)

Savage's Genealogical Register, quoted, [8](#)

Scribner, Col. Nathaniel, muster-roll, [63](#)

Secret service in the Revolution, [114](#);  
Benajah Tubbs, [116](#);  
Enoch Crosby's narrative, [117](#)

Sequestration of lands, [150](#);  
commissioners of, [151](#)

Shrawley, Ludingtons of, [3](#)

“Spy, The,” [114](#)

Stirling, Lord, [45](#)

Sutherland, David, [173](#)

Swartwout, Jacobus, General, [67](#)

Tarrytown, British landing at, [101](#)

Taylor, Elijah, arrest of, [145](#)

Tories, definition of, [48](#);

their hatred of Colonel Ludington, [156](#);

his humanity toward them, [162](#);

severe decree against them, [164](#)

Tryon, William, last British governor of New York, [31](#);

raids Danbury, [88](#);

lands at Tarrytown, [103](#)

Tubbs, Benajah, employed as a spy, [116](#)

Van Bunschoten, Col. E., letter to Clinton, [180](#)

Vaughan, General, burns Kingston, [106](#)

Washington, George, has Colonel Ludington for aide at White Plains, [82](#);

marches across New Jersey, [83](#);

urges defense of Highlands, [92](#);

gives warning of Howe’s designs, [94](#);

guest at Colonel Ludington’s, [165](#);

headquarters at Colonel Ludington’s, [169](#)

Westchester County N. Y. militia in [76](#).

Worcester County, 1777, 1778, 1779, [78](#),

Colonel Ludington's services in, [96](#), [142](#)

Wheaton, Jehoidah, affidavit of, [33](#)

White Plains, Battle of, [76](#), [80](#);

Colonel Ludington at, [81](#)

Whiting, Col. Nathan, [26](#), [28](#)

Williams, Daniel, letter to Clinton, [182](#)

Williams, Col. Ephraim, [28](#)

Worcester, Ludington memorial at, [3](#)

Wyman's Records of Charlestown and Malden, [14](#)

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